

**ZONING LOCAL LAW**  
**OF**  
**THE TOWN OF ARCADE**  
**NEW YORK**

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## **ARTICLE 100 – TITLE, ENACTING CLAUSE, PURPOSE**

### **Section 101 – TITLE**

A Local Law regulating the location, construction, and use of buildings, structures and the use of land in the Town of Arcade, County of Wyoming, State of New York, and for said purposes dividing the Town into districts. This Local Law shall be known and cited as the Zoning Local Law of the Town of Arcade, New York.

### **Section 102 – ENACTING CLAUSE**

The Town Board of the Town of Arcade in the County of Wyoming, under the authority of the Town Law of the State of New York, hereby enacts and publishes this Local Law.

### **Section 103 – PURPOSE**

The zoning regulations and districts stated in this Local Law and outlined upon the Zoning Map are made in accordance with a comprehensive plan for the purpose of promoting the public health, safety, morals, convenience, order, prosperity and general welfare of the Town of Arcade. They have been designed to lessen congestion in the streets; to secure safety from fire, panic and other dangers; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population; and to facilitate the adequate provision of transportation, public utilities, schools, parks and other public requirements. They have been made with reasonable consideration, among other things, as to uses, and with a view of conserving the value of buildings and encouraging the most appropriate use of land throughout the Town of Arcade (excluding the Village of Arcade).

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## **ARTICLE 200 – INTERPRETATIONS, DEFINITIONS**

### **Section 201 – LANGUAGE, INTERPRETATION**

Except where specifically defined herein, all words used in this Local Law shall carry their customary meanings. Words used in the present tense in this Local Law shall be interpreted to include the future, and words used in the plural shall be interpreted to include the singular. The word “person” includes a corporation as well as an individual. The word “lot” can be interpreted to include the words “plot or parcel”. The word “shall” is intended to be mandatory. The words “occupied” or “used” shall be considered as though followed by the words “or intended, arranged or designed to be used or occupied.” The word “includes” or “including” shall not limit the term to the specified example, but is intended to extend its meaning to all other instances of like, kind and character.

### **Section 202 – DEFINITIONS**

Certain words and terms used in this Local Law are defined as follows:

**Section 202-2.1 - ACCESSORY BUILDING** – An accessory building is one which:

- A. Is subordinate to and serves a principal building or principal use.
- B. Is subordinate in area, extent or purpose to the principal building or principal use served.
- C. Contributes to the comfort, convenience, or necessity of occupants of the principal building or principal use served.
- D. Is located on the same lot as the principal building or principal use served.

The words “accessory uses”, when listed in Article 400 of this Local Law shall apply only to uses accessory to uses permitted in the particular subsection (either “Uses Permitted by Right” or “Uses Permitted by Special Permit”) of this Local Law in which it is found.

**Section 202-2.2 - AGRICULTURE, LIMITED** – The production of crops, plants, vines and/or trees.

**Section 202-2.3 - AGRICULTURE, UNLIMITED** – The production of crops, plants, vines and/or trees; or the keeping, grazing, or feeding of livestock for animal products (including serums), animal increase or value increase.

**Section 202-2.4 - AIRSTRIP** – A runway without normal facilities.

**Section 202-2.5 - AIRPORT** – A piece of land that is maintained for the horizontal or vertical landing and takeoff of aircraft used for receiving and discharging passengers and/or cargo that usually has facilities for the shelter, supply and repair of aircraft.

**Section 202-2.6 - APARTMENT HOUSE** – A building arranged, intended or designed to be occupied by three (3) or more families living independently of each other.

**Section 202-2.7 - ACCESSORY USE** - A use incidental and subordinate to the principal use of a building on the same lot and serving a purpose customarily incidental to the use of the principal building.

**Section 202-2.8 – BARN-** A structure designed for the housing of farm animals or farm equipment on a recognized agricultural site.

**Section 202-2.9 - BILLBOARD** – See “Sign, Advertising”.

**Section 202-2.10 - BUILDING** – Any structure having a roof supported by columns or by independent, non-party walls and intended for the shelter, housing or enclosure of persons, animals or chattel. An earth-sheltered structure shall be deemed a building. In matters of setback and required yards or other such respects, freestanding signs larger than eight (8) square feet shall be regarded as buildings within the meaning of this Local Law.

**Section 202-2.11- BUILDING AREA** – The total of areas taken on a horizontal plane at the main grade of the principal building and all accessory buildings exclusive of uncovered porches, terraces and steps. All dimensions shall be measured between the exterior faces of walls.

**Section 202-2.12 - BUILDING HEIGHT** – The vertical distance measured from the average elevation of the proposed finished grade at the front of the building to the highest point of the roof for flat roofs; to the deck line of mansard roofs; and to the mean height between eaves and ridge for gable, hip and gambrel type roofs.

**Section 202-2.13 - BUILDING LINE** – A line formed by the intersection of a horizontal plane of the average grade level and a vertical plane that coincides with the exterior surface of the building on any side. In case of a cantilevered section of a building or projected roof or porch, the vertical plane will coincide with the most projected surface. All yard requirements are measured to the building line.

**Section 202-2.14 - BUILDING PERMIT** – A permit issued by the Wyoming County Building Department for the Town of Arcade in accordance with Section 1003 of this Local Law.

**Section 202-2.15 - BUILDING, PRINCIPAL** – A building in which is conducted the main or principal use of the lot on which said building is situated. In any residential district any dwelling shall be deemed to be a principal building on the lot on which it is located.

**Section 202-2.16 - BUILDING SETBACK LINE** – A line parallel to the street line at a distance as regulated by the front yard requirements in this Local Law.

**Section 202-2.17 - CAMP SITE** – A parcel of land (with or without structures) designed, intended or used for one temporary shelter or a seasonal residence.

**Section 202-2.18 - CAMPING OR TRAVEL TRAILER PARK** - A parcel of land designed, intended, or used for parking, pitching, erection, or maintenance of more than one travel trailer,

tent, cabin, or any temporary recreation shelter.

**Section 202-2.19 - CAMPING TRAILER** – A vehicular, portable structure (whether towed or self-propelled) used as a temporary dwelling for traveling, recreation or seasonal use.

**Section 202-2.20 – CARPORT** – A carport is an open structure typically used for vehicle protection that does not enclose and secure.

**Section 202-2.21 - CLUB** – An organization catering exclusively to members and their guests (including premises and buildings for recreational or athletic purposes), which are not conducted primarily for monetary gain.

**Section 202-2.22 - CLUSTER DEVELOPMENT** – A cluster development is generally limited to only one type of use or a grouping of similar uses which may permit reduced lot sizes and greater flexibility in road alignment, preserves scenic areas or environmentally delicate areas from development, and providing an environment of greater variety, safety, economy and amenity then possible under normal development technique.

**Section 202-2.23 - COMMERCIAL DISTRICTS** – Those districts mentioned in this Local Law where retail sales establishments are permitted by right.

**Section 202-2.24 - DWELLING UNIT** – One (1) or more rooms providing living facilities (including equipment and provision for cooking) for a single household of one or more persons living as a family and having not more than two (2) people who are sheltered and/or fed for profit.

**Section 202-2.25 - EATING AND DRINKING ESTABLISHMENT** – Places where food and/or beverages are prepared and/or sold for consumption on the premises or for take out, including restaurants, tearooms, cafeterias, bars, taverns, and lunchrooms.

**Section 202-2.26 - ESSENTIAL SERVICES** – The erection, construction, alteration, or maintenance, by public utilities or municipal or other governmental agencies of gas, electrical, steam, water, sewage, and communication systems and facilities. Railroad trackage and facilities, and bus shelters shall also be considered as providing an essential service.

**Section 202-2.27 - EXCAVATION** – Any man-made depression one (1) foot or more below the surrounding grade, excluding drainage ditches.

**Section 202-2.28 - FAMILY** – One (1) or more persons, related by birth, marriage or other domestic bond; occupying a dwelling unit and living as a single, non-profit housekeeping unit.

**Section 202-2.29 - FARM** – An area of land containing at least 10 acres which is used for the commercial growing of the usual farm products such as vegetables, fruit, and/or grain; and for the packing or storage of the products produced ON THE PREMISES, as well as for the raising



of the usual farm poultry and farm animals, such as horses, cattle, sheep and swine (but NOT EXCLUDING the raising of fur-bearing animals, riding academies, livery or boarding stables, dog kennels, or the commercial feeding of garbage or offal to swine or other animals).

**Section 202-2.30 - FIRE CODE OFFICER** – The public official appointed by the Wyoming County Board of Supervisors to enforce the New York State Uniform Fire Prevention and Building Code of Wyoming County.

**Section 202-2.31 – FLAG LOT** – A building lot which has a narrow frontage, a minimum of (30) thirty feet for a residential lot and (60) sixty feet for a commercial lot, on a public or private road and which serves as access to a lot which meets the minimum lot area and lot width requirements, resembling a lot configuration of a flag.

A lot which does not physically front on or about a roadway, but which has access to a roadway by means of an easement over other property, shall be deemed to be included in this definition. The portion of the lot that provides access to the interior portion of the lot shall not be considered buildable and shall not be used in the calculation of the minimum lot area requirements for the zoning district.

**Section 202-2.32 - FLAG LOT, INTERIOR PORTION** – That portion of a flag lot having sufficient lot area, width and depth to meet the minimum requirements of the zoning district and which excluded the access portion of the lot.

**Section 202-2.33 - FLOOD OR FLOODING** – A general and temporary condition of partial or complete inundation of normally dry land areas from (1) the overflow of streams, rivers, or other inland areas of water; or (2) abnormally rising lake waters – resulting from severe storms or hurricanes.

**Section 202-2.34 - FLOOD HAZARD BOUNDARY MAP** – The official map received from the Federal Insurance Administration.

**Section 202-2.35 - FLOOD PLAIN** – A relatively flat or low land area adjoining a river, stream or watercourse, which is subject to partial or complete inundation; or any area subject to the unusual and rapid accumulation of runoff of surface waters from any source.

**Section 202-2.36 - FLOOD PLAIN OVERLAY DISTRICT** – An area as defined in the district regulations, which is subject to regulations of the underlying district and subject to the overlay district regulations in order to reduce flood hazards.

**Section 202-2.37 – FLOOD PROOFING** – Any combination of structural or non-structural additions, changes, alterations, or adjustments to properties or structures which reduce or eliminate flood damage to land, water and sanitary facilities, structures and contents of buildings.

**Section 202-2.38 - FLOOD PROTECTION ELEVATION** – The level and elevation above which a particular use will be considered safe from flooding. (Such levels or elevations shall be based and updated with the 100-year flood elevation.)

**Section 202-2.39 - FLOODWAY** – The designated area on the “Flood Hazard Boundary Map” of a flood plain required to carry and discharge flood waters of a given magnitude.

**Section 202-2.40 - FLOODWAY FRINGE AREA** – The designated area on the “Flood Hazard Boundary Map” of a flood plain adjacent to the “floodway” and within the 100-year special flood hazard area.

**Section 202-2.41 – GARAGE** - An accessory building or part of the principal building which is designed and used primarily for the storage of motor vehicles for the personal transportation of the occupants of the dwelling unit with which it is associated. It is an enclosed shelter for storage of automotive vehicles that is securable.

**Section 202-2.42 - GOVERNING BODY** – The Town Board of the Town of Arcade is the Governing Body.

**Section 202-2.43 - HIGHWAY ACCESS POINT** – The distance between the curb cut for any vehicular entrance or exit to the street, or the distance between driveways to or from any properties.

**Section 202-2.44 - HOME BASED BUSINESS** – An accessory use of property that is compatible with the uses permitted in the district, that protects the neighborhood character, and that does not change the character of a dwelling for living purposes. A home based business shall emit no offensive noise, vibration, smoke, odors, heat or glare.

**Section 202-2.45- HOME OCCUPATION** – An accessory use of a service character customarily conducted within a dwelling and/or existing building, by the residents thereof, which is clearly secondary to the use of the dwelling for living purposes. Such use shall not change the character of the building as a dwelling for living purposes nor shall there be any exterior evidence of such secondary use other than a nameplate, as herein defined. Such light industry (crafts) as conforms to the above plus the office of a physician, surgeon, dentist, or other professional person, including an instructor in violin, piano, or other individual musical instruments limited to a single pupil at a time, who offers skilled services to clients, and is not professionally engaged in the purchase or sale of economic goods other than those produced on premises, shall be deemed to be “Home Occupations”. A Home Occupation shall emit no offensive noise, vibration, smoke, dust, odors, heat or glare.

**Section 202-2.46 - HOSPITAL** – Unless otherwise specified, the term hospital shall be deemed to include sanitarium, sanatorium, preventorium, clinic, rest home, nursing home, convalescent home and any other care of ailments and shall be deemed to be limited to places for the diagnosis, treatment or other care of human ailments.

**Section 202-2.47 - HOSPITAL, ANIMAL** – An establishment for the medical and/or surgical care of sick or injured animals.

**Section 202-2.48 - INDUSTRIAL DISTRICT** – Those districts mentioned in this Local Law where industrial uses are permitted by right; also to include industrial portions of a planned unit industrial development.

**Section 202-2.49 - JUNK VEHICLE** – An unregistered or inoperable motor vehicle, including but not limited to passenger autos, trucks, buses, motorcycles, racing autos, tractors, bulldozers, campers, dirt bikes, and ATV's not in condition for legal use on the public highway, that is either abandoned, wrecked, discarded, dismantled or partly dismantled.

**Section 202-2.50 - JUNK YARD** – A lot, land, or structure (or part thereof) used for the collection, exchange, storage, packing disassemble and/or sale of waste, scrap metal, paper, lumber, rags, or similar materials including any place of storage or deposit, whether in connection with another business or not, or where two or more unregistered, old, or second hand motor vehicles, no longer intended or in condition for legal use on the public highways are held, whether for the purpose of resale of used parts there from, for the purpose of reclaiming for use some or all of the materials therein, whether metal, glass, fabric or otherwise, or for the purpose of disposing of the same or for any other purpose including such further definition of a junk yard as may be contained, from time to time in Section 136 of the General Municipal Law.

**Section 202-2.51 - LIGHTING** – See Section 807 Lighting Standards

**Section 202-2.52 - LOADING AND UNLOADING SPACE, OFF-STREET** – An open, hard-surfaced area of land other than a street or public way, the principal use of which is for the standing, loading, and unloading of motor vehicles, tractors, and trailers, to avoid undue interference with public streets and alleys. Such space shall not be less than ten (10) feet in width, thirty-five (35) feet in length and fourteen (14) feet in height, exclusive of access aisles and maneuvering space.

**Section 202-2.53 – LOT** - A parcel or area of land, the dimensions and extent of which are determined by the latest official records or recordings and which has been assigned a unique tax code number.

**Section 202-2.54 - LOT AREA** – The net area contained within lot lines. Any portion of a lot included in a public road, street or highway right-of-way shall not be included in calculating lot area.

**Section 202-2.55- LOT, COMMERCIAL-** A lot, or parcel of land considered as a unit, regardless of size, devoted to a commercial use. Commercial lots may only be established in designated commercial districts.

**Section 202-2.56 - LOT, CORNER** – A parcel of land at the junction of, and fronting on two (2) or more intersecting streets, roads or thoroughfares.

**Section 202-2.57 - LOT COVERAGE** – That percentage of the lot area that is devoted to building area. District regulations refer to the maximum percentage of the lot area devoted to building area.

**Section 202-2.58 - LOT, DEPTH** – The mean distance from the right-of-way line of the street to the rear lot line measured in the general direction of the side lines of the lot.

**Section 202-2.59 – LOT, FRONTAGE** –The lineal distance along a lot line which adjoins the road or highway which provides access to the lot. On a flag lot, the lot line closest to the roadway.

**Section 202-2.60 - LOT LINE** –The property lines bounding the lot:

- A. Lot Line, Front: The line separating the lot from the nearest street right-of-way.
- B. Lot Line, Rear: The lot line opposite and most distant from the front lot line.
- C. Lot Line, Side: Any lot line other than a front or rear lot line.

**Section 202-2.61 - LOT OF RECORD** – A parcel of land properly recorded with the County Clerk and assigned a unique tax parcel identification number at the time of passage of this Local Law.

**Section 202-2.62 – LOT, RESIDENTIAL** – A parcel of land considered as a unit, regardless of size, established for a residence with customary accessory structures. Only one residence may be established on a residential lot.

**Section 202-2.63 - LOT, THROUGH** – An interior lot having frontage on two parallel or approximately parallel streets, roads or thoroughfares.

**Section 202-2.64 - LOT, WIDTH** – The minimum distance between the side lot lines at the point where the front of the primary structure is to be established. (See Section 202-2.115 Yard, Front Dimensions (Setback))

**Section 202-2.65 - MANUFACTURED HOMES** - A structure transportable in one or more sections, built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation, connected to the required utilities and includes the plumbing, HVAC and electrical systems contained therein. The unit shall bear certification and seal as required by the Secretary of HUD.

**Section 202-2.66 – MOBILE HOME** – Constructed prior to June 15, 1976. A vehicle or movable living unit with or without wheels, whether on a foundation or rigid support, capable of being used for living quarters year round.

**Section 202-2.67 - MANUFACTURED HOME PARK** – A tract of land used or intended to be used for the installation of two (2) or more manufactured homes, together with the necessary improvements and facilities on the land.

**Section 202-2.68 - MODULAR HOME** - A unit(s) meeting the minimum standards as set forth with the New York State Uniform Fire Prevention and Building Code fabricated from a minimum of two large sections, each of which must be transported to the building site separately,

joined and finished, erected on a permanent foundation with the transportation apparatus removed, having the general characteristics of and being generally indistinguishable in appearance from conventionally built homes.

**Section 202-2.69 - MOTOR HOME** – (See CAMPING TRAILER)

**Section 202-2.70 - MOTOR VEHICLE SERVICE STATION** – Any use of land, including structures thereon, that is used for the sale of gasoline or any other motor vehicle fuel and oil and other lubricating substances; including any sale of motor vehicle accessories; and/or including facilities for lubricating, washing, or otherwise servicing motor vehicles (but not including: the painting thereof by any means; body and fender work; or the dismantling or replacing of engines.

**Section 202-2.71 - MUNICIPALITY** – Shall mean the Town of Arcade

**Section 202-2.72 - NON-CONFORMING BUILDING OR STRUCTURE** – A building or structure lawfully existing at the time of the passage of this Local Law or any amendment thereto affecting such building or structure, which does not conform to the building regulations, including area and setback requirements for the District in which it is situated, irrespective of the use to which such structure is put.

**Section 202-2.73 - NON-CONFORMING USE** – Any use of a building, structure, lot or land, or part thereof, lawfully existing at the time of the passage of this Local Law or any amendment thereto affecting such use, which does not conform to the use regulations prescribed in this Local Law for the district in which it is situated.

**Section 202-2.74 - OFFICE** – A place which is used to conduct a business or profession and is occupied by a physician, surgeon, dentist, lawyer or person providing similar services or in whose office the functions of consulting, record keeping, and clerical work are performed.

**Section 202-2.75 - OPEN SPACE** – Common, or public or private greens, parks or recreation areas, including playgrounds, woodland conservation areas, walkways, trails, stream crossing and drainage control areas, golf courses, swimming pools, tennis courts, ice skating rinks and other similar recreational uses; but which may not include any such uses or activities which produce noise, glare, odor, air pollution, fire hazards or other safety hazards, smoke fumes, or any use or activity which is operated for a profit or that would be detrimental to existing or prospective development of the neighborhood.

**Section 202-2.76 - PARKING SPACE** – A required off-street parking space shall be an area of not less than one hundred sixty-two (162) square feet nor less than eight and one-half (8 ½) feet wide by nineteen (19) feet long (exclusive of access drives or aisle) accessible from streets, to be used for the storage or parking of passenger automobiles or commercial vehicles under one and one-half (1 ½) ton capacity. Aisles between vehicular parking spaces shall not be less than twelve (12) feet in width when serving automobiles parked at a forty-five (45) degree angle in one direction nor less than twenty (20) feet in width when serving automobiles parked perpendicular to the aisles and accommodating two-way traffic.

**Section 202-2.77 - PERMANENT PERIMETER FOUNDATION** - A permanent perimeter structural system for transporting loads of a structure to the earth at a depth below the established frost line (42 inches) without exceeding the safe bearing capacity of the supporting soil. (Basement, cellar or crawlspace constructed according to New York State Building Code.)

**Section 202-2.78 - PLANNED UNIT DEVELOPMENT** – A planned unit development may be a residential development, an industrial development, or a mixture of residential, commercial and industrial uses where the “neighborhood” instead of an individual lot becomes the unit for planning, having the general objective of flexibility and site design, variety and physical development pattern, and encouragement of more effective and desirable use of open land.

**Section 202-2.79 - PLANNING BOARD** – Unless otherwise designated, the Planning Board of the Town of Arcade.

**Section 202-2.80 – POLE STRUCTURE** – A building constructed with a pole foundation system. Also see, Storage Building Private, Barn, Shed, Garage, for correct usage.

**Section 202-2.81 - PUBLIC** – Owned, operated or controlled by a governmental agency (Federal, State, County or Local) including a corporation created by law for the performance of certain specialized governmental functions, a public school district or service district.

**Section 202-2.82 - PUBLIC SEWER** – Municipally owned or operated sewer system or a privately owned and operated on-site package treatment plant and its associated sewer mains.

**Section 202-2.83 - QUARRY, SAND PIT, GRAVEL PIT, TOP SOIL STRIPPING** – A lot or land or part thereof used for the purpose of extracting stone, sand, gravel or top soil for sale, as an industrial operation, and exclusive of the process of grading a lot preparatory to the construction of a building for which application for a building permit has been made.

**Section 202-2.84 - RESIDENTIAL DISTRICTS** – Those districts mentioned in this Local Law where single family detached, two-family, and/or multi-family residences are permitted by right.

**Section 202-2.85 - RESIDENTIAL, MULTI-FAMILY** – A building used or designed for three or more dwelling units including apartment houses and town houses.

**Section 202-2.86 - RESIDENCE, SINGLE FAMILY DETACHED** – A detached building designed to contain one dwelling unit and having a living area of at least 950 square feet. It shall meet the New York State Residential Code. It shall rest upon a permanent, perimeter foundation.

**Section 202-2.87 – RESIDENCE, WORKER HOUSING** – A detached building designed to contain one dwelling unit and having a living area of at least 950 square feet. The unit must be located on the same lot as the farming operation and occupied by employees of the said farm.

**Section 202-2.87 – RESIDENCE, SEASONAL DWELLING** – A detached building designed to contain one dwelling unit and having a living area of at least 950 square feet. It shall meet the New York State Residential Code. It shall rest upon a permanent foundation.

**Section 202-2.88 - RESIDENCE, TWO-FAMILY** – Any of the following:

- A. Each unit shall meet the Single Family Detached requirements.
- B. A building having two side yards and accommodating two dwelling units, with one family living above the other.
- C. A detached building containing two dwelling units separated by a part wall, each having one side yard.

**Section 202-2.89 - SANITARY LAND FILL** – A method of disposing of garbage and refuse by spreading, covering, and compacting with earth.

**Section 202-2.90 - SECTION** – Unless otherwise noted, section and section numbers shall refer to this Local Law.

**Section 202-2.91 - SEMI-PUBLIC** – Places of worship, institutions for the aged and children, nurseries, non-profit colleges, hospitals, libraries, cemeteries and institutions of a philanthropic nature. Also open space.

**Section 292-2.92 - SETBACK** – The commonly used term associated with the minimum distance a building or structure must be separated from a property line. Definition of setback measurement methods can be found in the Yard Dimension sections found later in these definitions.

**Section 202-2.93 - SIGN** – A sign is any structure or device for visual communication that is used for the purpose of attracting the attention of the public. A sign includes any portion of a structure or device attached to a structure upon which is painted, or represented, or displayed any letter, word, model, banner, flag, pennant, insignia decoration or representation used to communicate a message to (or attract the attention of) the public. The word “sign” does not include the flag, pennant or insignia of any nation, state, city or other political unit.

**Section 202-2.94 - SIGN, ADVERTISING** – A sign that offers services or goods produced or available somewhere other than on the lot on which the sign is located. The words “advertising sign” include the word “billboard”. Neither directional, warning nor other signs posted by public officials in the course of their public duty shall be construed as “advertising signs”.

**Section 202-2.95 - SIGN, AREA** – The area defined by the outer most portion of the frame, support, or edge of a sign (including roof, enhancement, etc.). Where there is not a geometric frame or edge of a sign, the sign area shall be defined by a projected, enclosed, four-sided (straight sides) geometric shape that most closely outlines the sign. Only one face of a sign shall be used in measuring the sign area.

**Section 202-2.96 - SIGN, BUSINESS** – A sign for a permitted use conducted on the premises which shall identify the written name and/or the type of business and/or any trademark of an article for sale or rent on the premises and/or communicates the type of service or articles offered on the premises.

**Section 202-2.97 - SIGN, ERECTION** - The term “sign erection” shall mean to build, construct, alter, repair, display, relocate, attach, hang, place, suspend, affix, or maintain any sign – including the painting of exterior wall signs.

**Section 202-2.98 - SIGN, INSTRUCTIONAL** – A sign conveying instructions with respect to the use of the premises or a portion of the premises on which it is maintained.

**Section 202-2.99 - SIGN, NAMEPLATE** – Any sign attached directly to the wall of a building occupied by the person to whom such sign indicates the name, occupation and/or address of the occupant. A nameplate shall not exceed two (2) square feet in area.

**Section 202-2.100 - SIGN, TEMPORARY** – A sign which offers a premises for sale, rent or development, or announces special events, or calls attention to new construction or alteration. Signs advertising “sale” items are not to be considered as temporary signs.

**Section 202-2.101 - SPECIAL FLOOD HAZARD AREA** – The maximum area designated on the “Flood Hazard Boundary Map” of the flood plain that, on the average, is likely to be flooded once every 100 years.

**Section 202-2.102 - SPECIAL PERMIT** – A Special Permit deals with special permission, granted only by the Town Board after being reviewed by the Planning Board, to occupy land for specific purposes as authorized in the District Regulation, under special and specific conditions, where permitted or not permitted by right. (May sometimes be referred to herein as Special Exception.)

**Section 202-2.103 - STORY** – That portion of a building included between the surface of any floor and the surface of the floor next above it, or if there be no floor above it, then the space between any floor and the ceiling next above it.

**Section 202-2.104 - STORY, HALF** – A story under a gable, hip or gambrel roof, the wall plates of which, on at least two opposite exterior walls, are not more than two feet above the floor of such story.

**Section 202-2.105 - STREET** – A public or private way, which affords the principal means of access to abutting properties.

**Section 202-2.106 - STREET LINE** – A line coinciding with the road right-of-way; or in areas where the road right-of-way boundary is in doubt, the street line shall be considered to be thirty (30) feet from the center of the paved cart way (except along State Routes where the street line shall be considered to be 35 feet from the center of the paved cart way).

**Section 202-2.107 - STRUCTURE** – Anything constructed or erected with a fixed location on the ground, or attached to something having a fixed location on the ground.



**Section 202-2.108 - TOWN HOUSE** – A building or dwelling designed for or occupied by no more than one (1) family and attached to other similar buildings placed side by side, separated by party walls, each containing one or two stories, and each having separate front and rear, or side and rear, or front and side entrances from the outside.

**Section 202-2.109 - TRACT** – A large piece of land under single ownership and developed or to be developed as a single entity for two or more units of use.

**Section 202-2.110 - UNIFORM CODE** – The New York State Uniform Fire Prevention and Building Code.

**Section 202-2.111- -USE** – Any purpose for which land or a building is designed, arranged, intended, or for which it is, or may be occupied or maintained.

**Section 202-2.112 - VARIANCE** – Permissive waivers from the terms of this Local Law granted by the Board of Appeals (that will not be contrary to the public interest, where, owing to special conditions, a literal enforcement of the provisions of this Local Law will result in unnecessary hardship) designed such that the spirit of this Local Law shall be observed and substantial justice done.

**Section 202-2.113 - YARD** – An open space on the same lot with a building or structure that is unoccupied space from the ground upward, except as otherwise provided herein.

**Section 202-2.114 - YARD, FRONT DIMENSION (SETBACK)** - The space within and extending the full width of the lot from the front lot line to the part of the principal building or structure, which is nearest to such front line. Corner lots and through lots shall have two (2) front yards.

**Section 202-2.115 - YARD, REAR DIMENSION (SETBACK)** – An open space extended across the entire width of the lot between the rear wall of the principal building or structure, which is nearest to such rear line of the principal building or structure which is nearest to such rear line. Corner lots and through lots do not have a rear yard.

**Section 202-2.116 - YARD, SIDE DIMENSION (SETBACK)** – The area extending from the front yard to the rear yard between the side wall of the principal building or structure and the side line of the lot which is nearest to such sidelines.

**Section 202-2.117 - ZONING BOARD OF APPEALS OR BOARD OF APPEALS** – Shall mean the Zoning Board of Appeals of the Town of Arcade.

**Section 202-2.118 - ZONING MAP** – The map or maps incorporated into this Local Law as a part thereof, designating Zoning Districts. The originals of which are on file with the Town Clerk.

**Section 202-2.119 - ZONING OFFICER** – The official designated by the Town Board of the Town of Arcade to administer the provisions of this Local Law.

## **ARTICLE 300 – ESTABLISHMENT OF DISTRICTS**

**Section 301 - CREATION AND ENUMERATION OF DISTRICTS** – For the purpose of promoting the public health, safety, morals and general welfare in the Town of Arcade, the Town is hereby divided into the following types of districts:

**Section 401** – FP Overlay District: Flood Plain

**Section 402** – R1 District: Low Density Residential (No Public Sewers)

**Section 403** – R4 District: Mobile Home Parks

**Section 404** – AG District: Agricultural District

**Section 405** – HC: Highway Commercial

**Section 406** – LI District: Light Industrial

**Section 407** – LI/HC District: Light Industrial, Highway Commercial

**Section 302 - ZONING MAP** – The districts are bounded as shown on a map entitled “Zoning Map of the Town of Arcade”, and certified by the Town Clerk, which accompanies and which, with all explanatory matter thereon, is hereby made a part of this Local Law.

**Section 303 - INTERPRETATION OF DISTRICT BOUNDARIES** – where uncertainty exists with respect to the boundaries of any of the districts shown on the Zoning Map, the following rules shall apply:

1. Where district boundaries are indicated as approximately following the center lines of streets or highways, street lines, or highway right-of-way lines; such center lines, street lines, or highway right-of-way lines shall be construed to be the boundaries.
2. Where the district boundaries are so indicated that they approximately follow the lot lines, such lot lines shall be construed to be the boundaries.
3. Where district boundaries are so indicated that they are approximately parallel to the center lines, or street lines of streets, or the center lines or right-of-way lines of highways; the district boundaries shall be construed as being parallel thereto and at such distance there from, as indicated on the Zoning Map. If no distance is given, such dimension shall be determined by the use of the scale shown on the Zoning Map.
4. Where the boundary of a district follows a railroad line, the boundary shall be deemed to be located in the middle of the main tracks of said railroad line.

5. Where the boundary of a district follows a stream, lake or other body of water, the boundary line shall be deemed to be at the limit of jurisdiction of the Town of Arcade unless otherwise indicated.
6. Any flood plain boundary shown on the Zoning Map indicates general location only. The precise location of flood plain boundaries shall be established by the Zoning Officer after consulting with the U.S. Corp of Engineers and the Federal Insurance Administration (FIA).

**Section 304 - REGULATIONS** – Unless otherwise noted, the regulations set by this Local Law within each district shall be minimum regulations and shall apply uniformly to each class or kind of structure or land. No building, structure or land shall hereafter be used and no building, structure or part thereof shall be erected, moved, or altered unless for a use expressly permitted by and in conformity with the regulations herein specified.

## ARTICLE 400 - DISTRICT REGULATIONS

**Section 401 - FP OVERLAY DISTRICT: Flood Plain** – The FP Overlay District is divided into two categories (FWA-Floodway Area and FFA-Flood Fringe Area). The boundaries for the FP Overlay District are the same as the boundaries for the Flood Hazard Boundary Maps originating from the Flood Insurance Rate Map (FIRM). This area may be further refined to include both the Floodway and the Floodway Fringe District as defined and delineated by the Federal Emergency Management Agency (FEMA), or such additional areas as may be designated by the zoning map of the Town of Arcade. The following Controls shall apply:

### A. FP OVERLAY DISTRICT: FLOOD PLAIN

#### 1. Uses Permitted by Right:

- Orchards
- Off-Street parking areas
- Open recreational uses including parks, playgrounds, golf courses, picnic groves, beaches and boat launching areas.
- Unlimited and limited agriculture (excluding any structures).
- Wildlife sanctuaries, woodland preserves, scenic sites and arboretums.

#### 2. Prohibited Uses:

- Land Fills of any type
- Storage of materials or equipment
- Structures (either temporary or permanent)
- Any other use that would unduly affect the efficiency or capacity of the floodway; or unduly increase flood heights; or cause increased velocities, obstructions or catch and collect debris which would obstruct flow under flood conditions.

#### 3. Existing Non-Conforming Uses:

- No existing, non-conforming use in the Floodplain Area shall be expanded; however, the use may be modified, altered, repaired to incorporate flood-proofing measures (providing that such measures do not raise the level of the 100 year flood).

### B. 1. USES PERMITTED BY SPECIAL PERMIT:

- Flood Retention dams, dikes, culverts and bridges as approved by the State of New York.
- Greenhouses
- Open storage if contiguous to an industrial district.
- Essential services
- Single-family residences on lots of at least five (5) acres.
- Animal hospitals, animal shelters, dog kennels.
- Public or private stables and facilities for raising insects.
- Accessory uses

- Home Occupations

#### SPECIAL DIMENSIONAL REQUIREMENTS

- The minimum horizontal setback for all structures shall be seventy-five (75) feet from the toe of the slope of any watercourse. The minimum setback for all structures shall be fifty (50) feet from the road right-of-way line.
- Where public sewerage is not available (and sewage disposal is required), no lot shall be built upon which has insufficient space or conditions for a County Health Department approved on-site sanitary waste disposal system. Water supply systems and/or sanitary disposal systems shall be designed to eliminate infiltration of floodwaters into the systems and discharges from the systems into floodwaters.
- New construction or substantial improvements of habitable structures shall have the lowest floor (including basement) elevated to a minimum of one (1) foot above the level of the 100-year flood. All utility and sanitary facilities shall be flood-proofed up to the level of the 100-year flood.
- All structures to be used for human occupancy must be located on the building site so as to offer the minimum obstruction to the flow of floodwaters (i.e. longitudinal axis parallel to the direction of flood flow). All structures (including prefabricated and mobile homes) must be designed (or modified) to be firmly anchored to prevent floatation, collapse or lateral movement.
- All utilities (water, sewer, gas, electrical systems) shall be located and constructed to minimize or eliminate flood damage. Restrictions of bridge openings or other narrowing of streams or rivers shall be constructed at or above the flood protection elevation of the 100-year flood.

2. All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables with Section 1600.

3. NOTE: also see General Provisions (Article 700) and Supplemental Regulations (Article 800) of this Local Law

C. Town of Arcade Local Law No. 2 of the year 1983 “A Local Law Providing for the Flood Damage Prevention and Flood Hazard Reduction” and Local Laws supplementing, amending or replacing the same, shall also apply, and where there is a conflict between the provisions of this Zoning Local Law and Local Law No.2 of the year 1983, the more strict provisions shall apply.

## **Section 402 - R1 DISTRICT: Low Density Residential (No Public Sewers)**

1. Uses Permitted by Right:
  - Single-family detached residences (excluding mobile homes and home parks)
  - Limited agriculture on lots less than ten (10) acres
  - Unlimited agriculture on lots more than ten (10) acres
  - Public uses (excluding the storage of road materials, road equipment and garages, incinerators and landfills of any type)
  - Cluster residential development and planned unit residential development (maximum overall residential density 2 ½ dwelling units per acre) in accordance with Section 501 to 505 of this Local Law.
  - Essential services
  - Accessory services
  - Detached or attached accessory buildings or structures.
2. Uses Permitted by Special Permit:
  - Club, lodge, meeting halls
  - Semi-public uses
  - Accessory uses
  - Home Occupations
3. All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.

## **Section 403 - R4 DISTRICT: Manufactured Home Parks**

1. A Manufactured Home Park cannot be established or created except upon a tract of land used or intended to be used, for the parking of at least 50 mobile homes together with the necessary improvements and facilities upon the land. No lot or berth shall be rented or leased for residential uses of a manufactured home in any such park except for periods of thirty (30) days or more, and no manufactured home shall be admitted to any park unless it can be demonstrated that it meets the requirements of applicable Local Codes and Local Laws and the State Code for construction and installation of manufactured homes.
2. DIMENSIONAL AND LOT LINE SETBACK REQUIREMENTS AND SPECIFICATIONS: All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.  
  
ACCESSORY BUILDING: Accessory storage building shall be installed on a manufactured home lot within. Buildings shall be of aluminum/wood construction and be properly anchored to a concrete base.

COMMUNITY BUILDING – Such a building servicing the Park is permitted.

GENERAL PROVISIONS AND SUPPLEMENT REGULATIONS: (ALSO SEE articles 700 and 800)

GREEN BELT: A manufactured home park shall be surrounded by a landscaped green belt of at least fifty feet (50) from each property line. The required green belt shall not be included in the yard requirements for the individual manufactured home lot or berth.

INTERIOR DRIVES: Interior drives shall be designed so as to prevent blockage of vehicles entering or leaving the site. Drives may be one-way or two-way. All access ways to any public street or highway shall be located at least 200 feet from the intersection of any street lines and shall be designed with 200 feet of clear visibility and shall be maintained in a manner conducive to safe ingress and egress.

ROADWAY WIDTH: All manufactured home lots or berths within the park shall abut upon a road with a right-of-way of 50 feet having a paved all-weather cart way of not less than 36 feet in width for a two-way street or not less than 24 feet in width for a one-way street.

RECREATION: A recreational area equal to at least 1,800 square feet for each manufactured home site shall be set aside and improved according to an approved recreation plan and shall not be located in any required set back, yard, or green belt area.

OFF STREET PARKING: A minimum of two (2) paved off-street parking spaces shall be provided for each mobile home lot.

SERVICE BUILDINGS: All accessory service buildings on the manufactured home park site shall be connected to all mobile home berths by a walkway of not less than three feet in width. Service buildings shall be provided with emergency sanitary facilities of one lavatory and one flush toilet for each sex.

MANUFACTURED HOME STAND: Each manufactured home lot or berth shall contain a manufactured home stand which will not heave, shift or settle unevenly under the weight of the manufactured home as a result of any frost action, poor drainage, vibration or other such forces. Reinforced concrete foundations shall be installed and designed to New York State Building Codes.

SOIL AND GROUND COVER REQUIREMENTS: Exposed ground surfaces in all parts of every manufactured home park shall be paved, or covered with stone screenings, or other solid material, or protected with a vegetative growth that is capable of preventing soil erosion and of eliminating dust.

LIGHTS: All driveways and walkways shall be lighted at night with shielded electric lamps of not less than 100 watts each, spaced at intervals of not more than 100 feet. (See additional Lighting Standards Section 807)

SEWAGE: No on-lot sewage disposal system shall be permitted. All waste from showers, bathtubs, flush toilets, urinals, lavatories, washing machines, and slop sinks in mobile homes and service buildings shall be discharged into a central sewage system.

SKIRTING: The manufactured home park owner shall require each mobile home owner to enclose the bottom portion of the mobile home with either a metal or wood skirt (or other approved material), properly ventilated, within 30 days after arrival in the park.

FUEL SUPPLY AND STORAGE: All fuel oil storage tanks or cylinders shall be securely fastened in place and shall be located at the rear of the manufactured home and not located less than five (5) feet from any manufactured home exit. Supports or standards for fuel oil storage tanks must be of a non-combustible material.

FIRES: Fires shall be allowed only in stoves, incinerators, and other equipment specifically designed for such purposes. Open fires are not permitted.

WATER: All manufactured homes, service and accessory buildings shall be connected to a central water system. Fire hydrants shall be located at least within 500 feet of all manufactured homes, service buildings or accessory structures.

ELECTRIC: Each manufactured home site shall be provided with an approved underground electrical connection system.

RUBBISH: All organic rubbish or storage shall be contained in vermin-proof containers, which shall be screened from view of any public right-of-way or abutting property. Refuse containers shall be located not more than 150 feet away from any mobile home berth. Rubbish collection must be not less than once weekly.

3. PERMITS – It shall be unlawful for any person to construct, alter or extend any manufactured home park unless he holds a valid Permit issued by the Zoning Officer in the name of the person for which the specific construction, alteration or extension is proposed.

All applications for Permits shall be made to the Zoning Officer and shall contain the following:

- a) The name and address of the applicant.
- b) Interest of the applicant in the manufactured home park.
- c) Location and legal description of the mobile home park, including a map showing the physical characteristics of the property (i.e. topography, vegetation, and wetlands.)



- d) Complete plans and specifications of the proposed park showing:
  - i. The area and dimensions of the tract of land;
  - ii. The number, location and size of all manufactured home lots;
  - iii. The location of service buildings and any proposed structures;
  - iv. The location and width of roadways and walkways;
  - v. The location of water and sewer lines and riser pipes;
  - vi. Plans and specifications of all buildings constructed or to be constructed within the manufactured home park;
  - vii. Plans and specifications of the water supply, refuse disposal and sewer disposal facilities;
  - viii. The location and details of lighting and electrical systems;
  - ix. The phasing of the development, if any;
  - x. Such other information as may be required by the Planning Board.

All applications shall be accompanied by a deposit of a fee (as such fees may be established from time to time by the Town Board). The Town Board, upon review by the Planning Board, shall approve, approve with modifications, or disapprove such application and shall report its reasoned decision to the Zoning Officer. When, upon review of the application, the Town Board and the Zoning Officer are satisfied that the proposed plan meets the requirements of this Local Law, a Permit shall be issued.

#### 4. LICENSES

It shall be unlawful for any person to operate any manufactured home park within the limits of the Town of Arcade unless he holds a valid license issued annually on May 1<sup>st</sup> by the Zoning Officer in the name of such person for the specific manufactured home park. All applications for licenses shall be made to the Zoning Officer, who shall issue a license upon compliance by the applicant with the provisions of this Local Law and of other applicable legal requirements.

Every person holding a license shall give notice in writing to the Zoning Officer within 24 hours after having sold, transferred, given away, or otherwise disposed of interest in, or control of, any manufactured home park. Such notice shall include the name and address of the person succeeding to the ownership or control of such manufactured home park. Upon application in writing for transfer of the license and deposit of a fee (as such fees may be established from time to time by the Town Board), the license shall be transferred if the manufactured home park is in compliance with ALL APPLICABLE provisions of this Local Law.

Application for original licenses shall be in writing, signed by the applicant, accompanied by an affidavit of the applicant as to the truth of the application and by the deposit fee (as such fees may be established from time to time by the Town Board) and shall contain: the location and legal description of the mobile home park; and a site plan of the manufactured home park showing all manufactured home lots, structures, roads, walkways and other service facilities.

Applications for renewals of licenses shall be made in writing by the holders of licenses, shall be accompanied by the deposit fee (as such fees may be established from time to time by the Town Board) and shall contain any change in the information submitted since the original license was issued or the latest renewal was granted.

Whenever, upon inspection of any manufactured home park, the Zoning Officer finds that conditions or practices exist which is in violation of any provision of this Local Law or its amendments, the Zoning Officer shall give written notice to the person to whom the license was issued that unless such conditions or practices are corrected within the time specified in the notice, the license shall be suspended. At the end of such time period, the Zoning Officer shall re-inspect the manufactured home park. If the conditions or practices have not been corrected, the Town shall correct the violation and the cost of the correction shall be placed on the owner's tax bill.

Any person who has received notice from the Zoning Officer that he is in violation of his license because of conditions or practices at the manufactured home park, may request and be granted a hearing on the matter before the Town Board. If, however, no petition for such hearing shall have been filed within ten (10) days following the day on which the notice of violation was served, the Town Board shall cause corrections to be made.

## 5. INSPECTION OF MANUFACTURED HOME PARKS

The Zoning Officer shall make any inspections that are necessary to determine satisfactory compliance with this Local Law and regulations issued hereunder. The zoning Officer shall have the power to enter upon any private or public property for the purpose of inspecting and investigating conditions relating to the enforcement of this Local Law and regulations issued hereunder. The Zoning Officer shall have the power to inspect the register containing a record of all residents of the manufactured home park.

It shall be the duty of the owners or occupants of manufactured home parks, and mobile homes contained therein, or of the person in charge thereof, to give the Zoning Officer free access to such premises at reasonable times for the purpose of inspection.

It shall be the duty of every occupant of a manufactured home park to give the owner thereof or his agent or employee, access to any part of such manufactured home park or its premises at reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with this Local Law and regulations issued hereunder, or with any lawful order issued pursuant to the provisions of this Local Law, or with the requirements of the State Code for construction and installation of manufactured homes.

## 6. MISCELLANEOUS REQUIREMENTS

- a) Responsibilities of the Park Management:

The person to whom a license for a manufactured home is issued shall operate the park in compliance with this Local Law and regulations issued hereunder and shall provide adequate supervision to maintain the park, its facilities and equipment in good repair and in a clean and sanitary condition.

It shall be the responsibility of the park management to notify park occupants of all applicable provisions of this Local Law and inform them of their duties and responsibilities under this Local Law and regulations issued hereunder.

The park management shall supervise the placement of each manufactured home on its site, which includes installing all utility connections.

b) Responsibilities of Park Occupants

The park occupant shall comply with all applicable requirements of this Local Law and regulations issued hereunder and shall maintain his site, its facilities and equipment in good repair and in a clean and sanitary condition.

The park occupant shall be responsible for proper placement of his manufactured home on its site and proper installation of all utility connections in accordance with the instructions of the park management.

c) Restrictions on Occupancy

A manufactured home shall not be occupied for dwelling purposes unless it is property placed on a manufactured home site and connected to water, sewage and electrical facilities.

## **Section 404 - AG DISTRICT: Agricultural District**

1. Uses Permitted by Right:

- Cemeteries
- Farm buildings and other farm structures
- Farm Market
- Farm and Garden Supplies/Farm Equipment Sales and Supplies
- Forestry
- Forestry, lumbering and reforestation (excluding mill structures)
- Game farms, fish hatcheries and fishing reserves
- Nurseries, orchards, greenhouse, vineyards
- Outdoor recreational uses, including tennis courts, parks, individual camp sites, picnic groves, golf courses, swimming, fishing and boating facilities (but excluding archery courses, rifle ranges, trap and skeet facilities, hunting reserves and uses with similar safety hazards)

- Cluster residential development, and planned unit residential development (maximum overall density of 4 ½ units per acre) in accordance with Sections 501 to 505 of this Local Law; planned unit light industrial development in accordance with Section 501, 502, 503 and 506 of this Local Law
  - Public uses (excluding storage of road materials, road equipment and garages, and incinerators)
  - Single-family detached residences (excluding mobile homes and mobile home parks) or two-family residences
  - Wildlife sanctuaries, woodland preserves, arboretums
  - Essential services
  - Accessory uses, buildings and structures
  - Residential and Operating Farm Energy Systems
2. Uses Permitted by Special Permit:
- Animal hospitals, animal shelters, dog kennels, stables and facilities for raising insects, birds and fur-bearing animals
  - Airstrips and airports
  - Club, lodge and meeting halls
  - Camping parks
  - Emergency temporary housing (manufactured housing) for victims of natural disaster (i.e. flood, fire, etc.) 1 year maximum
  - Archery courses, rifle ranges, trap and skeet facilities, hunting reserves and similar uses
  - Gravel pits, mill structures
  - Junkyards and Dumps
  - Semi-Public uses
  - Home occupations
  - Multi- family residences (Apartment House) with public water only
  - Regulation of Commercial and Industrial Energy Production/Conversion Systems (CEPCS)
  - Worker Housing (dedicated to the Farm it serves on the same lot)
  - Telecommunication Facility
3. All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.

**Section 405 - HC DISTRICT: Highway Commercial (Located on State Highway Only)**

1. Uses Permitted by Right:
- Agricultural implement sales and service
  - Antique and art shops
  - Automobile sales and related sales or service
  - Baker, confectionery and ice cream shops, including the baking and processing of food products when prepared for retail use on premises only

- Banks and financial institutions
- Beverage stores including the sale of beer and liquor
- Building materials, retail sales
- Catalog store
- Club, lodge or meeting hall
- Department or variety stores
- Drug stores
- Eating and drinking establishments
- Existing single-family residences and customary accessory structures and buildings
- Feed and seed stores
- Florists shops
- Food stores and food lockers
- Furniture and appliance sales and service, but not including assembly or manufacture
- Gift and novelty stores
- Hardware, paint, glass and wallpaper stores
- Hotels, motels and camping parks
- Indoor and outdoor recreation, including bowling alleys, pool halls, dance halls, amusement centers, amusement parks, miniature golf and driving ranges
- Laundries, laundrettes, cleaning and pressing establishments
- Libraries, museums, galleries
- Mobile home and trailer sales and service
- Monument sales
- Mortuaries and funeral parlors
- Motor vehicle service station in accordance with Section 802
- Newsstand
- Nurseries, greenhouses, garden supplies
- Offices
- Off-street parking
- Pet stores
- Personal service
- Photography studios
- Plumbing, heating and roofing supply retail sales
- Public uses (excluding the storage of road material, road equipment and garages, incinerators and landfills of any type)
- Repair services of household items
- Rental stores
- Rooming and boarding houses
- Schools or places of instruction for music, dancing, reading, languages, elocution and similar objects
- Theaters
- Retail sales and service establishments not more objectionable by reason of noise, fumes, vibration, or lights than any permitted use listed above
- Essential services
- Accessory uses, building and structures

2. Uses Permitted by Special Permit
  - Animal hospitals and shelters
  - Dog kennels
  - Accessory uses
  - Home occupations
4. All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.

#### **Section 406 - LI DISTRICT: Light Industrial**

1. Uses Permitted by Right:
  - Automobile painting, upholstering motor and body work
  - Bottle works
  - Building materials sales yard
  - Building contractor shops
  - Carpenter and cabinet maker
  - Electronic and small parts assembly and/or manufacture
  - Laboratories and research facilities
  - Locksmith
  - Machine shops
  - Manufacture, compounding, processing or treatment of such products as: bakery goods, confectioneries, cosmetics, dairy products, drugs, ice, perfumes, pharmaceuticals, toiletries and food products (except the following: fish, sauerkraut, pickles, vinegar, yeast and the rendering of oils and fats)
  - Manufacture, fabrication, compounding, assembling, treatment, processing of articles of merchandise from the following previously prepared materials: cellophane, ceramics, cloth, film, fiber, glass, leather, paper and paper board, plastic, precious stones, shell, straw, textiles, yarn, paint, metal, concrete and wood
  - Metal smiths
  - Public uses
  - Repair shop
  - Storage of materials, supplies and equipment in accordance with Section 806
  - Wholesale business
  - Essential services
  - Accessory uses, buildings and structures
2. Uses Permitted by Special Permit:
  - Planned unit light industrial development in accordance with Section 506
  - Telecommunication Facility
  - Residential and Working Farm Energy System
3. All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.

## **Section 407 - LI/HC DISTRICT: Light Industrial/Highway Commercial**

### **1. Uses Permitted by Right:**

- Agricultural implement sales and service
- Antique shop
- Automobile sales and service
- Automobile painting, upholstering, motor and body work
- Baker, confectionery and ice cream shop, including the baking and processing of food products when prepared for retail use on premises only
- Banks and financial institutions
- Bottling works
- Building contractor shop
- Building materials, retail sales
- Building material sales yard
- Carpenter and cabinet maker
- Car wash
- Catalog store
- Club, lodge or meeting hall
- Department or variety store
- Distribution Center
- Drug store
- Eating and drinking establishment
- Electronic and small parts assembly and/or manufacture
- Essential services
- Feed and seed store
- Florist shop
- Food store and food lockers
- Furniture and appliance sale and service (including assembly and/or manufacture)
- Gift and novelty store
- Hardware, paint, glass and wallpaper store
- Hotel, motel and camping park
- Indoor and outdoor recreation, including bowling alley, pool hall, dance hall, amusement park, miniature golf and/or driving range
- Lawn or garden equipment sale and service
- Laboratory and/or research facilities
- Laundries, laundrettes, cleaning and pressing establishment
- Libraries, museums, art galleries
- Locksmith
- Machine shop
- Manufacture, compounding, processing or treatment of such products as bakery goods, confectioneries, cosmetics, dairy products, drugs, ice, perfumes, pharmaceuticals, toiletries and food products (except the following: fish, sauerkraut, pickles, vinegar, yeast and the rendering of oils and fats)

- Manufacture, fabrication, compounding, assembling, treatment of previously prepared material: cellophane, ceramics, cloth, film, fiber, straw, textiles, yarn, paint, metal, concrete and wood
  - Metal smith
  - Mini-storage units
  - Mobile home and trailer sales and service
  - Monument sales
  - Mortuary and funeral parlor
  - Motor vehicle service station in accordance with Section 802 of the current Zoning Law
  - Newsstand
  - Nurseries, greenhouse, garden supply
  - Offices
  - Off-street parking
  - Pet store
  - Personal service
  - Photography studio
  - Public uses
  - Planned unit light industrial development in accordance with Section 506 of the current Zoning Law
  - Plumbing, heating and roofing supply retail sales
  - Railroad station
  - Recreation vehicle sales and/or service
  - Repair service of household items
  - Repair shop
  - Residential – Single Family detached residence
  - Retail store
  - School or place of instruction for music, dance, reading, languages, elocution and similar subjects
  - Storage of materials, supplies and equipment in accordance with Section 806 of the current Zoning Law
  - Theater, walk-in and drive-in
  - Trucking terminal
  - Warehouse
  - Wholesale business
  - Accessory uses, buildings and structures
2. Uses Permitted by Special Permit
- Residential and Working Farm Energy Systems (Subject to the provisions of Section 817)
  - Telecommunication Facility (Subject to the provisions of Section 821)

### **Commercial Lot Size**

All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.



### **Residential Lot Size**

All dimensional and lot-line setback requirements and specifications are contained in the Bulk and Area Dimensional Tables within Section 1600.

## **ARTICLE 500 - CLUSTER AND PLANNED UNIT DEVELOPMENTS**

### **Section 501 - PURPOSE**

1. The purpose of the procedures, standards, and controls for the cluster Residential Development is to provide a means to take advantage of natural physical features of an area by permitting reductions in bulk and area requirements for individual lots and to provide compensating areas of open space ancillary to dwelling units.
2. The purpose of the procedures, standards, and controls for PLANNED UNIT RESIDENTIAL DEVELOPMENT is to encourage innovation in residential development which will provide housing of greater variety in type, design, and site planning including the conservation of maximum open space ancillary to the housing units. Control is primarily achieved through the establishment of an overall density in terms of a maximum number of dwelling units per acre.
3. The purpose of the procedures, standards, and controls for PLANNED UNIT INDUSTRIAL DEVELOPMENT is to provide industrial parks. Because of the proximity of such uses to residential and commercial uses, restrictions are imposed to ensure both attractive and useful surroundings. Building site locations are an essential aspect of such parks and must be carefully integrated into a “park-like” setting.

### **Section 502 - PROCEDURES**

- A. Application for establishment of cluster and all types of planned unit developments shall be made to the Zoning Officer. The Zoning Officer shall refer the application to the Planning Board for consideration.
- B. The Planning Board shall require the applicant to submit documentation prepared by a licensed engineer, indicating conformance to all design and improvement standards required by this Local Law. Such documentation shall include, but is not limited to the following:

Overall development plans showing:

1. Kind, location, occupancy capacity of structures, bulk and uses;
2. General floor plan of building;

3. Location and identification of open spaces, streets and all other means for pedestrian and vehicular circulation, parks, recreational areas, and other non-building areas, provisions for automobile parking, and loading;
4. General landscape plan;
5. General location and nature of public and private utilities (including underground utilities) and other community facilities and services (including maintenance facilities).

The Applicant shall include such other pertinent information, as the Planning Board shall prescribe.

Written statement of:

1. Facts concerning the suitability of the site, the proposed density, proposed uses, and facilities for the development in accordance with the provisions of this Local Law;
2. Procedures and plans for the provision of services, maintenance, and continued protection of the cluster or planned unit development and the adjoining territory;
3. Disposition of open-spaced lands and provisions for maintenance and control of the open-spaced land (all open space must be deeded to the municipality, and special assessments will be required for maintenance);
4. The Planning Board shall approve, approve with conditions, or disapprove the application; and shall report its decision to the Town Board. If the application is disapproved the Zoning Officers shall inform the applicant of the disapproval and shall submit to the applicant a written statement of the reasons for the disapproval.
5. If the Planning Board approves, or approves with conditions, the application shall be forwarded to the Town Board for its endorsement.
6. No Building Permit for a cluster or any of the planned unit developments shall be issued by the Zoning Officer until the Planning Board and the Town Board have held separate public hearings and approved (or approved with conditions) the application.

**Section 503 - OVERLAP DISTRICTS** - In the event a cluster or planned unit development is proposed on a tract or parcel of land under the requirements and regulations of two applicable zoning districts, the requirements of the most restrictive district shall prevail.

## **Section 504 - CLUSTER RESIDENTIAL DEVELOPMENT**

1. Any owner of not less than five (5) contiguous acres of land located in a district permitting cluster residential development may request in writing to the Zoning Officer that the regulations of cluster residential development apply to his property.
2. Uses permitted shall be the uses permitted in the district in which the cluster residential development is located.
3. The regulations of the district in which the cluster residential development is located shall be observed and maintained with the following exceptions:
  - a. The minimum lot area as established in the district in which the cluster residential development is located may be reduced by twenty (20%) percent;
  - b. The minimum lot width at the building line may be reduced by ten (10%) percent;
  - c. The minimum front yard may be reduced to not less than fifty (50) feet;
  - d. The minimum rear yard may be reduced to not less than five (5) feet where the lot abuts common-space land;
  - e. The maximum lot coverage shall be increased by no more than five (5%) percent of the resulting lot area;
  - f. The minimum side yards may be reduced by not more than three (3) feet per side;
  - g. All lots within the cluster residential development area shall face and be serviced by existing or new streets located within the cluster residential development area, but shall not face on collector-type or arterial streets;
  - h. Open space land shall be set aside for the common use and enjoyment of all residents in the cluster residential development. In general, the land set aside for permanent open-space shall be the area differential between the regulations and requirements of the district and Section 504 of this Local Law. Access to the open space lands must be convenient to all residents.
  - i. Applicable sections of General Provisions (Article 700) and Supplemental Regulations (Article 800) of this Local Law shall be followed.

## **Section 505 - PLANNED UNIT RESIDENTIAL DEVELOPMENT**

Any owner of not less than ten (10) contiguous acres of land in a district permitting planned unit residential development may request in writing to the Zoning Officer that the regulations of planned unit residential development apply to his property.

1. The following uses are permitted in a planned unit residential development:
  - Single-family detached residences (excluding mobile homes)
  - Two-family residences
  - Multi-family residences (including town houses and apartment house)
  - Open space designed primarily for the benefit of the residents of the planned unit residential development;
  - Public and semi-public uses
  - Essential services; and
  - Uses accessory to the above with the exception that home occupations are not permitted.
2. Within a planned unit residential development the following percentage of the Total land area may be devoted to these specified uses:
  - a. A maximum of eight (80%) percent for the residential uses and other permitted uses, excluding the common and public open space and the spaces devoted to streets and parking exclusively servicing such open space or recreation use. Said maximum shall include all of the recreational, playground, and athletic activity areas, which may be part of a new school site.
  - b. A minimum of twenty (20%) percent for common or public open space. This area shall include space devoted to streets and parking, provided such facilities are within and service exclusively an open space area.
3. Within the planned unit residential developments, the following regulations shall apply:
  - a. The overall density of all the land within the planned unit residential development shall not exceed dwelling units per acre as stated under the regulations for the district in which the development is located.
  - b. That portion of the planned unit residential development that is devoted to multi-family residence shall be developed at a density of not to exceed four (4) dwelling units per acre.
  - c. In residential areas, streets shall be designed to discourage through traffic.
  - d. Open space land shall be set aside for the common use and enjoyment of all residents of the area. Open space must be designed so that access to open space lands is convenient to all residents of the planned unit residential development.
  - e. No building shall exceed forty feet (40) in height in residential areas.
  - f. The minimum front yard requirement shall be 35 feet (35) for multi-family residences and 35 feet (35) for all other types of residences, buildings and parking areas.

- g. Residential buildings shall be designed to avoid monotonous patterns of construction, or repetitive spaces or modules between buildings.
- 4. Additional requirements that apply to town houses and apartment houses:
  - a. There shall be no continuous group of town houses consisting of more than ten (10) dwelling units.
  - b. For the purpose of avoiding developments resembling what are customarily referred to as “row Houses”, there shall be within any contiguous group of six (6) or more town house units, at least three (3) architectural designs having distinctly different exterior elevations. No more than four (4) continuous town house units shall have the same front setback. Variations in front setbacks shall be at least four (4) feet.
  - c. The length of an apartment house shall not exceed four (4) times its width.
- 5. The following regulations shall apply to sewage disposal and water systems:
  - a. No on-lot sewage disposal system shall be permitted. All sewage shall be discharged into a central sewage system.
  - b. All areas of the planned residential unit development shall be connected to a central water supply system.
- 6. Applicable sections of the General Provisions (Article 700) and the Supplemental Regulations (Article 800) of this Local Law shall be followed.

#### **Section 506 - PLANNED UNIT LIGHT INDUSTRIAL DEVELOPMENT**

- 1. Any owner of not less than forty (40) contiguous acres of land in a district permitting planned unit light industrial development may request in writing to the Zoning Officer that the regulations of planned unit light industrial development apply to his property. Every planned unit light industrial development shall contain two or more units of permitted use.
- 2. The following uses are permitted in a planned unit light industrial development:
  - a. Automobile painting, upholstering, motor and body work
  - b. Bottling works
  - c. Building materials sales yard
  - d. Building contractor shops

- e. Carpenter and Cabinet maker
- f. Electronic and small parts assembly manufacture
- g. Laboratories
- h. Locksmith
- i. Machine shops
  
- j. Manufacture, compounding, processing or treatment of such products as: bakery goods, confectioneries, cosmetics, dairy products, drugs, ice, perfumes, pharmaceuticals, toiletries and food products except the following: fish, sauerkraut, pickles, vinegar, yeast and the rendering of oils and fats
- k. Manufacture, fabrication, compounding, assembling, treatment, or cutting of articles of merchandise from the following previously prepared materials: cellophane, ceramics, cloth, film, fiber, glass, leather, paper and paperboard, plastic, precious stones, shells, straw, textiles, yarn, paint, metal, wood and concrete
- l. Metal smiths
- m. Motor vehicle service stations in accordance with Section 802 of this Local Law
- n. Motor vehicle terminals and storage
- o. Public uses
- p. Radio and television towers
- q. Repair shop
- r. Indoor storage of materials, supplies and equipment
- s. Wholesale businesses
- t. Essential services
- u. Uses accessory to the above industrial uses
  
- C. A minimum of thirty percent (30%) of the tract in the planned unit light industrial development shall be in common open space or public uses.
  
- D. A maximum of seventy percent (70%) of the tract in the planned unit industrial development shall be devoted to industrial building lots. This percentage includes all required parking, loading and open spaces between buildings.
  - a. The minimum tract width shall be 1,000 feet.
  - b. The maximum tract coverage shall be fifty percent (50%).
  - c. The minimum tract area shall be 40 acres.
  - d. The minimum tract side yard dimensions shall be 100 feet (100) each side.
  - e. The minimum tract front yard dimension shall be 100 feet (100).
  - f. The minimum tract rear yard dimension shall be 100 feet (100).
  - g. The minimum distance between buildings shall be 40 feet
  - h. The minimum industrial building lot area shall be 43,560 square feet (1 acre).
  - i. The maximum building height shall be 40 feet.
  - j. The maximum building length shall be 400 feet.

- k. The minimum distance between highway access points and curb cuts shall be 400 feet.
- E. Sewage Disposal Method: No on-lot sewage disposal shall be permitted. All sewage shall be discharged into a central sewerage system.
- F. Water Supply: All areas of the development shall be connected to a central water supply system.
- G. Note: Applicable sections of General Provision (Article 700) and Supplemental Regulations (Article 800) of this Local Law shall be followed.

**ARTICLE 600** This space reserved for future use

## **ARTICLE 700 – GENERAL PROVISIONS**

**Section 701 – ACCESS TO A PUBLIC STREET** - Every building shall be constructed or erected upon a lot or parcel of land that abuts upon a public street, unless there is a permanent easement of access to a public street.

**Section 702 – CONTIGUOUS PARCELS** – Two or more adjacent parcels of land (held in one ownership) shall be used as a lot for only one permitted use, if each separate parcel is too small to meet the area or dimension requirements of the zoning district.

**Section 703 – CORNER LOTS** – Both street sides of a corner lot shall be treated as front yards in the application of bulk and area requirements.

### **Section 704 – HEIGHT**

1. The height limitation of this Local Law shall not apply to church spires, belfries, cupolas, and domes (not used for human occupancy); nor to chimneys, ventilators, skylights, water tanks, bulkhead, similar features and necessary mechanical appurtenances usually carried above the roofline. Such features, however, shall be erected only to such height as is necessary to accomplish the purpose they are to serve, and shall not exceed in area the cross-sectional area of twenty (20%) percent of the ground floor area of the building.
2. The provisions of this Local Law shall not prevent the erection above the building height limit of a parapet wall or cornice for ornament (and without windows) extending above such height limit not more than five (5) feet.

### **Section 705 – EXISTING UNDEVELOPED UNDERSIZED LOTS OF RECORD**

1. Any record lot held in single and separate ownership prior to the adoption of this Local Law and whose area/or width and/or depth are less than the minimum requirements specified herein for the zoning district in which such lot is located may be considered as complying with this Local Law and no variance therefore shall be required, provided that:
  - a. Such lots do not adjoin any other lot or lots held by the same owner, the aggregate area of which lots is equal to or greater than the minimum lot area required for the district;
  - b. Provided, that the minimum yard dimensions are met;
  - c. Such undersized non-conforming lots may be used for not more than one single family dwelling if such lot is located in a zoning district in which residential uses are permitted;
  - d. A lot of non-conforming size may be subdivided if each and every subdivision of such lot is purchased by the owner or owners of the adjoining properties to increase the size of said owner's property or owners' properties.

**Section 706 – TOPSOIL** – A person, firm or corporation shall not strip, excavate or otherwise remove topsoil for use other than on the premises, unless it is replenished or sufficient amounts are left to support future development needs. No stripping, excavation, or other removal of topsoil shall be such that steep slopes are created, ground water runoff is trapped, or erosion is caused.

**Section 707 – VISIBILITY** – On a corner lot in any district, no fence, wall, hedge or other structure or planting more than three feet in height shall be erected, placed, or maintained within the triangular area formed by the intersecting center lines and a straight line joining the center lines at points measured 50 feet along each center line from their point of intersection. The requirements of this section shall not be deemed to prohibit the construction of any necessary retaining wall.

**Section 708 – YARDS** – A paved terrace shall not be considered in the determination of yard sizes or lot coverage unless it is roofed or has walls, parapets or other forms of enclosure. A paved terrace may have, however, an open guard railing not over three (3) feet high. No paved terrace shall project into any yard to a point closer than four (4) feet from any lot line.

Any open or enclosed porch shall be considered a part of the building in the determination of the size of yard or lot coverage.

The space in any required yard shall be open and unobstructed except for the ordinary projection of windowsills, brick courses, cornices, eaves and other architectural features provided; however, that such features shall not project more than three (3) feet into any required yard.

Bay windows, including their cornices and eaves, may project into any required yard not more than three (3) feet.



Open fire escapes may extend into any required yard not more than four feet (4) and six (6) inches.

**Section 709 – INTERPRETATION OF PERMITTED USES** – When a use is not specifically listed as a “Use by Right” or a “Use by Special Permit” within a zoning district, it shall be assumed to be a prohibited use, unless it is determined in a written decision by the Zoning Board of Appeals that said use is similar to permitted uses and not inherently a nuisance, menace, or danger to the health, safety or welfare of the residents of the community.

**Section 710 – FENCES** –Fences, as envisioned in this Local Law include: man-made walls or barriers to access property; or, hedges or plantings used as a visual screen or access barrier. Fences must be kept in good repair, with the good side (finished side) out.

Allowed in all Districts, however, the controls stated in Section 707 of this Local Law must be observed for corner lots and the following provisions:

- a. Maximum height of 6 feet in rear and side yards, 3 feet maximum height in all front yards;
  - b. All fences exceeding 6 feet in height are subject to Planning Board approval;
  - c. Commercial and Industrial uses subject to Planning Board approval.
1. Exceptions:
    - a. Fences for Tennis Courts in all Districts shall have a maximum height of twelve feet;
    - b. Fences utilized for farming purposes such as, but not limited to, containment of livestock, horses, chickens, shall be exempt from the provisions of this Section.

## **ARTICLE 800 – SUPPLEMENTAL REGULATIONS**

**Section 801 – PRIVATE SWIMMING POOLS AND HOT TUBS AS AN ACCESSORY USE** – A private swimming pool or hot tub containing water deeper than two (2) feet that is installed or maintained as an accessory use in a residential district, shall meet the following requirements: A Building Permit from the Wyoming County Building Department is also required.

1. All swimming pools and hot tubs more than 2 feet deep and all in-ground pools shall be completely enclosed by a security fence not less than four (4) feet in height, with all fence gates or doors equipped with self-closing and self-latching devices capable of keeping fence gates or doors securely closed at all times when not in actual use. Such devices must be approved by the Wyoming County Building Department.
2. Private Pools and hot tubs in the Town of Arcade shall be maintained in a manner sufficient to meet the bacterial standards established by the provisions of the New York State Sanitary Code related to public swimming pools.
3. Pools and hot tubs shall be equipped with an integral filtration system and filter pumps or other mechanical devices which shall be so located and constructed as not to interfere with the peace, comfort and repose of the occupants of any adjoining property.
4. A Zoning Permit shall not be granted for the installation of any swimming pool, unless provisions for the drainage of the pool are adequate and will not interfere with the public water system, or existing sanitary facilities.

## **Section 802 – PUBLIC GARAGES, MOTOR VEHICULAR SERVICE STATIONS AND COLLISION SHOPS**

1. No public garage, collision shop or motor vehicle service station, or private garage for more than five (5) cars shall have a vehicular entrance closer than 200 feet to an entrance to a church, school, theater, hospital, public park, playground or fire station or other places of public assemblage. Such measurement shall be taken as the shortest distance between such entrances across the street if the entrances are on opposite sides of the street; and along the street frontage if both entrances are on the same side of the street within the same block.
2. All motor vehicle service stations shall be so arranged and all gasoline pumps shall be so placed, as to provide all required servicing on the premises and outside the public way. No gasoline pump shall be placed closer to any side property line than fifty (50) feet.
3. No inoperative motor vehicles shall be kept outside of the structure of motor vehicle service stations or collision shops for longer than two (2) weeks.

4. All waste material, motors and motor vehicle or vehicle parts, will be stored within a structure or enclosed within fencing so as not to be visible from off the property.

### **Section 803 – OFF-STREET PARKING**

1. Off-street parking space(s) with a proper and safe access shall be provided within a structure or in the open to serve adequately the uses on each lot within the district. Any application for a building permit for a new or enlarged building, structure or change in use shall include with it a plot plan, drawn to scale and fully dimensioned showing any parking or loading and unloading facilities, in compliance with the regulations of this Local Law.
2. A required off-street parking space shall be an area of not less than one hundred sixty-two (162) square feet, nor less than eight and one-half (8 ½) feet wide by nineteen (19) feet long (exclusive of access drives or aisles, ramps, columns, or office and work areas) accessible from streets, alleys, private driveways, or aisles leading to streets or alleys; for the storage or parking of passenger automobiles or commercial vehicles under one and one-half (1 ½) ton capacity. Aisles between vehicular parking spaces shall not be less than twenty (20) feet in width when serving automobiles parked perpendicular to the aisles and accommodating two-way traffic.
3. Parking facilities shall be designed with appropriate means of vehicular access to a street or alley in such a manner as will least interfere with the movement of traffic. No driveway or entrance in any district shall exceed twenty-five (25) feet in width.
4. No parking space (nor portion thereof) in any residential district shall be located within a required front yard area, except in an established driveway. NO parking spaces, nor portion thereof, established on a lot without a building, shall be located closer to any street line than the front yard set back required for the zoning district in which it is located.
5. All off-street parking spaces, except those accessory to single-family dwellings, shall be improved with a compacted base and surfaced with some all-weather dustless material.
6. A ten foot wide planted buffer around parking or loading areas shall be required for any non-residential use adjacent to a residence.
7. The parking space requirements for each use that is erected, enlarged or altered following the date this Local Law becomes effective shall be in accordance with the following table; and, shall be provided and satisfactorily maintained by the owner of the affected property.

**At Least One Parking Space for Each of the Following:**

| USES                                                                                        | CLUSTER AND ALL TYPES OF<br>PLANNED UNIT DEVELOPMENTS                 | IN ALL OTHER AREAS                                                      |
|---------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------------------------------------------------------------|
| One Family Residence                                                                        | ½ Dwelling Unit                                                       | ½ Dwelling Unit                                                         |
| Two Family Residence                                                                        | ½ Dwelling Unit                                                       | ½ Dwelling Unit                                                         |
| Multi-Family Residence                                                                      | ½ Dwelling Unit                                                       | ½ Dwelling Unit                                                         |
| Church                                                                                      | 3 Fixed Seats                                                         | 5 Fixed Seats                                                           |
| Hospital or Homes for Aged                                                                  | 1 In-Patient Bed                                                      | 1 In-Patient Bed                                                        |
| Elementary School                                                                           | 15 Students                                                           | 20 Students                                                             |
| High School or College                                                                      | 10 Students                                                           | 12 Students                                                             |
| Places of Assembly<br>(including Convention Hall,<br>Dance Hall, Rink, Theater)             | 100 Sq. Ft. used for Assembly                                         | 200 Sq. Ft. used for Assembly                                           |
| Club, Lodge (without sleeping<br>accommodations)                                            | 2 Members                                                             | 4 Members                                                               |
| Places Providing Sleeping<br>Accommodations (including<br>Hotels, Motels, Tourist<br>Homes) | Sleeping Unit                                                         | Sleeping Unit                                                           |
| Mortuaries or Funeral Parlor                                                                | 1/12 Viewing Room<br>plus 1 for every employee                        | 1/8 Viewing Room<br>plus 1 for every employee                           |
| Offices, Banks                                                                              | 200 Sq. Ft. Floor Area                                                | 400 Sq. Ft. Floor Area                                                  |
| Food Market                                                                                 | 100 Sq. Ft. Floor Area                                                | 200 Sq. Ft. Floor Area                                                  |
| Eating and Drinking<br>Establishments                                                       | 4 Seats or 1 for each 100 Sq. Ft.<br>Floor Area, whichever is greater | 4 Seat or 1 for each 200 Sq.<br>Ft. Floor Area, whichever<br>is greater |
| Drive-up Service Windows                                                                    | 10 Queue spaces minimum                                               | 10 Queue spaces minimum                                                 |
| Bowling Alley                                                                               | ½ Alley                                                               | ½ Alley                                                                 |
| Other Commercial                                                                            | 150 Sq. Ft. Sales Area                                                | 300 Sq. Ft. Sales Area                                                  |
| Industrial                                                                                  | Employee (maximum work shift)                                         | 2 Employees (maximum<br>work shift)                                     |

## **Section 804 – LOADING AND UNLOADING**

1. Off-street loading and/or unloading spaces for commercial and/or industrial vehicles shall be provided one acre lot where it is deemed that such facilities are necessary to serve the use or uses on the lot. The number of loading and/or unloading spaces required for commercial and/or industrial vehicles shall be in addition to the off-street parking requirements listed in the section above. Each loading and/or unloading space shall be at least fourteen (14) feet wide, sixty (60) feet long; shall have at least a fifteen (15) foot vertical clearance; shall have a sixty (60) foot maneuvering area; shall have an all-weather dust free surface to provide safe and convenient access during all seasons; and shall not be constructed between the street right-of-way line and the building set back line.
2. Required off-street parking space shall not be used for loading and/or unloading purposes except during hours when business operations are suspended.
3. Loading and/or unloading facilities shall be designed so that trucks need not back in or out of, nor park in, any public right-of-way.
4. No truck shall be allowed to block a right-of-way, an automobile parking area, or in any way prohibit the effective flow of persons or vehicles.
5. At least one (1) off-street loading and/or unloading space shall be provided for all commercial and industrial establishments in excess of 3,500 square feet of floor area.

## **Section 805 – SIGNS**

1. Temporary signs are allowed in all districts. Other signs (unless otherwise stated in this Local Law) are permitted only when accessory to use(s) permitted on premises in the district in which located. Off-premises advertising signs (billboards) are prohibited in all districts except the Highway Commercial District.
2. Wherever located and whatever their nature, signs shall conform to the following regulations:

CONDITION: Every permitted sign must be constructed of durable material and kept in good condition and repair. Any sign, which is allowed to become dilapidated, may be removed at the expense of the owner or lessee of the property on which it is located.

ELECTRIC BULBS: All electrical bulbs shall be shielded from view by a globe or other visible barrier. (See additional Lighting Standards Section 807)

ELECTRICAL INTERFERENCE: No sign or the electrical apparatus associated with the sign shall cause any electrical interference with the normal operation of electrical appliances of adjacent property owners or tenants.

INGRESS, EGRESS: No sign shall be erected or located in such a way that would prevent free ingress or egress from any window, door or fire escape.

LIGHT, AIR: No sign shall be placed in such a position that it would obscure light or air from a building.

ATTACHMENTS: No signs shall be permitted which are pasted, stapled, or otherwise attached to public utility poles or trees within the street right-of-way line.

TRAFFIC: No sign shall be so erected, located, or maintained that might interfere with, or be confused with, or obstruct the view of any official traffic sign, traffic signal, traffic marking, or block the view of traffic at ingress or egress points to a property. Such interference must not result from the color, shape or location of the sign, supports, or lights used in conjunction with the sign.

GLARE: Illuminating arrangements for signs shall be such that the light is concentrated upon the sign and there shall be no glare cast upon the street, the sidewalk or adjacent property. (See additional Lighting Standards Section 807)

FLASHING SIGN: No sign shall be a flashing sign. Flashing signs shall be defined as meaning any sign that: flashes by giving off or reflecting light; or moves, or revolves in any way; or has flowing or moving lights; or alternates in any way its color, shape or intensity of illumination.

ABUTTING SIGN: No sign in a commercial or industrial district shall be placed to face an abutting residential district unless authorized by a Special Permit.

CONTRARY TO ZONING: No signs shall be erected containing information that states or implies that the property may be used for any purpose not permitted under the provisions of this Zoning Law.

CESSATION: If a use ceases for a period of six (6) calendar months, signs must be removed. Such signs may be removed by the Municipality at the expense of the owner and/or lessee of the property on which the sign is located.

WITHIN ROAD: No sign shall extend into a street or road right-of-way except in the NC (Neighborhood Commercial) District. No sign in the NC (Neighborhood Commercial) District shall extend closer than five (5) feet to the paved portion of a street, road or highway.

SET BACKS, YARDS: In matters of set back and required yards, free- standing signs shall be regarded as buildings and shall comply with all provisions of this Local Law. Regardless of other provisions of this Law relating to set back and yard requirements, no free standing sign will be permitted to be located, erected or maintained less than twenty (20) feet from the edge of the paving of any street, road or alley: nor less than five (5) feet from the inside (building side) of any sidewalk

HEIGHT: No sign shall be more than forty (40) feet in height measured from the surface of the earth to the highest element of the sign or its supports.

SIGNS ON VEHICLES: Vehicles (including trailers or carts) bearing signs more than four (4) square feet in area shall not be permitted to be parked (other than for loading or unloading) within the front yard area in any zoning district.

BUILDING SIGNS: Signs attached to a building or buildings shall not project more than forty-eight (48) inches from the wall upon which the sign is attached. No signs projecting more than twelve (12) inches from the wall of a building shall be greater than twelve (12) square feet in size, nor weight more than one hundred-fifty (150) pounds, nor be less than eight (8) feet above the surface of the ground. Signs must be attached to parapet walls or other wall surfaces made a part of the main structure. Signs erected on a separate superstructure attached to the roof of a building or to any other part of a building above the roofline. Signs extending over sidewalks shall have at least two (2) individual steel attachments to the buildings or pole supporting the sign.

3. The following regulations apply to specific kinds of signs:

TEMPORARY SIGN: No real estate “for sale or rent” signs shall exceed six (6) square feet in area. No more than two (2) such signs shall be allowed per permitted use. All other temporary signs shall not exceed thirty-two (32) square feet in area; and, shall be removed immediately upon the completion of event described on the temporary sign. The site or building on which the sign was erected shall be restored to its original (or better) condition upon removal of the temporary sign. Signs advertising “sale” items are not to be considered as temporary signs.

INSTRUCTIONAL SIGNS: Instructional signs may be represented by free standing signs or building signs each of which shall not exceed four (4) square feet in area.

IDENTIFICATION AND BUSINESS SIGNS: In commercial and industrial districts, identification and business name signs for each commercial or industrial use shall be limited to a total area of one hundred (100) square feet in size. In the case of corner lots, maximum sign areas may be doubled; however, the individual sign area must remain at a maximum of one hundred (100) square feet.

ADVERTISING SIGNS (BILLBOARDS): Advertising signs (billboards) are prohibited in all zoning districts except the Highway Commercial District. Within the Highway Commercial District, only one advertising sign is permitted per parcel or lot. The maximum sign area shall be one hundred (100) square feet. All restrictions in regard to set back, yard space, height, etc., established for the Highway Commercial District structures or building should apply to any advertising sign or billboard.

PUBLIC SERVICE SIGNS: Signs providing information of general use to the public, such as time, temperature, news, etc., provided that any advertising thereon

shall be limited by the other terms and conditions of this Section. Objections shall not be raised to such signs because information is displayed by the means of on-off illumination.

4. No sign shall be erected or altered until a Permit has been issued by the Zoning Officer. No Sign Permit shall be issued by the Zoning Officer that would be in violation of any provision of this Local Law unless so granted by written approval of the Zoning Board of Appeals.

The application for a Sign Permit shall be made on a form obtained from the Zoning Officer. It shall include a statement of the material to be used, an estimated cost and the location of the proposed sign. Such Permit shall be valid for a six-month (6) period only. If the sign has not been erected or altered with the six-month (6) period, reapplication for a Sign Permit will be required.

All applications for a Sign Permit shall be accompanied by a drawing of the sign which shows that exact size and actual dimensions of the sign. The drawing shall show the location of the sign on the property or structure, and must show the relationship of the sign to adjacent properties, street right-of-way lines, and ingress or egress points to the property or adjacent properties; along with such other information that in the opinion of the Zoning Officer is necessary to determine and provide for the enforcement of this Local Law.

One copy of the approved application shall be returned to the applicant and shall be deemed granted by the Zoning Officer after the payment of the Permit fee (as such fees may be established from time to time by the Town Board). A second copy of the approved application shall be retained in the files of the Zoning Officer.

5. No sign, whether new or existing, shall hereafter be erected or altered except in conformity with the provisions of this Local Law. All signs must be kept clean, neatly painted and free from all hazards such as faulty wiring, loose fastenings, etc., and shall be maintained in a safe condition. Any alteration to an existing sign requires a new permit and must be in conformity with the provisions of this Local Law.

In the event of a violation of this section of this Local Law, the Zoning Officer shall give written or personal notice, specifying the violation to the owner of the sign and/or owner of the land upon which the sign is located. The owner of the sign and/or the owner of the land on which the sign is located shall cause the sign to be brought into conformance with this Local Law, or shall remove the sign within thirty (30) days, from the date of notice. If the sign is not made to conform with the provisions of this Local Law or removed within the thirty (3) days, the Zoning Officer shall revoke the Sign Permit and have the sign removed by the Municipality.



The costs incurred by the Municipality for the removal of the sign shall be assessed against the land or building on which the sign is located.

The Zoning Officer may cause any sign that is a source of immediate peril to persons or property to be removed summarily and without notice.

Any sign that was erected prior to the effective date of this Local Law that does not conform to the provisions of this Local Law shall be granted a temporary Permit for a period of five (5) years. Upon the expiration of the temporary Permit, the sign must be made to conform to this Local Law or shall be removed.

In the event that any business or activity ceases to operate, any and all signs, on and off premises must be removed within 30 days of ceasing activity.

6. SIGN CONTROLS BY ZONING DISTRICTS: The following controls for sign area, maximum height above the ground, and yard setbacks by zoning district shall be required.

| Zoning District | Maximum Sign Area | Maximum Height | Minimum Side Yard Set Back from Residential Property Lines | Minimum Front Yard Set Back |
|-----------------|-------------------|----------------|------------------------------------------------------------|-----------------------------|
| AG              | 4 sq. feet        | 6 feet         | 5 feet                                                     | 20 feet                     |
| R1              | 4 sq. feet        | 6 feet         | 5 feet                                                     | 20 feet                     |
| R4              | 4 sq. feet        | 6 feet         | 5 feet                                                     | 20 feet                     |
| CR              | 4 sq. feet        | 6 feet         | 5 feet                                                     | 20 feet                     |
| HC              | 100 sq. feet      | 40 feet        | 30 feet                                                    | 40 feet                     |
| LI              | 100 sq. feet      | 40 feet        | 30 feet                                                    | 40 feet                     |
| LI/HC           | 100 sq. feet      | 40 feet        | 30 feet                                                    | 40 feet                     |

**Section 806 – PERFORMANCE AND DESIGN STANDARDS FOR COMMERCIAL AND INDUSTRIAL USES**

– The following regulations shall be observed for commercial and industrial uses:

FIRE AND EXPLOSIVE HAZARDS: All activities and all storage of flammable and explosive material shall be provided with adequate safety devices against the hazards of fire and explosion; and, adequate fire-fighting and fire suppression equipment and devices shall be required.

RADIOACTIVITY OR ELECTRICAL DISTURBANCES: There shall be no activities that emit radioactivity onto adjoining property. There shall be no electrical disturbance adversely affecting the operation of any equipment other than that of the creator of the disturbance.

SMOKE: There shall be no emission from a chimney or other device for longer than five (5) minutes in any hour of visible gray or visible smoke of any other color with a shade darker than N. 3 of the Standard Ringleman Chart, as issued by the U.S. Bureau of Mines.

SMOKE, ASH, DUST, FUME, VAPOR, GASES AND OTHER FORMS OF AIR

POLLUTION: There shall be no emission at any point from any chimney or other device which causes any damage to health, to animals, to vegetation, or to other forms of property; or which cause any excessive soiling at any point.

LIQUID AND SOIL WASTES: There shall be no discharge at any point, into any public sewerage system or stream, or into the ground of any materials in such a way or of such a nature as can contaminate or otherwise cause the emission of hazardous wastes.

NOISE AND VIBRATION: There shall be no vibration or noise level at the property line greater than the average noise level occurring on adjacent streets.

GLARE: No direct glare, whether from floodlights or from high temperature process, shall be visible from adjoining public streets or adjacent lots when viewed by a person standing on ground level.

ODOR: There shall be no emission of odorous gases or other odorous matter in such quantities as to be offensive on adjoining streets or adjacent lots.

OPERATION: All primary operations shall be conducted entirely within enclosed buildings.

SCREENING: A planted visual barrier (or landscape screen) shall be provided and maintained by the owner (or lessee) of a property between any district and contiguous residentially zoned districts, except where natural or physical manmade visual barriers exist. This screen shall be composed of plants and trees arranged to form both a low level and a high level screen. The high level screen shall consist of trees planted with specimens no younger than three (3) years in age, and planted at intervals of not more than ten (10) feet. The low level screen shall consist of shrubs or hedges planted at an initial height of not less than two (2) feet and spaced at intervals of not more than five (5) feet. The low level screen shall be placed in alternating rows to produce a more effective barrier. All plants not surviving three (3) years after planting must be replaced.

Any existing business affected by these regulations at the time of passage of this Local Law shall not be required to comply with the above screening requirements, except in case of enlargement or major alteration of such business. Similarly, for any zoning district boundary change after the passage of this Local Law initiated by a residential developer abutting a commercially or industrially zoned property for which these regulations apply, these screening requirements shall not be imposed upon such commercial or industrial property.

STORAGE: All materials will be stored inside an enclosed (but not necessarily roofed) structure. All organic rubbish shall be contained in vermin-proof containers, which shall also be screened from public view. All other materials stored outside shall be screened from public view.

or stored in such a manner as not to detract from the overall landscaping plan and be in keeping with the looks of the surrounding area.

**LANDSCAPING:** Any part or portion of the site which is not used for buildings, other structures, loading or parking spaces and aisles, sidewalks and designated storage areas shall be planted and maintained with an all-season ground cover or mowed lawn. This shall be done in accordance with an overall landscape plan and shall be in keeping with natural surroundings. A replacement program for non-surviving plants shall be included.

The landscape plan must show a satisfactory method of irrigating all planted areas. This may be either by a permanent water system or by hose. Any single parking area with fifty (50) or more spaces shall utilize at least five percent (5%) of its area in landscaping, which shall be in addition to the open area requirements of the district.

**SHOPPING CART STORAGE:** Any establishment that furnishes carts or mobile baskets as an adjunct to shopping, shall provide definite areas within the required parking space areas for storage of said carts. Each designed storage area shall be clearly marked for storage of shopping carts.

**LIGHTING:** All parking areas, driveways and loading areas shall be provided with a lighting system which shall furnish a minimum of thirty-five (35) foot candles at any point during hours of operation, with lighting standards in parking areas being located not farther than one hundred (100) feet apart. All lighting shall be completely shielded from traffic on any public right-of-way and from any residential district. (See Section 807 for additional Lighting Standards)

**BUILDING DESIGN:** Buildings shall be designed to take advantage of the natural terrain and shall not be physically located to unnecessarily concentrate activity in one portion of the lot. At least one entranceway shall be maintained at ground level and be designed and constructed in such a way as to eliminate access barriers to handicapped persons. All pedestrian entrances shall be paved with an all-weather surface. A curbing strip shall be provided to separate parking areas, streets, and driveways.

**VEHICLES:** Any movable structure, trailer, automobile, truck or parts of these items or any other items of similar nature, allowed to remain on the premises a longer time than that required to load, unload or otherwise discharge its normal functions, shall be considered subject to all regulations set forth in this Local Law for buildings and structures as defined herein.

**BUFFER STRIPS:** A one hundred-fifty (150) foot wide “greenbelt” of maintained all-season ground cover, mowed lawn, or landscaping of trees and shrubs shall be required along the zoning district boundary lines in the industrial districts. This buffer strip may be waived in writing by the Planning Board if a natural physical, visual barrier exists.

## **Section 807 – LIGHTING STANDARDS FOR SITE PLANS**

### **1. PURPOSE AND INTENT**

The purpose of this law is to provide specific guidelines for site plan applications and standards in regards to lighting, in order to maximize the effectiveness of site lighting, to avoid unnecessary upward illumination and illumination of adjacent properties, and to reduce glare.

Lighting plans for development activities when unregulated can become obtrusive and impact the character, safety and quality of life of the Town. Obtrusive aspects such as glare, light trespass, energy waste, and sky glow, can have serious consequences for the public health, safety and welfare.

Careless lighting practices can have a serious negative impact on public safety. Glare and excessive contrast caused by poorly shielded luminaries and over lighting compromise everyone's ability to see. As eyes age they become particularly sensitive to these disabling effects. It is commonly known that many citizens are reluctant to drive at night, but it is not so widely known that a large portion of the problem of poor night vision originates with poor lighting practices. In extreme cases, glare can cause traffic warning signs to become unreadable and can wash out obstacles and people on streets and roadways making them harder to see.

Light Trespass involves the unwanted shedding of light off the property of the development and can be an annoyance to neighbors trying to enjoy the outside use of their property at night. In residential areas this can be an invasion of the rights of neighbors to enjoy their property and in commercial or industrial areas can overwhelm and void the proper use of lighting on another property.

Energy waste can occur when light is uncontrolled and directed other than on the target area. Unwanted sidewise dispersion can cause glare, and upward and sidewise dispersion creates lost light that is no longer available for the target area, thus requiring higher wattage bulbs to achieve targeted illumination levels leading to unnecessary wasteful use of electric power in detriment to the environment.

Improper use of up-lighting can also be a safety issue, as light is not efficiently shown on target areas, thus creating a possibility of less well lit night scenes that could hinder the detection of criminal or mischievous behavior and the presence of obstacles or dangerous walking areas.

### **2. DEFINITIONS**

**FOOT-CANDLE** – A unit of measure for illuminance. A unit of illuminance on a surface that is everywhere one foot from a uniform point source of light of one candle and equal to one lumen per square foot.

**FULL CUT-OFF TYPE FIXTURE** – A luminaire or light fixture that by design of the housing,

does not allow any light dispersion or direct glare to shine above a 90 degree, horizontal plane from the base of the fixture. Full cut-off fixtures must be installed in a horizontal position as designed, or the purpose of the design is defeated, and disability glare will result

**GLARE** – Line-of-sight contact by a person’s eye with a direct light source.

**HORIZONTAL ILLUMINANCE** – The measurement of brightness from a light source, usually measured in foot-candles or lumens, which is taken through a light meter’s sensor at a horizontal position.

**SHIELDED FIXTURE** – Fixtures that are shielded in such a manner that light rays emitted by the fixture, either directly from the lamp or indirectly from the fixture, are projected below a horizontal plane running through the lowest point in the fixture where light is emitted.

**UPLIGHTING** – Any light source that distributes illumination above a 90-degree horizontal plane.

**U. RATIO** – Uniformity ratio, describing the average level of illumination in relation to the lowest level of illumination for a given area. Example: U. Ratio = 4:1 for the given area, the lowest level of illumination (1) should be no less than 25% or “4 times less” than the average (4) level of illumination.

### **3. SIGNS AND LIGHTING**

A detailed drawing should be provided with the site plan showing locations, size, height, orientation, fixture type, wattage, designs and plans for all illuminated signs and outdoor lighting. For site plans showing a high level of illumination, the Planning Board may require the developer to submit an iso-lux plan indicating levels of illumination in foot-candles at ground level and certifying that they are in compliance with this standard.

### **4. SITE PLAN STANDARDS**

A. All exterior lights and illuminated signs shall be designed, located, installed and directed in such a manner as to prevent objectionable light at (and glare across) the property lines and glare at any location on or off the property. The “maintained horizontal illuminance” shall be observed as shown in the table below. The original table was created from recommendations set by the Illuminating Engineering Society of North America (IES). Newer versions by the IES for these specifications are not binding unless specifically enacted into this code by the Town of Arcade. Refer to that society’s publications for any definitions. All parking area lighting will be full cut-off type fixtures.

| IES PARKING LOT LEVELS OF<br>ILLUMINANCE<br>ACTIVITY (EXAMPLES)                                                                                                                                                      | IES MAINTAINED HORIZONTAL<br>RECOMMENDATIONS (FOOTCANDLES) |     |            |                       |      |            |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|-----|------------|-----------------------|------|------------|
|                                                                                                                                                                                                                      | General Parking &<br>Pedestrian                            |     |            | Vehicle Use Area Only |      |            |
|                                                                                                                                                                                                                      | Ave                                                        | Min | U<br>Ratio | Ave                   | Min  | U<br>Ratio |
| <b>HIGH</b><br>Major League Athletic Events<br>Major Cultural or Civic Events<br>Regional Shopping Centers<br>Fast Food Facilities                                                                                   | 3.6                                                        | 0.9 | 4:1        | 2.0                   | .67  | 3:1        |
| <b>MEDIUM</b><br>Community Shopping Centers<br>Cultural Civic or Recreational Events<br>Office Parks<br>Hospital Parking<br>Transportation Parking<br>(Airports, Commuter Lots, Etc.)<br>Residential Complex Parking | 2.4                                                        | 0.6 | 4:1        | 1.0                   | 0.33 | 3:1        |
| <b>LOW</b><br>Neighborhood Shopping<br>Industrial Employee Parking<br>Educational Facility Parking<br>Church Parking                                                                                                 | .08                                                        | .02 | 4:1        | 0.5                   | 0.13 | 4:1        |

**IES states:** “This recommendation is based on the requirement to maintain security at any time in area where there is a low Level of nighttime activity.” Local interpretation and application of IES Parking Lot Levels of Activity Examples not specifically identified or quantified:

| Level of Activity                                                               |               |
|---------------------------------------------------------------------------------|---------------|
| Regional shopping center containing retail space of 300,000 square feet         | <b>HIGH</b>   |
| Community shopping centers containing retail space of 5,000 to 299,999 sq. ft.  | <b>MEDIUM</b> |
| Neighborhood shopping containing retail space of less than 5,000 square feet    | <b>LOW</b>    |
| Fast Food Facilities (means only with customer eating capacity of 40 or greater | <b>HIGH</b>   |
| Automotive Dealerships                                                          | <b>HIGH</b>   |
| Entertainment Theaters, Sports Arenas                                           | <b>HIGH</b>   |

- B. Up-lighting is prohibited. Externally lit signs, display, building and aesthetic lighting must be lit from the top and shine downward. The lighting must be shielded to prevent direct glare and/or light trespass. The lighting must also be, as much as physically possible, contained to the target area. Internally lighted signs are acceptable. Internally lighted signs are allowed only in the Highway Commercial (HC), Highway Commercial/Light Industrial (HC/LI), and Light Industrial (LI) Districts.
- C. All building lighting for security or aesthetics will be full cut-off or a shielded type, not allowing any upward distribution of light. Floodlighting is discouraged, and if used, must be shielded to prevent:
1. Glare for drivers or pedestrians,
  2. Light trespass beyond the property line, and
  3. Light above a 90 degree horizontal plane. Wall-pack type fixtures are not acceptable.
- D. Adjacent to residential property, no direct light source will be visible at the property line at ground level or above.
- E. All non-essential lighting will be required to be turned off after business hours, leaving only the necessary lighting for site security. (“Non-essential” can apply to: display, aesthetic, parking and sign lighting.)
- F. Upward flagpole lighting is permitted for Federal, State and Local government flags only, provided that the maximum lumen output is 1300 lumens. Flags are encouraged to be taken down at sunset to avoid the need for lighting.
- G. Permitted Non-conforming Uses:
1. No outdoor lighting fixture or use which was lawfully installed or implemented prior to the enactment of the Code shall be required to be removed or modified. However, no modifications or replacement shall be made to a non-conforming fixture unless the fixture thereafter conforms to the provisions of this Code, except that identical lamp replacement is allowed.
  2. Temporary Lighting, as described below, used for no more than 45 days within a calendar year. Temporary lighting is lighting which does not conform to the provisions of this Code, and is intended for uses, which by their nature are of limited duration; e.g. holiday decorations, civic events, or construction projects.

**Section 808 – GRAVEL AND OPERATIONS** – No gravel or sand operations shall be permitted unless such operations adhere to the following regulations:

1. No excavation or stock piling of materials shall be located within one hundred-fifty (150) feet of any public road or property line, unless a Permit is granted by the Town Board for improvement of the property.
2. No power-activated sorting machinery or equipment shall be located within six hundred (600) feet of any occupied dwelling; and, all such machinery shall be equipped with satisfactory dust elimination devices.

**Section 809 – AIRPORTS AND AIRSTRIPS** – The airspace above any registered airport or registered airstrip and the area within six thousand (6,000) feet in width extending in every direction from the boundaries of such airport or airstrip shall be subject to the following restrictions:

1. There shall be one approach area extending a distance of six thousand (6,000) feet from each end of each landing strip. Each approach area shall be a trapezoid five hundred (500) feet in width at the end of each landing strip and broadening to a width of two thousand-two hundred (2,200) feet at a distance of six thousand (6,000) feet from the end of each landing strip.
2. The centerline of each approach area shall be a continuation of the centerline of the landing strip.
3. Turning areas shall consist of all portions of airspace within six thousand (6000) feet of the landing strip that are not included within the approach areas.
4. Within the approach areas, no building, structure or other object shall be erected, altered or reconstructed such that the height above the elevation of the landing strip would exceed  $1/10^{\text{th}}$  of the shortest horizontal distance to the landing strip. No building, structure or object situated in the approach area shall have a height in excess of fifty (50) feet.
5. No Airport or Airstrip may be maintained unless there is filed with the Town Clerk of the Town of Arcade the following:
  - a. Approval of the airspace by the Federal Aviation Administration (FAA).
  - b. Proof of compliance with Section 249 of the General Business Law of the State of New York.
  - c. Approval of the Wyoming County Planning Board.
6. Airport buildings, boundary zones, flood light mountings and other airport appurtenances may not be of such height nor so located as to constitute obstructions with any turning area. Within the turning areas, no buildings or structures shall hereafter be erected, altered or reconstructed such that the height above the elevation of the portion of



the landing area nearest said object is more than 1/7<sup>th</sup> of its distance from such landing area, or from the nearest boundary of any approach area, whichever distance is shorter. Where alternate computations within the meaning of this definition can be made, the height shall be determined to be that which is more restrictive. No object or structure within a distance of six thousand (6,000) feet from any landing area shall have a height in excess of fifty (50) feet.

7. Notwithstanding, any other provision of this Local Law use shall not be made of land which will create interference with radio communications or signaling between the airport or airstrip and aircraft, cause difficulty in distinguishing airport or airstrip lights, result in glare, impair visibility in the vicinity of the airport, or otherwise interfere with the safe landing, taking off or maneuvering of aircraft.
8. Where the height limitations in any airport or airstrip area conflict with those specified for a use district with which it is combined, the more restrictive regulations shall govern.

**Section 810 – RECREATION VEHICLES** – Recreation vehicles must be stored in the rear or side yard area during the off seasons, whichever affords the most visual screening as viewed from a public right-of-way or abutting property. Such storage is limited to recreational vehicles owned by the resident's occupant. (Off seasons for summer use vehicles is considered to whenever there is no snow on the ground for the vehicle's use).

**Section 811 – TEMPORARY PARKING OF OCCUPIED RECREATIONAL VEHICLES** – Temporary parking of occupied recreational vehicles in any residential area requires a Permit with a duration of thirty (30) days. Extensions of this Permit may be granted by the Zoning Officer. Application for extension must be accompanied by documented concurrence of all residents with a one thousand (1,000) foot radius of vehicle's location.

**Section 812 – OCCASIONAL SALE OF PERSONAL PROPERTY (GARAGE SALES, ETC.)** – Sale of personal property on premises requires a Permit (so that the date can be determined). The required fee will be based on the current fee schedule on file with the Clerk. The duration of the Permit cannot be longer than a three (3) day period. Maximum of three (3) Permits in any one three hundred sixty-five (365) day period may be issued. Such Permits may be issued consecutively.

**Section 813 – SALE OF PERSONAL CARS, TRUCKS OR RECREATIONAL VEHICLES** – Sale of personal cars, trucks or recreational vehicles on premises requires a Permit with a maximum duration of thirty (30) days. Such Permit is not renewable nor can any additional Permit be secured for a period of at least one (1) year after the expiration of any previous Permit.

**Section 814 – JUNKYARDS AND DUMPS (Amended)** – No individual, company, corporation or other legal entity may expose for sale or exchange, or give away, or store outside of a building,

used or secondhand articles of machinery, equipment, or a junk vehicle or vehicles, automobile accessory, or any kind or description nor dump any garbage, or waste materials upon any land within the Town of Arcade unless having obtained a license to do so, duly issued by the Town Clerk, with the approval of the Town Board.

Storage and Processing of Toxic chemicals, Toxic Wastes and Nuclear Materials and Wastes that may be defined from time to time by the New York State Department of Environmental Conservation is prohibited; and, no license may be issued for same.

APPLICATION PROCEDURE FOR LICENSE: The following procedure is required for obtaining a license to operate a junkyard or dump within the Town of Arcade:

1. Any person, company or corporation desiring to obtain a license for the operation of a junkyard or dump shall file a written application with the Town clerk. Such application shall state the nature of the business to be conducted, the type of material to be dealt with, the proper street address or other accurate description of the place where such business is to be conducted, provide a sketch showing the location of the junkyard or dump and its relationship to surrounding properties and structures, and identifying the owner of the property, as well as the owner or lessee of the business.
2. Attached to the application shall be a consent signed by each owner or lessee of real property located within one thousand (1,000) feet of the property line of the premises proposed to be used for a junkyard or dump. Such consent shall state that the owners and lessees have no objection to the proposed use by the applicant.
3. The Town Clerk shall submit the application to the Town Board at its next regular meeting. The Town Board will then refer the application to the Planning Board for its review and recommendations, such review and recommendations shall be returned in writing to the Town Board within thirty (30) days after referral.
4. The Town Board shall conduct a public hearing requiring ten (10) days written notice of the time and place of the meeting. At the public hearing, the applicant and all other interested parties shall be heard.
5. The Town Board shall then either grant or deny the license, noting its actions in the Minutes. In determining whether an applicant shall be granted a license, the Town Board shall take into consideration the practical difficulties and the necessary hardships in requiring compliance with this Local Law. Such determination shall be in the sole discretion of the Town Board.
6. The fee for the license required by this Local Law shall be in accordance with the current fee schedule on file with the Town Clerk. The fee shall be paid at the time such license is issued, and shall become a part of the general funds of the Town of Arcade. All licenses shall expire on December 31<sup>st</sup> of each year.

GENERAL REQUIREMENTS OF LICENSE: The following general requirements shall be observed:

1. No person, company or corporation obtaining a license under this section of the Local Law shall have more than one (1) location licensed hereunder.
2. The license shall be displayed in a conspicuous manner within the licensee's place of business.
3. The license is not transferable; and, any person who is a successor in interest may apply for a new license.
4. Licensed premises shall be operated in a proper and safe manner to minimize hazards. No suspended items will be left unattended which would create a hazard.
5. If any existing junkyard or dump ceases operation for a period of one (1) year or more, such use shall not be reestablished, nor shall any existing junkyard or dump be extended beyond the area now occupied by it, without full compliance with this Local Law.
6. All licensed premises shall be on a parcel of land of a minimum of ten (10) acres.
7. The portion of the premises in which the business activity is conducted must be located at least seventy-five (75) feet distance from the closest edge of the paved portion of any street, road or highway.
8. Between the front property line and the business premises and/or junkyard storage area, the licensee shall erect and maintain a visual barrier of trees and/or shrubs, which provide a dense foliage screen for at least six (6) feet above the surface of the ground. This "visual screen" shall consist of two alternating rows, not more than five (5) feet apart, of shrubs or hedges planted at an interval of not more than three (3) feet.

In addition to this frontal requirement, the licensee shall provide a fifty (5) foot wide landscaped buffer on each side and along the rear of the junkyard or dump. This landscaped buffer shall contain a "visual screen" adjacent to residential properties that provides a dense foliage barrier for at least six (6) feet above the surface of the ground

All landscaped areas shall be property maintained (i.e. grass areas mowed, free of litter, removal of non-surviving plants and replacement with new trees or shrubs).

9. The access road (driveway) from the public right-of-way to the place of business activity shall be provided with an all-weather, dust free surface. A gate made of solid

substance properly maintained, six (6) feet high shall be locked when the area is not supervised by the licensee or his employees. Any access road or driveway shall have a clear view of approaching traffic on the public right-of-way, so that it will not constitute a traffic hazard for traffic entering or leaving the public right-of-way.

10. Any premises used for the purposes mentioned in this Section of this Local Law, even if so used prior to the adoption of this Local Law, shall at all times be kept and maintained in a clean, wholesome, sanitary and orderly condition.

All licenses are subject to revocation by the Town Board upon proper proof of non-compliance with the Local Law. A public hearing shall be afforded a licensee, who will have an opportunity to present his case. In the event the license is revoked, all activity permitted under this Section of this Local Law shall immediately cease and desist.

## **Section 815 – ADULT USE LAW**

1. **TITLE** – The title of this local law shall be “Adult Use Law.

2. **FINDINGS; PURPOSE**

- A. The Town Board of the Town of Arcade, having investigated and reviewed the impact of adult uses on communities, makes the following findings:

1. Adult uses, as defined in this law, while not per se unlawful, have an adverse secondary effect on surrounding neighborhoods in that they expose minors to harmful materials and influences, tend to attract excessive numbers of transients and promote an increase in immoral, unhealthy and often illegal activities.
    2. A special regulation of adult uses is necessary to ensure that the foregoing secondary effects will not contribute to the downgrading of residential and business neighborhoods in the Town of Arcade by:
      - a. Preserving the character and quality of life in town residential neighborhoods and business areas.
      - b. Controlling such harmful and adverse secondary effects of adult uses on the surrounding areas as attraction of transients, parking and traffic problems, increased crime (including prostitution, rape, and assaults in the vicinity of such use), loss of business for surrounding non-adult business, decreased property values and deterioration of neighborhood quality.
      - c. Maintaining property values.
      - d. Restricting minors access to adult uses.

B. The adoption of this local law is necessary and proper to preserve, protect and provide for the general health, safety, welfare and order of the residents of the Town of Arcade.

3. **DEFINITIONS** – As used in this local law, the following definitions shall apply:

**ADULT** – Any person eighteen (18) years of age or older.

**ADULT BOOKSTORE** - An establishment having as a substantial or significant portion of its stock-in-trade books, magazines, videos, computer software, other periodicals or films for viewing on the premises by use of motion picture devices or any other coin-operated means, which are distinguished or characterized by their emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas, as defined in this law, or an establishment with a segment or section devoted to the sale or display of such material.

**ADULT ENTERTAINMENT CABARET** – An establishment, or any part thereof, which presents any of the following entertainments or vices for observation by patrons therein and which is operated for profit: topless female dancers; strippers; male or female impersonators; exotic dancers; topless waitresses; busing or service; pasties or G-strings or both.

**ADULT HOTEL/MOTEL** – A hotel or motel which makes available to its patrons in their rooms films; slide shows or videotapes distinguished or characterized by an emphasis on materials depicting, describing or relating to specified sexual acts or specified anatomical areas, as defined in this law, which is presented in a public movie theater would exclude any minor by reason of age.

**ADULT THEATER** – A theater that customarily presents motion pictures, films, videotapes or slide shows distinguished or characterized by an emphasis on materials depicting, describing or relating to specified sexual acts or specified anatomical areas, as defined in this law, which is presented in a public movie theater would exclude any minor by reason of age.

**ADULT USES** – Includes all of the uses defined in this section.

**MASSAGE ESTABLISHMENT** – Any establishment where massages are administered for pay, including but not limited to massage parlors, sauna baths and steam baths. This definition shall not be construed to include a hospital, nursing home, medical clinic or the office of a physician, surgeon, chiropractor, osteopath or duly licensed physical therapist or barbershops or beauty salons in which massages are administered only to the scalp, face, neck or shoulders. This definition shall also exclude health clubs which have facilities for physical exercise, such as tennis courts, racquetball courts or exercise rooms, and which do not receive their primary source of revenue through the administration of massages.

**PEEP SHOWS** – An establishment which presents material in the form of live shows, films or videotapes viewed from an individual enclosure, in which a fee is charge, and which is not open to the public generally, but excludes any minor by reason of age.

**PERSON** – Any person, firm, partnership, corporation, association or legal representative acting individually or in concert with another.

**SPECIFIED ANATOMICAL AREA –**

- A. Less than the completely and opaquely covered human genitals, pubic region or female breast below a point immediately above the top of the areola.
- B. Human male genitals in a discernibly aroused state, even if completely and opaquely covered.

**SPECIFIED SEXUAL ACTIVITIES:**

- A. Human genitals in a state of sexual stimulation or arousal.
- B. Acts of human masturbation, sexual intercourse or sodomy.
- C. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast.

**4. LOCATION RESTRICTIONS** – Adult uses, as defined in Section 3 of this law, shall be permitted, subject to the following limitations:

- A. Adult uses may be located only in a Highway Commercial/Light Industrial District (HC/LI) by Special Permit.
- B. No adult use shall be located within the following distances measured from the nearest property boundary line of the adult use lot to the nearest property boundary line of the non-adult-use lot:
  - 1. Five hundred (500) feet from the center line of Main Street and Route 98 N and S
  - 2. Five hundred (500) feet from any zoning district which is zoned for any residential use, whether within the Town of Arcade or any other adjacent municipality.
  - 3. Five hundred (500) feet from a municipal (Local, State, Federal) or government building.
  - 4. One thousand (1,000) feet from a pre-existing house of worship, recreational facility, park or playground or other area where children under eighteen (18)

years of age congregate.

5. Five hundred (500) feet from the Town of Arcade Municipal boundary.

## **5. OBSERVATION FROM OUTSIDE THE ESTABLISHMENT PROHIBITED**

No adult use shall be conducted in such a manner that permits the observation or hearing of any material depicting, describing or relating to specified sexual activities or specified anatomical areas which can be discerned from any public way or from property not registered as an adult use. This provision shall apply but is not limited to any display, decoration, sign, show window, screen, door or other building opening, loudspeakers or sound equipment.

## **6. REGISTRATION AND LICENSING; FEES**

- A. No person shall own, lease, maintain, operate, use or permit to be used any property which contains an adult use without first registering said adult use with, and having a permit issued by the Town Clerk in the manner set forth in this section.
- B. No adult use shall be allowed to operate until a certificate of registration is filed with the Town Clerk and a permit based thereon shall have been issued by the Town Clerk. The certificate of registration shall be in writing, signed by the registrant, and shall contain the following information:
  - 1. The address of the premises.
  - 2. The name and address of the owner of the premises.
  - 3. The name and address of the person or persons operating the adult use and, if a partnership or corporation, the names and addresses of the major shareholders of the corporation or all of the partners of the partnership.
  - 4. The date of the commencement of the adult use.
  - 5. The nature of the adult use.
  - 6. If the premises is leased, a copy of said lease.
- C. Upon filing a completed certificate of registration with the Town Clerk and payment of registration fee, the Town Clerk shall issue an adult use permit to the registrant, which shall be valid for a period of one (1) year from the date of issuance. A registration fee in the amount of one thousand dollars (\$1,000) shall be paid prior to the issuance of an adult use permit. An adult use permit shall be renewed for subsequent additional terms, each of one (1) year, upon application thereof to the Town Clerk containing a certification by the registrant setting forth any changes in the information contained in the original certificate of registration filed with the Town Clerk and the payment to the Town Clerk of a registration renewal fee in the amount of five hundred dollars

(\$500).

- D. If there occurs any change in the information contained on the certificate of registration filed with the Town Clerk, the Town Clerk shall be notified of such change and a new or amended registration certificate filed within thirty (30) days of such change.
- E. No permit issued under the provisions of this section shall be transferable to any person, nor shall a certificate of registration be transferable for use at any premises other than that stated in the certificate of registration.
- F. The operator of any adult use shall cause a copy of the permit issued under the provisions of this section to be prominently displayed in a window visible from the outside on the premises for which it is issued.
- G. If the holder of an adult use permit shall violate any provision of this law, make any statement which he or she knows to be false or reasonably should have known to be false on the certificate of registration or fails to comply with any other law pertaining to the use of the premises for which the adult use permit has been issued the adult use permit may not be issued or, if issued, may be suspended or revoked.

## **7. PENALTIES FOR OFFENSES**

Any person violating any provision of this law shall, upon conviction thereof, be guilty of a violation under the Penal Law of the State of New York and shall be punishable by a fine not exceeding two hundred fifty dollars (\$250) or by imprisonment for a term not exceeding fifteen (15) days or by both such fine and imprisonment. Each day that a violation continues shall constitute a separate and distinct violation for each day and is punishable as such.

## **8. SEVERABILITY**

If any provision of this local law or the application thereof to any person or circumstance shall be judged by any court of competent jurisdiction to be invalid or unenforceable, such judgment shall not effect, impair or invalidate the remainder of this local law, which shall be confined in its operation to the provision, person, or circumstances directly involved in the controversy to which such judgment shall have been rendered.

## **9. WHEN EFFECTIVE**

This local law shall be effective within thirty (30) days from its adoption and upon completion of filing with the Secretary of State pursuant to Municipal Home Rule Law Section 27.

Local Law #1 1997

Adopted May 12, 1997

Filed May 19, 1997



## **Section 816-A – SUBDIVISION REGULATIONS**

### **ARTICLE I – GENERAL PROVISIONS**

- 1. TITLE** – This Local Law provides for the regulation of subdivisions within the Town of Arcade, Wyoming County, New York. It may be cited as the “Town of Arcade Subdivision Law.”
- 2. AUTHORITY** – By authority of the Resolution adopted by the Arcade Town Board on the 20th day of August, 2007, pursuant to the provisions of Section 279 of the Town Law of the State of New York, the Planning Board of the Town of Arcade is empowered and authorized to give preliminary approval or disapproval of plats for the subdivision of land within the area of the Town of Arcade, county of Wyoming, State of New York. The final approval or disapproval shall rest with the Arcade Town Board.
- 3. PURPOSE** – The purpose of these regulations as herein adopted shall be to provide for the orderly growth and development of the Town with adequate provisions for the housing, transportation, distribution, comfort, convenience, safety, health and welfare of its population.
- 4. SCOPE** – These regulations are not intended to repeal, abrogate, annul or in any way impair or interfere with existing provisions of other local laws, laws or ordinances, or with private restriction place on property be deed, covenant or other private agreement except that where these regulations impose a greater restriction upon land than is imposed or required by such existing provisions of law, ordinance, contract or deed, the provision of these regulations shall control.
  - A. When any subdivision of land is proposed, before any offer is made to sell any part or all of the subdivision and before any permit for the erection of any structure in such subdivision shall be issued or any grading, clearing, construction or other improvements are undertaken, the sub-divider or his authorized agent shall receive the appropriate approval of the proposed subdivision in accordance with the procedures and requirements of this Chapter.
  - B. It shall be the obligation of each prospective purchaser of a lot which forms any part of a subdivision to ensure that appropriate subdivision approval has been obtained. In the absence of such subdivision approval, a prospective purchaser shall not commence the erection of any structure on such lot, nor commence any grading, clearing, construction or other improvements.
  - C. This Chapter shall apply to all subdivisions of land made on or after its effective date.

**5. WAIVER OF REQUIREMENTS** – The Planning Board may waive, when reasonable, any requirements or improvements for the approval, approval with modifications, or disapproval of subdivisions submitted for its approval. Any such waiver, which shall be subject to appropriate conditions, may be exercised in the event any such requirements or improvements are found not to be requisite in the interest of the public health, safety, and general welfare or inappropriate because of inadequacy or lack of connecting facilities adjacent or in proximity to the subdivision.

**6. DEFINITIONS** – For the purpose of these regulations, certain words used herein are defined as follows:

**BOARD** – The duly elected Town Board of the Town of Arcade.

**COUNTY** – The County of Wyoming, State of New York.

**COUNTY HEALTH DEPARTMENT** – The Department of Health of the County of Wyoming, State of New York.

**COUNTY HIGHWAY DEPARTMENT** – The Department of Highways of the County of Wyoming, State of New York.

**ENGINEER** – The duly designated Engineer of the Town of Arcade, or if there is no such official, the planning consultant or engineer employed by or assigned to the Town Board.

**HIGHWAY DEPARTMENT** – The Department of Highways of the Town of Arcade, State of New York.

**MASTER PLAN** – A comprehensive plan prepared by the Planning Board pursuant to the Town Law which indicates the general locations recommended for various functional classes of public works, places and structures and the general physical development of the Town of Arcade and includes any unit or part of such plan separately and any amendment to such plan or parts thereof.

**PLANNING BOARD** – The Planning Board of the Town and Village of Arcade.

**PLAT** – The final map, drawing or chart on which the subdividers plan of subdivision is presented to the Town Board for approval, and which if fully approved, will be submitted to the County Clerk for recording.

**PRELIMINARY LAYOUT** – The preliminary drawings indicating the proposed layout of the subdivision to be submitted to the Planning Board for its consideration.

**PROFESSIONAL ENGINEER** – A civil engineer or surveyor duly licensed by the State of New York to practice therein.

**SUBDIVIDER** – Any individual, firm, association, syndicate, co-partnership, corporation, trust or any other legal entity commencing proceedings under these regulations to effect a subdivision of land hereunder for himself or for another.

**SUBDIVISION** – The division of any parcel of land into three or more lots, blocks or sites with or without streets or highways for the purposes of sale, transfer or use. However, for the purposes of these regulations, the following categories of land subdivision shall be exempt from the meaning of subdivision:

- A. The division of any parcel of land into three or more tracts, without new streets or highways, each containing not less than twenty acres in size, or
- B. The division of any parcel of land into three or more tracts, without new streets or highways, each containing not less than ten acres in size and to be used principally for agricultural purposes.

**TOWN** – The Town of Arcade, County of Wyoming, State of New York.

**UTILITIES** – Facilities to provide water, sewer, electric, gas, telephone and storm drainage services.

## **ARTICLE II – PROCEDURE**

### **SECTION 1. SUBMISSION AND CONDITIONAL APPROVAL OF PRELIMINARY LAYOUT**

- A. General** – Prior to the preparation of the preliminary layout, the sub-divider should seek the assistance of the Zoning Enforcement Officer of the Town for informal consideration and advice so that the sub-divider may become familiar with the requirements for subdivision and with other plans or proposals which might affect the territory in which the proposed subdivision is located. This step IS mandatory but does not require an application fee or the filing of a plat. The purpose of this procedure is to afford to the sub-divider opportunity of early and informal consultation before preparation of the preliminary layout in order to save time and money and to make the most of opportunities for desirable development.
- B. Filing**– Before any contract is made for the sale of any subdivision, or any part thereof, the sub-divider, or his agent shall prepare and file with the Town Board two (2) copies of a preliminary layout, together with the other supplementary material and is to include as defined herein a written application for conditional approval. Such application is to be submitted at least ten (10) days prior to the meeting at which it is to be considered.

**C. Approval** – Following the review of the preliminary layout and supplementary material, the Town Board shall forward all information to the Planning Board for their review and recommendations. The Planning Board in turn shall forward all information to the Wyoming County Planning Board for review and recommendations. Upon receipt of recommendations from the County Planning Board, the Planning Board shall act to give approval or disapproval. If the preliminary layout is satisfactory, the Planning Board shall express its approval and state the specific conditions of such approval, if any. If the preliminary layout is unsatisfactory or disapproved, the Planning Board shall state the reasons for its disapproval. The recommendations of the Planning Board shall be noted on both copies of the preliminary layout. Within sixty (60) days of the date of the first Planning Board meeting, these copies shall be forwarded to the Town Board for approval or modifications.

If approved by the Town Board one (1) copy shall be signed by the Town Clerk and returned to the sub-divider, and the other retained by the Town Board.

If the Planning Board takes no action within sixty (60) days, the Town Board shall act upon the conditional approval, either approving or disapproving it.

Approval of a preliminary layout shall not constitute approval of a subdivision plat. Rather, it shall be deemed an expression of approval of the layout submitted in preliminary form as a guide to the preparation of the final subdivision plat, which will be submitted for approval of the Town Board and recording with the County Clerk.

## **SECTION 2. PRELIMINARY MAP CONTENT AND SUPPLEMENTARY INFORMATION**

**A. Form** – The preliminary layout shall be clearly and legibly drawn. The map shall be on one or more sheets, each a minimum size of eighteen (18) inches by twenty-four (24) inches and a maximum of twenty-four (24) inches by thirty-six (36) inches. All maps of subdivisions shall be drawn at a scale no smaller than one (1) inch equals one hundred (100) feet.

**B. Coverage** – The preliminary layout shall include all land intended for ultimate development even though only a portion of the tract is to be initially recorded.

### **C. Data and Maps Required for Preliminary Layout**

1. **EXISTING-CONDITIONS MAP** – Shall include the following, unless otherwise specified by the Board:
  - a. Key map showing locations and boundaries of tract (including name of town(s)).

- b. Existing property lines and adjacent property owners; existing platting (if a re-subdivision project); for adjacent platted land, name of subdivision, recording number and date.
- c. Existing streets on and adjacent to the tract, including name and width of right-of-way; type, width and elevation of surfacing; any legally established centerline elevations; walks, curbs, gutters, bridges, culverts, etc.
- d. Location, size and elevation of existing utilities and location and width of utility easements on and adjacent to the tract including: water, sewer, electric, gas, telephone and storm drainage. If utilities are not on or adjacent to the tract, indicate the size, direction and approximate distance to the nearest ones.
- e. Ground elevations of the tract, based on U.S.G.S. datum plane. For land that slopes less than two (2%) percent, show spot elevations at all breaks in grade, along all drainage channels or swales, and at selected points not more than one hundred (100) feet apart in all directions. For land that slopes more than two (2%) percent show either contours with an interval of not more than five (5) feet if ground slope is regular and such information is sufficient for planning purposes, or show contours with an interval of not more than two (2) feet if ground slope is irregular or there exists a need for more detailed data with preparing plans and construction.
- f. Subsurface conditions on the tract, if required by the Town Board, location and results of tests made to ascertain subsurface soil, rock and groundwater and conditions.
- g. Other conditions on the tract includes: watercourses, marshes, rock outcrop, wooded areas, isolated pre-servable trees one (1) foot or more in diameter, houses, other buildings and other significant features.
- h. Any other conditions on adjacent land, which may affect the proposed subdivision.
- i. Land title and survey: deed description according to official records including libers and pages of instruments containing descriptions referred to; names and addresses of record owners; map or survey of tract boundary (including all pertinent bearings and distances) made and certified by a registered land surveyor, tied into established town reference points, and tied to the Holland Land Company's Survey, and where available related to the State system of plane coordinates and any Federal plane coordinates, datum, bench marks and date of survey; and, said survey shall be certified by the maker thereof, be signed by him and said map shall indicate the standard used by the surveyor in preparing the map.
- j. Draft of protective covenants or restrictions whereby the subdivider proposes to regulate land use in the subdivision and otherwise protect the proposed development.

2. A PRELIMINARY LAYOUT MAP OF ALL PROPOSALS – Shall be prepared by a licensed professional engineer or surveyor to include the following:
  - a. Proposed streets, names, right-of-way and roadway widths; approximate grades and profiles, including extensions for a reasonable distance beyond the limits of the proposed subdivision; typical cross sections of proposed grading, roadway and sidewalk.
  - b. Location and size of proposed utilities and proposed right-of-way or easements, including locations, width and purposes. The Wyoming County Health Department must approve preliminary plan of water supply and sewage collection and disposal.
  - c. Proposed lot lines, lot numbers and block letter.
  - d. Sites, if any, to be reserved or dedicated for parks, playgrounds or other public uses.
  - e. Minimum building setback lines.
  - f. Site data, including number of residential lost, typical lot size and acres in parks, etc.

### **SECTION 3. PROCEDURE FOR SUBMISSION AND APPROVAL OF FINAL SUBDIVISION PLAT**

- A. **Submission Requirements** – Application for final approval of the subdivision plat shall be made in writing to the Town Board at least ten (10) days prior to the meeting at which it is to be considered, and shall include three (3) copies of the plat and other exhibits required for approval as specified in this section.
  1. The final subdivision plat shall conform substantially to the preliminary layout as approved. If desired by the sub-divider, it may constitute only that portion of the approved preliminary layout, which he proposes to record and develop at the present time, provided that such portion conforms to all requirements of these regulations.
  2. The request shall be submitted within six (6) months after approval of preliminary layout; otherwise such preliminary approval shall become null and void unless an extension of time is applied for and granted by the Town Board. The subdivision plat shall be considered officially submitted at the regular meeting of the Town Board following the written request for approval of the plat.
  3. Before the Town Board acts on any subdivision plat, it shall hold a public hearing in accordance with Section 276 of the Town Law.
  4. Within forty-five (45) days after the public hearing, the Town Board shall approve, modify and approve, or disapprove such plat.

**B. Public Hearing** – Approval, if given, however, shall not be deemed final until

the sub-divider has complied with the provisions of Section 4 Item C of this Article with respect to certification that required improvements have been completed or that satisfactory bond has been posted in lieu thereof.

**C. Approval and Filing** – Within ninety (90) days after the satisfactory completion of the above-described procedures and the plat has received final approval, the developer must file the plat with the County Clerk. Otherwise such approval will expire as provided in Section 276 of the Town Law.

#### **SECTION 4. FINAL PLAT CONTENT AND SUPPLEMENTARY INFORMATION**

**A. Forms** – The final subdivision plat shall be clearly and legibly drawn in ink on sheets with a minimum size of eighteen (18) inches by twenty-four (24) inches and a maximum size of twenty-four (24) inches by thirty-six (36) inches. The scale shall be one hundred (100) feet to the inch or larger. Where necessary, the plat may be on several sheets accompanied by an index sheet showing the entire subdivision. For large subdivisions, the final plat may be submitted for approval progressively in contiguous sections satisfactory to the Town Board.

**B. Content**

1. The final plat, which must be prepared and certified by a professional engineer or surveyor, shall show, in addition to information approved on the preliminary map, the following:
  - a. Name of subdivision, name of owner(s) and address.
  - b. Title, scale, north arrow, and date.
  - c. Tract boundary lines, location and dimensions of all right-of-way lines and easements, and property lines of residential lots and other sites; with accurate dimensions, bearings or deflection angles and radii, arcs and central angles of all curves.
  - d. Name of each street.
  - e. Size and location of all utilities.
  - f. Number to identify each lot or site in numerical order within blocks, letter to identify each block.
  - g. Purpose for sites, which are reserved for purposes other than residential lots.
  - h. Location and description of monuments (shown thus: “X”), lot corner markers (shown thus: “O”), and bench marks (shown thus: “BM”).
  - i. Names of record owner of adjoining un-platted land.
  - j. Reference to recorded subdivision plat of adjoining platted land

- by record name, date and number.
- k. Certification by registered land surveyor (including name, address, New York State license number and seal) certifying to accuracy of survey and plat, a statement as to the standard used in the preparation of the map, with the certification signed by the surveyor.
  - l. Certification of title showing that applicant is the landowner.
- 2. Whenever a proposed subdivision includes parcels on rights-of-way to be dedicated for public use, an offer of cession shall be included on the final plat to dedicating the parcels and rights-of-way specifically enumerated thereon. Unless a separate, restricted offer is made for any or all parcels to be dedicated for public use, every offer of cession shall be full, complete and immediate upon and only upon acceptance of such offer by the municipality. Offers made with restrictions shall be made separately, and shall state in full the terms of the restrictions.
  - 3. The final plat shall contain appropriate statements with dated signature spaces signifying approval or acceptance by the following, in the order listed:
    - a. Engineer – Stating that the sub-divider has essentially complied with one of the following alternatives.
      - 1. All improvements have been installed with the requirements of these regulations; or
      - 2. A bond or certified check has been posted, which is available to the Town and in sufficient amount to assure such completion of all required improvements. The Board shall determine said amount and time of bond.
    - b. Sub-divider – Indication he has reviewed the plans and will construct the subdivision in accordance with these subdivision rules and regulations.
    - c. Town Board – Indicating their acceptance and approval of the final plat.
  - 4. Water supply and sewage disposal arrangements, with details and Certification of Approval by the Wyoming County Health Department must be supplies to the Town Board. Where any water or sewer line, water plant or sewage treatment plant is to be installed by developer outside existing districts, the organization or enlargement of a water district and/or sewer district may be required.

### **C. Separate Documents**

- 1. Agreements covering the improvements and maintenance of uncaded public spaces and the conditions and time limits, if any apply to site reservations.



2. As an alternate to the installation of required improvements or surety in lieu thereof, an agreement acceptable to the Town Board, restricting the issuance of building permits until required street and utilities are installed and accepted for Town maintenance may be signed.
3. Statement by Town Attorney approving the legal sufficiency of all offers of cession, all covenants governing the maintenance of unceded public open space, and any action taken to establish or extend water and/or sewer districts, also approving the legal sufficiency of any bond or agreement offered in lieu of the completion of required subdivision improvements.
4. Protective covenants in form for recording
5. Other requirements. Such other certificates, affidavits, endorsements or other agreements as may be required by the Board by the enforcement of these regulations. In special cases where there are potential hazards of flooding or other hazards, the Town may require the services of an independent engineer or expert to recommend conditions under which the subdivision may be approved. The expense of such engineer or expert shall be borne by the sub-divider.

## **ARTICLE III – DESIGN STANDARDS**

### **SECTION 1 – STREETS**

**A. Inspections** – The developer is required to meet with the Town Highway Superintendent prior to any road construction to determine a schedule of inspection acceptable to the Town.

**B. Design Requirements**

1. In addition to complying with the Master Plan of the Town of Arcade, the arrangement, character, extent, width, grade and location of all streets, shall be considered in their relation to other existing and planned streets, to topographical conditions, to public convenience and safety, and in their appropriate relation to the proposed uses of land to be served and/or abutted by such streets.
2. Streets in a subdivision shall:
  - a. Provide for the continuation or appropriate projection of existing principal streets in surrounding areas; or
  - b. Conform to a plan for the neighborhood approved by the Planning Board to meet a particular situation here topographical or other conditions make continuance of or conformance to existing streets impracticable.

3. All maps and legal papers must be submitted and approved by the proper authorities prior to start of construction.
  4. Roads to be surveyed and graded by an approved engineer.
  5. Right-of-ways to be at least 66 feet.
  6. Road bed shall be cleared full width of road and shoulder of top soil and materials subject to decay.
  7. Sub soil properly graded and compacted prior to base gravel.
  8. All rocks, stumps, brush and other rubbish to be removed from right-of-way.
  9. Any back slopes to be seeded and accessible for mowing.
  10. Surface water to run freely at least 800 feet after leaving road with drainage easements to abutting properties.
  11. Must have approved drainage pipes at all places where needed, plastic, coated metal or reinforced concrete of not less than 12 inches in diameter.
  12. Base of one layer of bank run gravel to be 12 inches when compacted and one layer of crushed or screened gravel to be 4 inches when compacted.
  13. Grade of ¼ inch per foot from center to shoulder, ½ inch per foot on six foot shoulder.
  14. No drains except surface water to enter Highway ditches.
  15. Pavement shall be not less than 20 feet in width, have 4 ½ inch dense binder base and 1 ½ inch top.
- |                      |        |        |
|----------------------|--------|--------|
| Material Suggestions | Binder | Top    |
| State Hot Materials  | 403.13 | 403.17 |
16. All road signs to be erected and to meet all New York State and Local regulations in effect at that time.
  17. Dead-end roads are not recommended and would only be allowed in special cases and would require a 100 foot in diameter circular turn-around.
  18. The Town of Arcade Highway Superintendent shall be notified 3 days in advance of any work to be done under these specifications.
  19. All material and workmanship to be approved by the Town Highway Superintendent.
  20. Upon acceptance of said road by the Town Board of the Town of Arcade, with the approval of the State Department of Transportation and State Department of Public Works, a marketable title to said right-of-way or road shall be given to the Town of Arcade.

## SECTION 2 - UTILITY INSTALLATION

### A. General

1. Utility construction shall be provided in each new subdivision in accordance with the standards and requirements described below:
  - a. Electric – The Village of Arcade Electric Department will install the necessary electric line extensions and street lighting, all in accordance with its tariffs on file with the NYS Power Authority, as now in force, or as the same may be hereafter amended. Electric lines shall be installed on the north or east side of the street right-of-way.

- b. Water – The developer shall develop a plan to finance and install water wells in accordance with plans approved by the Wyoming County Health Department. The developer shall construct the water systems in accordance with the plan and pay for it.
- c. Sanitary Sewer – The developer shall develop a plan to finance and install sewage systems in accordance with plans approved by the Wyoming County Health Department. The developer shall construct the sewage systems in accordance with the plan and pay for it.
- d. Natural Gas – Gas lines shall be installed on the south or west sides of the street right-of-way.
- e. Telephone and Cable TV – TV lines, if applicable, shall be installed on the north or east side of the street right-of-way. Telephone and cable TV wires (if applicable) shall be installed in their own Schedule 40 conduit (Schedule 80 under streets and driveways) minimum 2 inch diameter. As a minimum, hand holes shall be installed at all junctions.

### **SECTION 3 – MONUMENTS AND LOT CORNER MARKERS**

#### **A. Requirements**

- 1. Monuments shall be placed at all block corners, angle points and points of curves in streets, and at intermediate points as recommended by the Town Board.
- 2. The monuments shall be of such material, size and length as may be approved by the Town Board.
- 3. Markers shall be located in the ground at final grade at all corners. Such markers shall be of metal, at least  $\frac{3}{4}$  inch in diameter and at least 24 inches long.

### **SECTION 4 – LOTS**

#### **A. Design Requirements**

- 1. Land subject to flooding shall not be platted for residential occupancy nor for such other uses as may increase danger to life or property or aggravate the flood hazard.
- 2. Lot dimensions shall conform to the requirements of the Zoning Law, as summarized below:

| <u>ZONING DESIGNATION</u> | <u>MINIMUM<br/>LOT AREA</u> | <u>MINIMUM<br/>LOT FRONTAGE</u> |
|---------------------------|-----------------------------|---------------------------------|
| All Zones – R, AG         | 2 acres                     | 200 feet                        |

- 3. Corner lots for residential use shall consider both street sides as front lots in the application of area requirements.
- 4. Subdividing of the land shall be such as to provide each lot with satisfactory access to an existing or proposed public street.
- 5. In case a tract is subdivided into larger parcels than normal building lots, such parcels shall be arranged so as to allow the opening of future streets, minimum setbacks there-from and logical re-subdivision.

## **SECTION 5 – PARKS, PLAYGROUNDS, OR OPEN SPACE**

### **A. Requirements**

1. Where the Zoning Laws require land to be set aside for parks, playgrounds or other recreational purposes, the Town Board may require that the site be graded, loamed, and seeded and may require it to be fenced.
2. When areas for park, playground, recreational purposes or open space have been required on the subdivision plat, the approval of said subdivision plat shall not constitute an acceptance by the Town of such an area.
3. All subdivisions must comply with the Zoning Laws pertaining to that particular type of subdivision.

## **ARTICLE IV – FEES**

### **SECTION 1 – GENERAL REQUIREMENTS**

At the time of submitting a preliminary layout, the sub-divider shall pay to the Town Clerk an application fee in the amount of ten dollars (\$10.00) per lot. No portion of the application fee shall be returned to the sub-divider except in the case where the Town Board withdraws a plat before initial study. However, in the event that an application is disapproved, the sub-divider will be excepted from the payment of an application fee on the refilling of the same or an amended plat containing the same number or fewer lots, provided the refilling is done within a period of one (1) year from the date of disapproval. Application fees are entered into the General Fund of the Town.

## **ARTICLE V – VARIANCES**

### **SECTION 1 – HARDSHIPS**

Where the Planning Board finds that extraordinary hardships may result from strict compliance with these regulations, it may vary the regulations so that substantial justice may be done and the public interest secured; provided that no such variation shall be granted which will have the effect of nullifying the intent and purpose of the Town Master Plan, the Wyoming county Sanitary Code or of these regulations.

## **ARTICLE VI – ENFORCEMENT**

### **SECTION 1 – RECORDING**

Pursuant to Section 276 of the Town Law, no subdivision map or plat of any land which is subject to control under the provisions of these regulations shall be filed or recorded in the office of the County Clerk unless it shall have been approved by the Arcade Town Board and in testimony of that fact bears the official seal and the signature of the Town Clerk.

In the event any such unapproved plat is recorded, it shall be considered invalid and the Town Board shall institute proceedings to have the plat stricken from the records.

## **SECTION 2 – PENALTIES**

Whoever violates these regulations or fails to comply with any lawful order pursuant thereto shall forfeit and pay not less than one hundred dollars (\$100.00) or more than five hundred dollars (\$500.00), such sum to be recovered with costs in a civil action in the name of the Town of Arcade.

Any person, partner, firm or corporation who disposes of, offers for sale or leases any lot or any part of a lot in a subdivision before provisions of these regulations are complied with, shall forfeit and pay the sum of not less than fifty dollars (\$50.00) nor more than five hundred dollars (\$500.00) for each lot or parts of a lot so sold, offered for sale or leased, to be recovered with costs in a civil action in the name of the Town of Arcade.

In addition to other remedies, the Town may also maintain an action or proceeding in a court of competent jurisdiction to compel compliance with or to restrain by injunction the violation of such regulations.

## **ARTICLE VII – SEPARABILITY**

If any section, subsection, clause or phrase of these regulations is for any reason held to be unconstitutional or void, such decisions shall not affect the validity of the remaining portions of these regulations.

## **ARTICLE VIII – CONFLICTS, REPEALER, EFFECT**

### **SECTION 1 – CONFLICTS**

In their interpretation and application, the provisions of this Local Law shall be held to be minimum requirements adopted for the promotion of the public health, morals, safety or the general welfare. Whenever the requirements of this Local Law are at variance with the requirements of any other lawfully adopted rules, regulations or local laws, the most restrictive or that imposing the higher standards shall govern.

### **SECTION 2 – REPEALER**

Any previously adopted Zoning Local Law of the Town of Arcade, together with all changes and amendments thereto, is hereby repealed and declared to be of no effect.

### **SECTION 3 – EFFECT**

This Local Law shall take effect on the filing thereof with the Department of State of the State of New York and said date of filing and effective date shall hereafter be inserted in the spaces provided. Effective date September 19, 2007.

## Section 816 –B            LAND SEPARATION

### ARTICLE I – GENERAL PROVISIONS

1. **TITLE** – This Local Law provides for the regulation of land separation within the Town of Arcade, Wyoming County, New York. It may be cited as “The Town of Arcade Land Separation Law”.
2. **AUTHORITY** - By Authority of Resolution adopted by the Arcade Town Board on the \_\_\_\_ day of\_\_\_\_\_, pursuant to the provisions of Section 10 of Municipal Home Rule Law to regulate the divisions of land into individual lots, when such divisions of land fail to meet the threshold for review as a subdivision as set forth in the Town of Arcade Subdivision Regulations Law.
3. **PURPOSE** – It is declared to be the policy of the Town of Arcade to consider land separations as part of a plan for the orderly, efficient, and economical development of the Town. This means among other things, that lots created by land separations shall be of such character that they can be used safely for building purposes without danger to health, or peril from fire, flood or other menace; that proper provision shall be made for drainage, water supply, wastewater treatment and other needed improvements; that all proposed lots shall be so laid out and of such size as to be in compliance with the Town of Arcade Local Zoning Law and in harmony with the development pattern of the neighboring properties.
4. **WAIVERS OR MODIFICATIONS OF REQUIREMENTS** – Where the Planning Board finds that special circumstances exist in a proposed land separation, it may waive or modify specific requirements of this Local Law, subject to appropriate conditions, provided that such waiver or modification shall not have the effect of nullifying the intent and purpose of the Town of Arcade Land Separation Law, Land Subdivision Law, Local Zoning Law or any existing Comprehensive Plan and official map.

In granting said waivers or modifications, the Planning Board may require such conditions as will, in its’ judgment, substantially secure the objectives of the standards or requirements so waived or modified.

#### 5. DEFINITIONS

- a. Formal Offer to Sell:  
Any offer to sell land which involves a form of public offering including, but not limited to, real estate listings, auction listings, media advertising (printed, radio, television, etc.) or use of signs.
- b. Land Separation:  
Any division of land into lots where all such developable lots or parcels: (1)

front on an existing public street, or (2) do not require the extension of significant modification or municipal facilities.

Any division of agricultural land for the purpose of continued agricultural use shall be considered a land separation and subject to the Town of Arcade Land Separation Law.

1. Land separation shall also include the division of land to allow the transfer of property between adjacent parcels, provided that nonconforming lots or parcels are not created and no existing degree of nonconformity is increased.
2. Public acquisitions by purchase of strips of land for the widening or opening of streets shall not be included within this definition nor subject to these regulations.
3. Land separations shall be processed in compliance with the Town of Arcade Land Separation Law unless the Planning Board deems it necessary for the protection of public health, safety and welfare (i.e. storm water drainage, topography, etc.) that a land separation be processed as a subdivision.

c. Lot:

A piece, parcel or plot of land intended as a unit for transfer of ownership or for development.

d. Property Owner:

The owner of the property subject to the proposed land separation, or his/her duly authorized representative (such authorization shall be provided in writing).

e. Subdivision:

Division of land into lots that is not considered a land separation as defined herein. Subdivisions shall include, but are not limited to, the division of land into lots when any such lots:

1. Do not front on an existing public street, or;
2. Require the extension or significant modification of municipal facilities.

This definition shall apply when land is divided for the purpose, whether immediate or future, of transfer of ownership or development, and shall include re-subdivision.

Public acquisitions by purchase of strips of land for the widening or opening of streets shall not be included within this definition nor subject to these regulations.

f. Zoning Enforcement Officer (ZEO):

The Town of Arcade Zoning Enforcement Officer.

g. Local Zoning Law/Zoning Law:

The officially adopted Local Zoning Law of the Town of Arcade together with all amendments thereto.

## **ARTICLE II – PROCEDURE**

Whenever any land separation is proposed, before any formal offer to sell any lots in such land separation, or any other part thereof, is made, and before any contract for sale is executed by the property owner, the property owner shall submit a preliminary sketch plan and obtain written approval of such preliminary sketch plan in accordance with the procedures set forth in Section 1, 2 and 3 of this Article. Before any land is transferred or any permit for the erection, construction, alteration or movement of any building or structure is issued for such land, final authorization of said land separation shall be obtained and filed in the Wyoming County Clerk's Office as set forth in Sections 4 and 5 of this Article.

### **SECTION 1 – SUBMISSION OF PRELIMINARY SKETCH PLAN**

A property owner shall, prior to undertaking a land separation, submit to the Zoning Enforcement Officer at least ten (10) days prior to any regular meeting of the Planning Board, a completed application for and eight (8) copies of a preliminary sketch plan of the proposed land separation. The preliminary sketch plan shall show:

- A. The entire original parcel being divided;
- B. All proposed new lot lines and/or new lots, and;
- C. Any existing easements, deed restrictions or covenants affecting the property.

At that time, the property owner shall also pay the Land Separation Application fee which is the same as the Site Plan Application fee that has been established by separate resolution of the Town Board.

### **SECTION 2 – DISCUSSION OF REQUIREMENTS AND CLASSIFICATION**

- A. The property owner shall attend the meeting of the Planning Board to discuss his/her proposal as set forth in the sketch plan.
- B. Classification of the preliminary sketch plan will be made at this time by the Planning Board as to whether the proposal qualifies as a land separation or must be processed as a subdivision. When it deems necessary for protection of the public health, safety and welfare, the Planning Board may require a land separation to be processed as a subdivision in compliance with the Town of Arcade Land Subdivision Law.

### **SECTION 3 – STUDY OF SKETCH PLAN**

The Planning Board shall review the preliminary sketch plan to determine whether it meets the purpose of this Local Law as set forth in Article I. The Planning Board shall, where it deems necessary, make specific recommendations in writing to be incorporated by the applicant into the proposal prior to final authorization by the Planning Board.



## **SECTION 4 – FINAL AUTHORIZATION**

Within one-hundred eighty (180) days of Planning Board approval, the property owner shall provide the Planning Board three (3) prints of a property survey prepared by a New York State Licensed Land Surveyor. This survey shall meet all the recommendations made by the Planning Board relative to the sketch plan. Upon determination that the survey complies with the Planning Board's recommendation, the Chairperson, or other duly designated Officer of the Planning Board, will sign the application and provide the property owner with a copy of such application. Failure of the property owner to submit the required survey documentation to the Planning Board, within the one-hundred eighty (180) day time period will render the Planning Board's approval null and void.

## **SECTION 5 – FILING OF SURVEY WITH WYOMING COUNTY CLERK**

Within sixty (60) days of obtaining final authorization from the Planning Board Chairperson, or his/her designee, the property owner shall file the survey(s) at the Wyoming County Clerk's Office. Failure of the property owner to file such documentation with the Wyoming County Clerk within the specified time period will render both the Planning Board's approval and final authorization null and void.

## **ARTICLE III – PENALTIES FOR OFFENSES**

Any person, firm, company or corporation who shall omit, neglect or refuse to do any act required by the Land Separation Law shall be guilty of an offense and subject to a fine of not less than one-hundred dollars (\$100) and thereafter not more than fifty dollars (\$50) per day, or imprisonment for a period of not more than fifteen (15) days or both; and in addition maybe ordered to pay all costs and expenses involved in the case, including reasonable attorney's fees. Every such person, firm, company or corporation shall be deemed guilty of a separate offense for each day such violation, disobedience, omission, neglect or refusal shall continue.

## **ARTICLE IV – SUPERSEDING AND REPEALER CLAUSE**

All applicable statutes, laws and local ordinances, in conflict with the provisions of this Local Law, including Sections 276 and 277 of the New York State Town Law, are hereby superseded to the extent necessary to give this Local Law full force and effect.

## **ARTICLE V – EFFECTIVE DATE**

This Local Law shall take effect immediately upon its filing with the New York State Secretary of State.

## **Section 817 - RESIDENTIAL AND OPERATING FARM ENERGY SYSTEMS**

### **1. DEFINITION**

An energy system that is operated primarily for on-site residential or operating farm use. Residential systems shall be classed according to maximum power produced and type of technology used.

### **2. FEES**

The application for a Certificate of Zoning Compliance, Site Plan Approval or Special Use Permit must be accompanied by the non-refundable fee required for Residential projects.

### **3. POWER LIMITS**

- A. Residential home energy systems shall be limited to 15 KW (fifteen kilowatts) per residence lot.
- B. Residential energy systems sited on an operating farm are limited to 100 KW (one hundred kilowatts).
- C. Electrical energy occasionally produced in excess of the residential or operating farm needs may be sold back to the Power Grid as allowed by the Public Service Commission (PSC).
- D. A variance to these limits may be applied for to adjust for changes in future technology.
- E. Any energy system that exceeds these power limits is considered a commercial energy system for siting purposes.

### **4. TYPES OF SYSTEMS AND APPLICATION REQUIREMENTS**

The types of systems allowed and the application requirements for each are found in the Sub-Sections that follow.

### **5. SEVERABILITY**

In the event that any word, phrase or part of this Zoning Law shall be declared unconstitutional, the same shall be severed and separated from the remainder of this Zoning Law and shall not affect the remainder of said Zoning Law which shall remain in full force and effect.

### **6. EFFECTIVE DATES**

This Local Zoning Law shall take effect immediately upon filing in the Office of the New York State Secretary of State in accordance with Section 27 of the Municipal Home Rule Law.

### **7. VIOLATIONS**

Any violations are subject to a fine as determined by the Arcade Town Board for normal zoning violations.

## **Section 817.1 – SOLAR ENERGY SYSTEMS**

The generation of electrical power for personal use at your own residence or operating farm by using solar collectors. These systems are a use permitted by right in the R1, R4, AG, HC, LI and LI/HC districts with the exception of the R4 district. Only roof mounted solar systems are allowed in the R4 district.

Solar Energy Systems include those used to generate electricity through electronic solar panels as well as those that capture and apply solar heat in passive thermal mass stations.

### **1. PERMIT REQUIREMENTS**

#### **A. SOLAR COLLECTORS ERECTED ON EXISTING STRUCTURES**

1. Copy of approved Installation Certificate for electrical connection from New York Board of Fire Underwriters is required.
2. Verification from servicing Power Company that the installation is acceptable and permitted is required.
3. Site Plan approval is NOT required for – Solar Systems that are mounted on the roof of a residential house, apartment building or operating farm owned by the applicant, as long as the combined height dimension of the structure plus installation of the system does not exceed the maximum height restriction in the Zoning District found in Town Zoning Regulations. All the system's equipment must be roof installed or contained totally within the confines of the structure to qualify for this exception.
4. Any structurally mounted solar panel shall have an emergency cut-off switch accessible by firefighters in the case of emergency.

#### **B. SOLAR COLLECTORS ERECTED ON THE GROUND**

1. Approved Certificate of Zoning Compliance from the Town Zoning Enforcement Officer is required. This type of installation will be considered an accessory structure and must comply with all current setback regulations.
2. Building Permit from the Wyoming County Building Department is required.
3. Verification from servicing Power Company that the installation is acceptable and permitted is required.
4. Copy of approved Installation Certificate for electrical connection from New York Board of Fire Underwriters is required.
5. Site Plan approval is NOT required for – Solar Systems that are erected on the ground at a residential house, apartment building or operating farm owned by the applicant, as long as current setback regulations for an accessory structure are in compliance in the Zoning District found in Town Zoning Regulations.

## **2. DECOMMISSIONING AND RESTORATION**

Any Solar System that is exposed to the external environment that is not operational for more than 12 (twelve) months must be removed

### **Section 817.2 – WIND ENERGY SYSTEMS**

The generation of electrical power for personal use at your own residence or operating farm by using wind mills.

#### **1. PERMIT REQUIREMENTS**

- A. Approved Certificate of Zoning Compliance from the Town Zoning Enforcement Officer is required. This type of installation will be considered an accessory structure and must comply with all current setback regulations. Included with the application for a Certificate of Zoning Compliance must be a clear and concise check sheet for an emergency shutdown of the system.
- B. Building Permit from the Wyoming County Building Department is required.
- C. Copy of approved Installation Certificate for electrical connection from New York Board of Fire Underwriters is required.
- D. Verification from servicing Power Company that the installation is acceptable and permitted is required.
- E. Site Plan approval is NOT required as long as current setback regulations are in compliance in the Zoning District found in Town Zoning Regulations.

#### **2. NOTIFICATION**

- A. All neighboring residents within a ¼ (one-quarter) mile radius of any potential sited Residential Wind Energy System project must be sent a registered letter sent by the Town Zoning Enforcement Officer explaining the scope of the applicant's energy project including zoning requirements.
- B. Neighboring residents shall be allowed a 30 (thirty) day window after receipt of the letter to comment in writing to the Town Zoning Enforcement Officer for any concerns on the project before any Wind Energy System construction may begin.

#### **3. DECOMMISSIONING AND RESTORATION**

Any Wind Energy System that is not operational for more than 12 (twelve) months must be removed. Removal shall be at the cost of the property owner.

#### **4. HEIGHT**

Residential Wind Energy Systems shall be limited to a height of 65 feet (sixty-five) on property of less than 5 (five) acres. Any parcel 5 (five) acres or larger will be allowed an energy system to a maximum of 80 (eighty) feet.

## **5. SETBACKS**

- A. Wind Turbines shall be installed not less than the greater distance of 260 (two hundred sixty) feet or 4 (four) times the maximum height of any structure from an adjacent residence or road.
- B. Wind Turbines shall not be located closer to a property line less than 1 ½ (one and one-half) times the total height of the turbine, including tower and blades.
- C. Wind Turbines may not be erected in the required front yard.
- D. Ground Clearance: The vertical distance from ground level to the tip of a Wind Turbine blade when the blade is at its lowest point must be at least 30 (thirty) feet.

## **6. UNIQUE STRUCTURE REQUIREMENTS**

If a Wind Energy System monopole or freestanding construction is not practicable, a tower may be guyed.

## **7. NOISE – Sound Power Level Limit**

- A. The sound generated by the energy system shall not exceed 50 dB (A) or 70 dB(C) outside any residence during daylight hours (7:00 AM to 7:00 PM), and shall not exceed 40 dB (A) or 60 dB(C) outside any residence during night time hours (7:00 PM to 7:00 AM). Sound level measurement shall be a ten-minute (10) average (Leq.). All turbines must meet these sound requirements or be immediately remedied or shut down.
- B. If a variance request against the noise limit regulations is submitted in writing by the landowner, no noise limits shall apply to the landowner's residence that they occupy.

## **8. SHADOW FLICKER**

- A. Shadow Flicker Maps for Wind Turbines – Maps shall be prepared showing projected annual hours of shadow flicker impact for all sensitive areas/locations within the project area, including but not limited to, any residence, school, hospital, church, park or public library.
- B. Shadow Flicker Duration – Shadow Flicker for all sensitive areas/locations within the project area shall be limited to zero (0) hours per day.

## **9. ELECTROMAGNETIC INTERFERENCE (EMI)**

- A. No individual tower facility shall be installed in any location where proximity with existing broadcast, retransmission or reception antenna (including residential

antenna) for radio, television, wireless telephone or other personal communication systems would produce electromagnetic interference with signal transmission or avoid any interference with electromagnetic communications, such as radio, telephone or television signals caused by any Wind Energy System or the applicant shall mitigate any such interference.

- B. Alternatively, Wind Energy Systems shall be properly filtered or shielded in order to avoid electromagnetic interference and shall comply with rules and regulations of the Federal Communication Commission contained in 47 CFR Parts 15 and 18.

## **10. INSPECTIONS**

- A. The Town Zoning Enforcement Officer or designated representative shall have the right at any reasonable time to enter the premise on which a Residential Wind Energy System has been placed, to inspect any and all parts of said installation. After conducting said inspection, the Zoning Enforcement Officer may order the owner of the system to render it inoperative for reasons related to safety, noise, electrical pollution or electromagnetic interference.
- B. If unable to contact the owner, the Zoning Enforcement Officer or designated representative may execute an emergency shut down procedure which has been provided in advance by the owner/applicant in the form of a clear and concise check sheet as part of the permit process. All liability for the execution of an emergency shutdown shall be with the owner of the Wind Energy System.

## **11. SECURITY SAFETY**

All Wind Energy Projects including any climbing aides must be secured from unauthorized access by a locked barrier or other method acceptable to the Town.

## **12. OPERATIONAL SAFETY**

Wind Towers shall have an automatic breaking, governing or feathering system to prevent uncontrolled rotation, over-speeding and excessive pressure on the tower structure, rotor blades and turbine components.

## **13. TOWER LIGHTING**

A Wind Tower may not be artificially lighted unless such lighting is required by the Federal Aviation Agency (FAA), other governmental agency, recognized safety guidelines (i.e. Mercy Flight) or the Planning Board. If lighting is required, the lighting must comply with FAA minimum requirements, and whenever possible, be at the lowest intensity allowed.

## **14. LIGHTNING PROTECTION**

A Wind Tower shall provide a continuous electrical path to the ground to protect the tower from lightning. All guy wires capable of conducting electricity shall be adequately grounded.

### **Section 817.3 – GEOTHERMAL ENERGY SYSTEMS**

A system generally using pipes and other hardware inserted into the ground to capture and take advantage of the thermodynamic energy differential found below ground.

1. Site Plan approval is required for energy heating/cooling systems based on technology using thermal gradients within soil to produce cooling or heating.
2. Open Looped Systems (see definitions Section 819) are prohibited.
3. Property line setbacks and maximum height standards for the Zoning District must be met.
4. If a building or shed is constructed to shield the installation, all Zoning District setbacks and height requirements must be met. The form and color of the construction must be consistent with other buildings in the district.
5. The County Building Department does require a Building Permit.

### **Section 817.4 – OTHER FORMS OF ENERGY SYSTEMS**

Other forms of Energy Systems beyond Solar, Wind and Geothermal. These include, but are not limited to, natural gas wells, oil wells, biomass/biodiesel, bio digestion (including manure pits) and waste disposal/energy recovery and generation systems and other similar systems.

#### **1. PERMIT REQUIREMENTS**

Energy generations systems as described in this section are to be treated as Industrial or Commercial Systems and regulations for such can be found in Section 819 of these Town Zoning Laws.

### **Section 817.5 – FUTURE NEW TECHNOLOGY ENERGY SYSTEMS**

1. It is anticipated that as technology is developed, new types of systems may be developed that would be appropriate for use in a residential or farm setting. This may make it necessary to amend this law to define and add regulations for such systems. However, until such new regulations are developed, residential and operating farm owners may apply for a variance if they propose using novel new types of technology systems to be considered as appropriate for residential or farm use.
2. Those approving the variance should be guided by the technology being of such scope or scale that it readily applies to the small nature of residential or farm applications using the KW (Kilowatt) levels shown in Section 817, No. 3-POWER LIMITS and the primary intent to not sell the energy externally. However, any appeal where the technology or project scope is questionable should default to being assigned to the Industrial or Commercial level and treated under Section 819 of these Town Zoning Laws.

**Section 818 THIS SECTION WILL BE RESERVED FOR FUTURE USE.**

## **Section 819 – REGULATION OF COMMERCIAL AND INDUSTRIAL ENERGY PRODUCTION/CONVERSION SYSTEMS (CEPCS)**

### **Section 819-1.1 Purpose and Intent**

The purpose of this law is to promote and protect the public health, safety, aesthetics, welfare and property values of the occupants/taxpayers of the Town of Arcade, and to minimize the negative impacts of Commercial Energy Production/Conversion Systems and other Commercial and Industrial projects.

Further, the ordinance provides a regulatory scheme within the jurisdiction of the Town of Arcade for the construction and operation of such projects subject to reasonable restrictions which preserve the public health and safety and are consistent with the Comprehensive Plan of the Town.

### **Section 819-1.2 Findings**

The Town finds that commercial development including all types of energy generation, processing or transport is beneficial to the Town, its residents and is consistent with the general welfare of the area. However, the development of such projects must be done in a manner so as to promote and protect the rights and concerns of all citizens of the Town.

### **Section 819-1.3 Authority**

The Town Board of Arcade enacts this Local Law under the authority granted by:

- A. Article IX of the New York State Constitution Section 2(6) and (10);
- B. New York Statute of Local Government Section 10(1) and (7);
- C. New York Municipal Home Rule Law Section 10(1)(i) and (ii) and Section 10(1)(a), (6), (11), (12) and (14);
- D. New York State Town Law Section 130(1) Building Code, (3) Electrical Code, (5) Fire Prevention, (7) Use of Streets and Highways, (7-a) Location of Driveways, (11) Peace, Good Order and Safety, (15) Promotion of Public Welfare, (15-a) Excavated Lands, (16) Unsafe Buildings, (19) Trespass, and (25) Building Lines;
- E. New York Town Law Section 64 (17-1) Protection of Aesthetic Interest and (23) General Powers.

### **Section 819-1.4 Definitions**

For the purpose of this Local Law, certain terms or words used herein will be interpreted as follows:



**Boring/Borehole:** A penetration of soil and/or rock that is augured, drilled, cored, bored, washed, driven, dug, jetted, or otherwise constructed which is generally cylindrical in shape and whose diameter is generally smaller than its depth of penetration.

**Casing:** An impervious durable pipe placed in a well to prevent the walls from caving and to seal off surface drainage or undesirable water, gas or other fluids and prevent their entering the well.

**Closed-Loop Geothermal System:** A type of geothermal heating and/or cooling system that utilizes a pressurized heat exchanger consisting of pipe, a circulating pump, and a water-source heat pump in which the heat transfer fluid is not exposed to the atmosphere. The heat transfer fluid is potable or beneficial reuse water and may have approved antifreeze added.

**Commercial Energy Production/Conversion System (CEPCS):** An energy production system (wind, solar, etc.) that is operated primarily to generate profits by putting energy or materials that can produce energy into an electric grid or other type of commercial energy distribution system (ex. Pipeline). Any such system with a nameplate capacity of more than 100 kilowatts (kW), and/or a total height of more than 425 feet is also considered a commercial system.

A CEPCS is a system which produces energy by means of processing or converting other forms of matter or energy - such as the kinetic energy of the wind, or the organic compounds in manure to methane gas - into electrical, mechanical or any other form of energy. CEPCS's also may involve systems which gather materials which are later converted into energy (ex. coal, natural gas, etc.)

CEPCS's are constructed using equipment that converts and then stores or transfers such energy into usable forms of energy and includes any base, blade, foundation, generator, nacelle, rotor, tower, transformer, turbine, vane, wire, substation, maintenance building, holding vat, generator, transfer pipe or station, battery, wells, etc., as well as all associated control and ancillary support facilities or any other components used in the system. A CEPCS can consist of one or more sets of energy producing systems.

CEPCS's do not include small lawn decorations, pond aerators or remaining portions of mechanical water pumping windmills.

Commercial Energy Production/Conversion Systems exclude Residential and Operating Farm Systems as found in Section 817 of this Local Law.

**Commercial and Industrial Projects:** These are commercial projects where energy production or transfer is not the product or process being produced. These types of projects could include manufacturing plants, office buildings, etc.

**Decibel:** A decibel (dB) is a logarithmic unit of measurement of sound pressure level on a scale that corresponds to the human perception of sound and which can be measured by a sound testing device. Units are typically measured in dB (A) and dB(C).

**Electromagnetic Interference (EMI):** The interference to communication, traffic control and weather radar systems due to electromagnetic waves created by electrical systems.

**Geothermal System:** A system that uses a heat pump to extract heat from the earth in heating mode and/or reject heat into the earth in cooling mode. It is also called a geothermal heat pump system, a ground-coupled heat pump system, an earth-source heat pump system, and a GeoExchange system.

**Ground Source Heat Pump:** A geothermal heat pump that uses the earth itself as a heat source and heat sink. It is coupled to the ground by means of a closed-loop heat exchanger installed horizontally or vertically underground.

**Heat Pump:** A mechanical device used for heating and/or cooling which operates by pumping heat from a cooler to a warmer location.

**Commercial Energy Production/Conversion Systems (CEPCS) Maximum Height:** A vertical distance from ground level to the highest elevation from ground of an energy system at its highest point.

**Meteorological Testing Tower (MET):** A tower, either temporary or permanent, utilized for the gathering of weather data including wind velocity, frequency and duration.

**Open-Loop Geothermal System:** A type of geothermal heating and/or cooling system that utilizes a water-supply well and a water pump to deliver ground water to a water-source heat pump. The discharge water from the water-source heat pump may be returned to the subsurface through a recharge well or infiltration bed, or may be discharged into a pond, lake or stream. A spring may also be the source of the ground water supply.

**Participating/Non-Participating Landowners:** Any landowner that allows commercial energy facility energy system siting or use of their property for siting setback is considered a participating landowner. A non-participating landowner does not allow the use of their land for siting commercial energy system energy projects.

**Residential and Operating Farm Energy System (RES):** An energy system that is operated primarily for on-site residential or operating farm use. See Section 817.

**Rotor Diameter:** The largest diameter formed by the blades when assembled on the rotor hub and mounted on the wind energy system.

**Shadow Flicker:** The alternating pattern of light and shade caused by wind tower blades casting a shadow.

**Site Plan Review:** The review of a drawing showing the arrangements, layout and design of the proposed single parcel of land as shown on said plan. Site Plan Review is required on all Special Use Permit applications.

**Special Use Permit:** The term Special Use Permit shall mean an authorization of particular land use which is permitted in a Zoning Law, subject to the requirements, layout and design of the proposed single parcel of land as shown on said plan. Site Plan Review is required on all Special Use Permit applications.

**Standing-Column Geothermal System:** A type of open-loop geothermal heating and/or cooling system that circulates ground water from a water well through a heat exchanger and returns the discharge water from the water-source heat pump to the same water well that it was pumped from. The water withdrawal and return locations within the water well bore are separated as far as is possible. Some standing-column geothermal systems discharge some of the circulating ground water to enhance their heat transfer.

**Stray Current:** The inappropriate application of current to the ground or earth. For the purpose of this Section, it is the measurable addition of current to ground resulting from improper installation or deterioration of the electrical portion of a wind energy system. The National Electrical Safety Code set the conditions that grounding connection points shall be so arranged that under normal circumstances there will be no objectionable flow of current over the grounding conductor. The National Electrical Safety Code set the conditions that earth (ground) should not be part of a supply circuit for both safety and service reasons. The most current revision of the National Electrical Safety Code shall apply.

**Substation:** A Substation is a subsidiary facility where electricity is collected and transformed prior to being connected to the power grid.

**View Shed:** A View Shed is an area of land, water or other physical environmental element that is visible to the human eye from a fixed vantage point.

**Water-Source Heat Pump:** A heat pump that uses a water-to- refrigerant heat exchanger to extract heat from the heat source.

**Water Supply Well:** Any well that is constructed to remove or return water to the ground.

**Well:** Any excavation that is drilled, cored, bored, washed, driven, dug, jetted, or otherwise constructed when the intended use of such excavation is for the location, acquisition, monitoring, or artificial recharge of ground water. This includes, but is not limited to, test wells, test borings and monitoring wells, in addition to wells to be utilized as individual or semipublic water supplies.

**Wind Farm:** A Wind Farm is a group of wind turbine Commercial Energy/Production Systems in the same location used for production of electric power. Individual turbines are interconnected with a medium voltage power collection system and communications network. At a substation this medium-voltage electrical current is increased in voltage with a transformer for connection to the high voltage transmission system.

**Wind Tower:** The monopole, freestanding structure that supports a wind turbine generation Commercial Energy Production/Conversion System.

**Zone of Visual Influence:** The area from which a development is theoretically visible. It is usually represented as a map using color to indicate visibility. Zone of Visual Influence is used to identify the parts of a landscape that will be affected by a development. A cumulative Zone of Visual Influence is used to define the cumulative effects of many developments including Wind Farms.

**Section 819-1.5 – Application for Site Plan Approval for Commercial and Industrial Energy Production/Conversion Systems (CEPCS) and for all other Commercial and Industrial Projects**

**A. An application for Site Plan Approval is required for any Commercial Energy Production/Conversion System (CEPCS) including any Commercial or Industrial Project.** Such applications shall be made in writing accompanied by information contained in the checklist that follows. The application shall be delivered to the Zoning Enforcement Officer with fees paid to the Town Clerk. The Zoning Enforcement Officer will work with the applicant to understand what information is required and can explain current zoning regulations. The Zoning Compliance Officer will inform the applicant when the forms are sufficiently complete to submit to the Town Planning Board for consideration for Site Plan approval.

1. A CEPCS is only permitted in the Ag and HC/LI districts.

**B. Information to be submitted with the Site Plan Application/Checklist:**

1. Completed application with receipt for fees paid, signed and submitted Certificate of Zoning Compliance, Site Plan Application and/or Special Use Application. Please contact the Town Zoning Enforcement Officer with any questions to help prepare these documents;
2. Review and have available for the first hearing as much information as already exists on the “Site Plan and Special Use Permit Approval Checklist”. This document is available from the Zoning Enforcement Officer or the Town Clerk. It must be fully completed and approved by the Planning Board as a prerequisite to receiving a Site Plan approval;
3. Site map/survey as required to scale showing any Federal, State, County or Local parks, recognized historic or heritage sites, State identified wetlands, or important bird area identified by NYSDEC, New York Audubon, GIS databases or other generally available documentation;
4. Standard drawings of the buildings or energy system structure, including drawings of access roads, including an engineering analysis and certificate of the structure showing compliance with applicable building code;
5. Data pertaining to the project equipment safety and stability, including results from test facilities;
6. Proposal for landscaping screening;
7. A completed SEQR – State Environmental Quality Review Short Environmental Assessment Form – as required by the State of New York. The form is available on-

- line or the Zoning Compliance Officer can assist in obtaining it. The Planning Board will review the Assessment and determine which type of project it is considered to be using State of New York published guidelines. If required, the Planning Board will recommend a Lead Agency and help determine if the scope of the project requires the long form Full Environmental Assessment (EAF) and will direct the applicant in that regard;
8. The applicant should be aware of other legal requirements and filings under State or Federal jurisdiction and obtain their approvals separately (ex. Federal Aviation authority for height restrictions, NYS Department of Environmental Conservation for environmental issues, Wyoming County building permits, etc.). The Site Plan cannot be approved if the applicant has not arranged for all other regulatory compliance;
  9. A model should be prepared with digital elevation, showing the impact of the topography upon visibility of the project from other locations, to a distance of 3 (three) miles from each construction site. The scale used shall depict the 3 (three) mile radius no smaller than 2.7 inches and the base map shall be a published topographical map showing the manmade features such as roads and buildings.

**C. Review of Site Plan** – The Planning Board’s review of the Site Plan shall include, as appropriate, but is not limited to, the following general considerations:

1. Location, arrangement, size, design and general site compatibility of buildings, lighting and signs;
2. Adequacy and arrangement of vehicular traffic access and circulation, including intersections, road widths, pavement surfaces, dividers and traffic controls;
3. Location, arrangement appearance and sufficient quantity of off-street parking and loading;
4. Adequacy and arrangement of pedestrian traffic access and circulation, walkway structures, control of intersections with vehicular traffic and overall pedestrian safety and convenience;
5. Adequacy of storm water and drainage facilities;
6. Adequacy of water supply and sewage disposal facilities;
7. Adequacy, type and arrangement of trees, shrubs and other landscaping constituting a visual and/or noise buffer between the applicant’s and adjoining lands, including the maximum retention of existing vegetation;
8. Adequacy of fire lanes and other emergency zones and the provision of fire hydrants;
9. Special attention to the adequacy and impact of structures, roadways and landscaping in areas with susceptibility to ponding, flooding and/or erosion;
10. Overall impact on the neighborhood including compatibility of design consideration;
11. Upon completion of the Site Plan Review, the Planning Board shall forward their recommendation to the Lead Agency.
12. For the protection of firefighting personnel, any electrical generating system shall have an emergency cut-off switch accessible to fireman and shall be reviewed with the Fire Department before productive use is begun.

**D. Public Hearing** – Prior to final approval the Lead Agency will conduct a Public Hearing on the Site Plan of any project scaled to be a Commercial Energy Production/Conversion System or Commercial or Industrial project. This is to allow for the opportunity for public awareness and input.

**E. Lead Agency Action On Site Plan** – Within sixty-two (62) days of the receipt of a complete application for Site Plan approval (with all documents and drawings updated to include required features), the Lead Agency shall render a decision, file said decision with the Town Clerk, and present or mail such decision to the applicant with a copy to the Zoning Enforcement Officer. The time within which a decision must be rendered may be extended by mutual consent of the applicant and the Lead Agency.

1. Upon approval of the Site Plan and payment by the applicant of all fees and reimbursable costs due to the Town, the Lead Agency shall endorse its approval on a copy of the final Site Plan and present or forward a copy to the applicant, Zoning Enforcement Officer and the Town Clerk.
2. Upon disapproval of a Site Plan, the Lead Agency shall so inform the Zoning Enforcement Officer and the Zoning Enforcement Officer shall deny a Certificate of Zoning Compliance to the applicant. The Lead Agency shall also notify the applicant in writing of its decision and its reason for disapproval. Such disapproval shall be filed with the Town Clerk.
3. Reimbursable costs incurred by the Planning and/or Town Board for consultation fees or other extraordinary expenses in connection with their review of the proposed Site Plan shall be charged to the applicant.

**F. Performance Guarantee**

- a. No Certificate of Zoning Compliance shall be issued by the Zoning Enforcement Officer until all improvements shown on the Site Plan are installed or a sufficient performance guarantee has been posted for improvements not yet completed.
- b. The sufficiency of such performance guarantee shall be determined by the Town Board after consultations with the Planning Board, Zoning Enforcement Officer, Attorney for the Town and other appropriate parties.

**G. Inspection of Improvements** – The Town will hire a consultant familiar with the type of project, at applicant's expense, to be responsible for the overall inspections of site improvements including coordination with the Planning Board and other officials and agencies as appropriate.

**H. Access and Safety**

1. Security – All structures, in particular towers and climbing aids, must be secured against unauthorized access by means of a locked barrier. A security fence may be required.
2. Climbing Aids – Monopole towers shall have all climbing aids and any platforms locked and wholly inside the tower.
3. Operational Safety – Wind energy projects shall have an automatic braking, governing or feathering system to prevent uncontrolled rotation, over speeding and

excessive pressure on the tower structure, rotor blades and turbine components.

## **Section 819-1.6      Approval Standards/Permit Requirements**

It is unlawful to construct, install, maintain, modify or operate a Commercial Energy Production/Conversion System (CEPCS) or Commercial or Industrial Project that has not been issued a Certificate of Zoning Compliance with the requirements and procedures of this Town Law or any condition contained in a Special Use, Zoning and Building Permit issued pursuant to this zoning ordinance.

### **A. Permit Requirements**

1. **Certificate of Zoning Compliance/Special Use Permit** – A County Building Permit, Town Certificate of Zoning Compliance, a Special Use Permit only in appropriate districts where the use is allowed and Site Plan approval are required for the installation of a CEPCS considered part of multiple CEPCS operation.
2. **Ownership** – In cases where the owner of the property is not the applicant/owner of the CEPCS, a clear order of liability will be established. A signed and notarized legal document from the owner of record of the property on which a CEPCS will be located recognizing liability for compliance to all requirements of this law if the applicant/owner of the EPCS is unable to comply.
3. **Indemnification Clause** –The applicant shall agree to indemnify and save the Town, its officers, agents and/or employees from any liability imposed upon the Town arising from negligence, active or passive, of the applicant.
4. **Expiration** – A permit issued pursuant to this Zoning Ordinance expires if:
  - a. The CEPCS is not installed and functioning within one (1) year from the date the permit is issued; or
  - b. The CEPCS is out of service or otherwise unused for a continuous 12-month period.
5. **Fees: (Commercial)** – The application for a Special Use Permit, Certificate of Zoning Compliance or Site Plan Approval must be accompanied by the non-refundable fee required for Commercial projects.
6. **State Environmental Quality Review (SEQR)** - Depending on the scope of the project as determined by the Planning Board (see SECTION 6, (2)(g)) there shall be completed under SEQR either a short form, Environmental Assessment form or a full Environmental (EAF) Long form and, if appropriate, Appendix B Visual Assessment Form. Refer to New York State regulations on the process and content.

### **B. Financial Assurance**

1. **Insurance Coverage** – Prior to issuance of a Certificate of Zoning Compliance, the applicant shall provide the Town proof of a level of insurance to be determined by the Town Board in consultation with the town's insurer, to cover damages or injury that might result from the failure of an energy production system or any other part of the generation and transmission facility of such a Commercial Energy Production/Conversion System (CEPCS).

2. **Bonding** – Contracts with owners of CEPC shall be bonded to ensure that the energy producer, Town and landowner income continues irrespective of energy company solvency. There shall be a contract and bond to repair any roads damaged during construction and operation per Town law. The applicant must negotiate a bond to ensure that any damage to the aquifer damaged during construction will be corrected.
3. **Professional Consultants** – Professional legal, scientific and engineering consultants should be hired by the Town to review and validate all impacts and recommendations before any commercial project is accepted will be at the full expense of the applicant.
4. **Decommissioning and Restoration**  
Commercial Energy Production/Conversion System (CEPCS): The applicant shall include the following information regarding decommissioning of the project and restoring the site:
  - a. The anticipated life of the project;
  - b. The estimated decommission costs in current dollars;
  - c. The method and schedule for updating the costs of decommissioning and restoration;
  - d. The method of ensuring that payment of funds for bonds will be available for decommissioning and restoration;
  - e. The anticipated manner in which the project will be decommissioned and the site restored.

5. **Demolition and Restoration Bond**

The Planning Board and/or the Town Board shall require the applicant to provide an appropriate and adequate demolition and restoration bond for purposes of removing the CEPCS and restoring the property(ies) to pre-construction condition in the event the applicant fails to do so as required above. Proof of bond shall be provided each year or at renewal time of any permit.

The applicant, or successors, shall continuously maintain the demolition and restoration fund or bond payable to the Town of Arcade, in a form approved by the Town for the removal of non-functional CEPCS equipment, in an amount to be determined by the Town, for the period of the life of the facility. This fund or bond may consist of a letter of credit from a State of New York licensed financial institution. All costs of obtaining and maintaining the financial security shall be borne by the applicant. All decommissioning bond requirements shall be fully funded before a Certificate of Zoning Compliance is issued. The fund shall be established in a manner so it is the property of the Town of Arcade and not the applicant in the event of the applicant's bankruptcy.

The applicant shall conduct assessments every four years to determine the fund's sufficiency to properly decommission the facility. Adjustments to the fund shall be made within (10) business days of the Town's approval of the assessment, which shall not be unreasonably withheld.



1. A Commercial Energy Production/Conversion System (CEPCS) that is out of service for a continuous 12-month period or one found to be unsafe by the Zoning Enforcement Officer and not repaired by the owner to meet Federal, State and Local safety standards within 12 months will be deemed to have been abandoned. The Zoning Enforcement Officer may issue a Notice of Abandonment in the form of a letter to the owner of a CEPCS that is deemed to have been abandoned. The Zoning Enforcement Officer will withdraw the Notice of Abandonment if the owner provides information within 30 days from the date of the notice that causes the Zoning Enforcement Officer to determine that the CEPCS has not been abandoned.
2. The owner of the CEPCS must provide the Zoning Enforcement Officer with a written Notice of Termination of Operation if the operation of a CEPCS is terminated.
3. Within 3 (three) months of receipt of Notice of Abandonment or within 6 (six) months of providing a Notice of Termination of Operations, the owner of a CEPCS must:
  - a. Remove all energy systems, above ground improvements and outdoor storage;
  - b. Reduce the size of foundations to below grade and remove any underground electrical wires buried at a depth of 3 feet or less;
  - c. Remove all hazardous material from the property and dispose of the hazardous material in accordance with Federal and State law;
  - d. All disturbed areas will be de-compacted and the topsoil will be replaced to the original depth reestablishing the original contours where possible;
  - e. Repair or replace all ditches and field tiles as necessary to pre-construction condition;
  - f. All access roads will be removed, subsoil de-compacted to depth of 18 inches and topsoil replaced unless a written agreement is obtained from the property owner to leave the access road in place;
  - g. All Town, County and/or State roads will be restored to at least pre-construction conditions and road classification function.
  - h. If the owner does not or is unable to begin removal of the equipment within the time specified in Paragraph (3)(c) above, the Town is authorized to perform the decommissioning activities of the site(s) using the funds available in the bond.

#### **C. Building Permit/Certificate of Zoning Compliance Permit/Special Use Permit Requirements**

In addition to those criteria set forth under other Sections of this Zoning Ordinance, the Town shall consider the following factors when setting conditions upon Building Permits, Certificate of Zoning Compliance Permits, Special Use Permits or Site Plans issued for all Commercial Energy Production/Conversion System (CEPCS) and may hire a professional engineer or consultant to assist in the review of an application at the applicant's expense:

1. Proposed ingress and egress;
2. Proximity to transmission lines, transfer stations and pipelines, which link the project to an existing energy transmission system;

3. Number of energy structures and their location;
4. Nature of land use on adjacent and nearby properties;
5. Location of other Commercial Energy Production/Conversion Systems (CEPCS) in the surrounding area;
6. Surrounding topography;
7. Proximity to residential structures, residential Zoning Districts or areas identified for future residential use;
8. Design characteristics that may reduce or eliminate visual obtrusiveness;
9. Possible adverse effects on migratory birds and other animals and wildlife;
10. Possible adverse effects of stray voltage, interference with broadcast signals, shadow flicker (if windmills) and noise;
11. Impact on the orderly development, property values and aesthetic conditions;
12. Possible adverse effects on ground or surface water quality or quantity;
13. Recommendations of the County Planning Board;
14. Any other factors that are relevant to the proposed system.

#### **D. Standards**

##### **1. Location**

- a. A CEPCS may only be located where permitted by district zoning regulations.
- b. A CEPCS may not be located on land designated as a state forest, Town/Village Park, or set aside for the sole purpose of preserving a unique wildlife habitat or natural formation recognized by a state, federal, or local government.
- c. A CEPCS may not be located within 2,500 feet of an Important Bird Area as identified by the U.S. Fish and Wildlife Service of NYSDEC.
- d. A CEPCS may not be located within 1,000 feet of any school, classroom building or Village or Town Park.

##### **2. Power Limits - Commercial Energy Production/Conversion Systems (CEPCS)** are Any individual generator or wind mill systems of more than 110 KW.

##### **3. Setbacks**

- a. A CEPCS may not be located less than 500 feet or 1.2 x Tip Height, whichever is greater from the boundary of a non-participating property,
- b. A CEPCS may not be located less than 1000 feet or 1.2 x Tip Height, whichever is greater from a public road.
- c. A CEPCS may not be located less than 1000 feet or 1.2 x Tip Height, whichever is greater from a residence, unless waived in writing by the owner of the residence.
- d. Any new construction on adjacent parcels subsequent to the issuance of an approved permit to construct a Commercial Energy Production/Conversion Systems (CEPCS) shall not cause the system to be out of conformance with the setback requirements of this law.

## **Section 819-1.7    Requirements for all Commercial Energy Production/Conversion Systems (CEPCS):**

### **A. Access Roads**

All wind systems shall use existing roads to provide access to the facility site, or if new roads are needed, minimize the amount of land used for new roads and locate them so as to minimize adverse environmental impacts. High quality agricultural soils shall be avoided to maximum extent practicable.

### **B. Electrical Wires**

1. Electrical wires between CEPCS should be buried at least three feet (3') underground to the maximum extent practicable.
2. To ensure safety and minimize potential for stray currents, electrical collection systems for CEPCS shall conform to applicable requirements of the National Electric Code.
3. CEPCS shall make use of existing electric substations and their sites to the extent practicable.
4. Any buried wire cabling that crosses underneath a roadway shall have an indicator pylon on each side of the road.

### **C. Lighting**

1. General lot security and safety lighting shall comply with the Town requirement for control of stray (off property lighting) and intensity levels.
2. An energy structure may not be artificially lighted unless such lighting is required by the Federal Aviation Agency (FAA), other governmental agency, recognized safety guidelines (i.e. Mercy Flight) or the Planning Board. If lighting is required, the lighting must comply with FAA minimum requirements, and whenever possible, be at the lowest intensity allowed.
3. Flashing anti-collision lights shall be synchronized among the structures constructed in the energy project when necessary. If the proposed CEPCS is adjoining a pre-existing energy project, the new flashing warning lights shall be coordinated with the existing lights to the greatest extent possible.

### **D. Components**

Aesthetics -Appearance, Color and Finish – The exterior surface of any visible components of a Commercial Energy Production/Conversion System (CEPCS) must be a non-reflective, neutral color. Any equipment that is located within view or within one mile of each other must be of uniform design, including type, color and number of accessory items.

### **E. Buildings and Outdoor Storage**

Any ancillary buildings and any outside storage associated with an energy system must, to the extent reasonably possible, use materials, colors, textures, screening

and landscaping that will blend the facility into the natural setting and existing environment (i.e. In an agricultural setting, accessory buildings could look like barns). Appropriate landscaping or architecture shall be provided to screen accessory structures from roads and adjacent residences.

Substations and Appurtenant Buildings shall be as per Town of Arcade Zoning Law including:

1. Lighting Standards as per Town Law, Section 807 – Lighting Standards for Site Plans;
2. All driveways and parking areas intended to serve permanent substations, office, maintenance and appurtenant buildings shall have asphaltic or concrete paving;
3. Security and landscape fencing, where required, shall be inspected regularly by the operator and maintained in good condition at all times;
4. All permanent structures shall be graded, landscaped and maintained in good order by the operator according to seasonal conditions. Lawns, shrubs, trees and buffer areas must be maintained and/or replaced as necessary.

#### **F. Signs**

No energy system, tower, building or other structure associated with an energy system may be used to advertise or promote any product or service. A weather resistant sign plate no greater than two (2) square feet in size containing the current owner or operator, emergency phone number and current address of such owner/operator shall be located on the exterior surface of the structures or on the fence surrounding each structure and viewable by the Zoning Enforcement Officer. Except the tower identifier numbers near the tower base and the aforementioned sign identifying the owner or operator, no other word or graphic representation, other than appropriate warning signs, may be placed on a structure, building, or other structure associated with a CEPCS so as to be visible from any public road.

#### **G. Agricultural Mitigation**

The following shall apply to construction areas for a Commercial Energy Production/Conversion System (CEPCS) located in County-adopted, State-certified Agricultural Districts:

The applicant is encouraged to coordinate with the NYS Department of Agriculture and Markets (Ag and Markets) to develop an appropriate schedule for inspections to assure that the goals are being met;

1. For multiple Commercial Energy Production/Conversion Systems (CEPCS) and when required by the Town, the applicant shall hire an Environmental Monitor to oversee the construction and restoration in agricultural fields. The person or company hired as an Environmental Monitor shall be approved by the Town and paid by the applicant;
2. Any construction involving agricultural lands should be done in accordance with the NYS Department of Ag and Markets, “Guidelines for Agricultural Mitigation for Wind Power Projects” in addition to local Town requirements.

## **H. Siting Considerations**

1. Minimize impacts to normal farming operations by locating structures and roads along field edges;
2. Locate access roads, which cross agricultural fields, along ridge tops where possible to eliminate the need for cut and fill and reduce the risk of creating drainage problems;
3. Avoid dividing larger fields into smaller fields, which are more difficult to farm, by locating access roads along the edge of agricultural fields where possible;
4. All existing drainage and erosion control structures such as drainage diversions, ditches, and tile lines shall be avoided or appropriate measures taken to maintain the design and effectiveness of the existing structures. Any structures disturbed during construction shall be repaired as close to original conditions as possible, as soon as possible, unless such structures are to be eliminated based on a new design;

## **I. Construction**

1. The surface of access roads constructed through agricultural fields shall be level with the adjacent field surface;
2. The source and type of access road materials shall be described and approved by the Town of Arcade Highway Superintendent and the landowner prior to the construction of any access road or access apron;
3. Where necessary, culverts and water bars shall be installed to maintain natural drainage patterns;
4. All topsoil must be stripped from agricultural areas used for vehicle and equipment traffic and parking. All vehicle and equipment parking shall be limited to the access road and/or designated work areas such as tower sites and laydown areas. No vehicles or equipment will be allowed outside the work area without prior approval from the landowner and when applicable, the Environmental Monitor;
5. When constructing CEPCS systems in an active agricultural field, topsoil from work areas shall be stripped in accordance with guidance of the NYS Department of Agriculture and Markets on construction of wind farms in agricultural fields.
6. In cropland, hay land and improved pasture, a minimum depth of forty-eight (48) inches of cover will be required for all buried wires. In unimproved grazing areas thirty-six (36) inches of cover will be required. In areas where the depth of soil over bedrock ranges from zero to forty-eight (48) inches, the electric wires shall be buried entirely below the top of the bedrock or at a depth specified for the particular land use, whichever is less. At no time will the depth to cover be less than twenty-four (24) inches below the soil surface;
7. When constructing CEPCS systems in an active agricultural field, distribution of excavated subsoil and rock shall in accordance with guidance of the NYS

Department of Agriculture and Markets on construction of wind farms in agricultural fields.

8. In pasture areas, work areas will be fenced to prevent livestock access, consistent with landowner agreements;
9. All pieces of wire, bolts and other unused metal objects will be picked up and properly disposed of as soon as practicable after the unloading/unpacking of energy system components so that these objects will not be mixed with any topsoil. Any permits necessary for disposal under Local, State and/or Federal laws and regulations must be obtained by the contractor, with the cooperation of the landowner when required;
10. Travel of all heavy equipment (including concrete trucks and erection cranes) will be limited to designated access roads and gravel crane pads at all times;
11. Excess concrete will not be buried or left on the surface in any areas. Concrete trucks will be washed outside of active agricultural areas. Any permits necessary for disposal under Local, State and/or Federal laws and regulations must be obtained by the contractor, with the cooperation of the landowner when required;
12. Construction of CEPCS shall be limited to daylight hours.
  - a. Wind Mill Construction Exception – Wind mill construction when requiring low wind conditions may be done overnight, with the contractor notifying the Zoning Officer no later than that day and any residences within a quarter of a mile.

**13. Restoration**

1. Restoration scheduling shall be consistent with the seasonal limitations identified by NYS Ag and Markets and will be incorporated into the project's Agricultural District Notice of Intent (if applicable) as well as the Storm Water Management Plan (general permit);
2. Following construction, all disturbed areas will be de-compacted to a depth of eighteen (18) inches with a deep ripper or heavy-duty chisel plow. In areas where the topsoil was stripped, soil de-compaction shall be conducted prior to topsoil replacement. Following de-compaction, all rocks four (4) inches or larger in size will be removed from the surface of the subsoil prior to replacement of the topsoil. The topsoil will be replaced to original depth and the original contours will be reestablished where possible. All rock four (4) inches and larger shall be removed from the surface of the topsoil. Subsoil de-compaction and topsoil replacement should be avoided after October 1<sup>st</sup>, unless approved on a site-specified basis by the landowner. All parties involved should be cognizant that areas restored after October 1<sup>st</sup> may not obtain sufficient growth to prevent erosion over the winter months. If areas are to be restored after October 1<sup>st</sup>, provision should be made to restore any eroded areas in the springtime, to establish proper growth;

3. All access roads will be re-graded to restore original surface drainage patterns or other drainage pattern incorporated into the design;
4. All restored areas shall be seeded with the seed mix specified by the landowner, in order to maintain consistency with surrounding areas;
5. All surface or subsurface drainage structures damaged during construction shall be repaired as close to preconstruction conditions or better, unless said structures are to be removed as part of the construction design;
6. Following restoration, all construction debris will be removed from the site.

#### **14. Three-Year Monitoring and Remediation**

1. The applicant will provide a monitoring and remediation period of no less than three (3) years immediately following the completion of initial restoration. The three-year (3) period allows for the effects of climatic cycles such as frost action, precipitation and growing season to occur, from which various monitoring determinations can be made. The monitoring and remediation phase will be used to identify any remaining impacts associated with construction that are in need of mitigation and to implement the follow-up restoration;
2. General conditions to be monitored include topsoil thickness, relative content of rock and large stones, trench settling, crop production, drainage and repair of severed fences, etc. Impacts will be identified through on-site monitoring of all areas impacted by construction and through contact with respective farmland operators and the NYS Department of Agriculture and Agri-Markets.
3. Topsoil deficiency and trench settling shall be mitigated with imported topsoil that is consistent with the quality of topsoil on the affected site. Excessive amounts of rock and oversized stone material will be determined by a visual inspection of disturbed areas as compared to portions of the same area located outside the construction area. All excess rocks and large stones will be removed and disposed of by the applicant.
4. When subsequent crop productivity within affected areas is less than that of adjacent agricultural land, the applicant as well as other appropriate parties will help to determine the appropriate rehabilitation measures to be implemented. Because conditions which require remediation may not be noticeable at, or shortly after, the completion of construction, the signing of a release form prior to the end of the remediation period will not obviate the applicant's responsibility to fully redress all project impacts.
5. Subsoil compaction shall be tested using an appropriate soil penetrometer or other soil compaction measuring device. Compaction tests will be made for each soil type identified in the affected area. The subsoil compaction tests within the affected area are to be compared with those of the adjacent unaffected portion of the field/soil subunit. Where representative subsoil density of the affected area exceeds the representative subsoil density of the unaffected area, additional shattering of the soil profile will be performed using the appropriate equipment. Deep shattering will be applied during periods of relatively low soil moisture to ensure the desired mitigation and to prevent additional subsoil compaction. Oversized stone/rock material that is uplifted to the surface as a result of deep shattering will be removed.

## **15. Noise – Sound Power Level Limit**

1. The 1-hour L10 sound pressure level generated by a CEPCS at any non-participating residence shall not exceed 50 DBA. As used in this requirement, the 1-hour L10 sound pressure level is the sound level that is exceeded 10% of the timing during a 1-hour period.
2. Prior to commencement of construction, the applicant must provide the Town ZEO a study demonstrating the noise requirement will be met.
3. No later than six months after start of commercial operation, the applicant must perform noise measurements and analysis estimating the actual sound levels of the CEPCSs. A report documenting the post-construction measurements and analysis must be provided to the Town's ZEO no later than 2 months after completion of the on-site measurements.

## **16. Electromagnetic Interference (EMI)**

Applicant shall minimize or mitigate CEPCS interference with electromagnetic communications, such as radar, radio, telephone, or television. No CEPCS shall be installed along the major axis of a licensed and operating microwave communication link where its operation materially degrades the capability of the communication link.

## **17. Tax Exemption**

The Town hereby exercises its right to opt out of tax exemption provisions of Real Property Tax Law 487, pursuant to the authority granted by paragraph eight (8) of that Law.

## **18. Inspections**

Town Zoning Enforcement Officer or designated representative shall have the right at any reasonable time to enter the premise on which an energy system has been placed, to inspect any and all parts of said installation. After conducting said inspection, the Zoning Enforcement Officer may order the owner of the energy system to render it inoperative for reasons related to safety, noise, electrical pollution or electromagnetic interference. If unable to contact the owner, the Zoning Enforcement Officer may execute an emergency shut down procedure which has been provided in advance by the owner/applicant in the form of a clear and concise check sheet as part of the permit process. All liability for the execution of an emergency shutdown shall be with the owner of the energy system.

## **19. Geographic Information System (GIS)**

To facilitate timely response in the case of a medical, fire or police emergency, the applicant/owner of a Commercial Energy Production/Conversion System (CEPCS) is required to have established specific street addresses/locations tied into the County of Wyoming's Geographic Information System (GIS) for all above ground facilities (i.e. towers, substations, laydown yards, appurtenant buildings, temporary housing, office and maintenance buildings, etc.) prior to the construction of each.



## **20. Roads Agreement**

1. The Town of Arcade has a Road Use Law that all developers of commercial projects will be required to comply with. Contact the Town Superintendent of Highways to understand this law.
2. The Town reserves the right to limit hours of road use, delivery of equipment and other potentially objectionable construction activity.

## **21. Hazardous Materials**

All hazardous materials used during or after construction/installation shall have Federal Material Safety Data Sheets (MSDA) maintained on the project site. The Project Coordinator is to review these with the local Fire and Emergency Services departments so they can be prepared in the event of any emergency.

## **Section 819-1.8 Unique Requirements for Wind Commercial Energy Production/Conversion System (CEPCS)**

**A.** A Commercial Energy Production/Conversion System (CEPCS) must be of monopole construction. The turbine and tower may only be used for production of wind power energy and may not be used for any other purpose. The color of the structure and rotor must be of neutral color where the structure blends into the background of the community where it is sited.

### **B. Height**

The height of a CEPCS measured from the ground to the highest reach of a blade or other component (it's "Tip Height") shall not be greater than 600 feet.

**C. Clearance** – The vertical distance from ground level to the tips of a wind turbine generator blade when the blade is at its lowest point must be a least thirty (30) feet.

### **D. Access and Safety**

1. Security – All energy project structures including any climbing aids must be secured against unauthorized access by means of a locked barrier. A security fence shall be required which shall be a minimum of eight (8) feet high.
2. Climbing Aids – Monopole wind towers shall have all climbing aids and any platforms locked and wholly inside the tower.
3. Operational Safety – Wind towers shall have an automatic braking, governing or Feathering system to prevent uncontrolled rotation, over speeding and excessive pressure on the tower structure, rotor blades and turbine components.
4. Lightning – All wind towers shall provide a continuous electrical path to the ground to protect the tower from lightning. All guy wires capable of conducting electricity shall be adequately grounded.

## 5. **Components**

- a. Visual Impact Assessment and Mitigation Plan Specific for Wind Turbine Farms – The applicant shall complete Visual Environmental Assessment form (Visual EAF-SEQR) as well as a visual impact assessment of any proposed Wind Farm or any modifications to existing Wind Farms. The applicant shall use the visual assessment to develop a Visual Mitigation Plan acceptable to the Town to off-set the impacts of the Wind Farm's placement to the reasonable extent practicable. The visual impact assessment shall include:
- b. Before and after photos or computer simulations from key viewpoints both inside and outside the Town, including State highways and other major roads, from State and local parks, other public lands, from any privately owned preserves and historic sites normally open to the public, and from any other locations where the site is visible to a large number of visitors or travelers. A balloon test may also be requested by the Planning Board;
- c. Alternative tower designs;
- d. Assessment of visual impact from abutting properties and streets of the tower base, guy wires, accessory buildings and other element of the CEPCS identified by the Planning Board;
- e. A view-shed map of the proposed Commercial Energy Production/Conversion System (CEPCS) within a radius of seven (7) miles from any portion of the EPCS;
- f. An inventory of all aesthetic resources in the view shed defined in item (c);
- g. Appropriate landscaping shall be provided to screen accessory structures from roads and adjacent residences;
- h. This item is intentionally left blank for possible future use.
- i. No individual tower facility shall be installed in any location that would substantially detract from or block the view of the major portion of a recognized scenic vista as viewed from any public road, right-of-way, or public accessible parkland or open spaces of the Town;
- j. Application proposal shall avoid to the extent possible, the creation of artificial habitats for raptors or captor prey, such as:
  1. Electrical equipment boxes on or near the ground that can provide shelter and warmth;
  2. Horizontal or perching opportunities on the towers or related structures;
  3. Soil where weeds can accumulate.

## **E. Shadow Flicker**

1. Shadow Flicker Maps for Wind Turbines  
Maps shall be prepared showing projected annual hours of shadow flicker impact for all sensitive areas/locations within the project area, including but not limited to, any residence, school, hospital, church, park, or public library.
2. Shadow Flicker Duration  
The applicant shall provide window blinds or other mitigation for any non-

participating residences where 30 or more annual shadow hours are expected assuming average cloud cover.

#### **F. Noise**

A pre-construction ambient dB(A) (L90) sound level measurement survey for both daytime and nighttime be conducted (10-minute average (Leq)(L90) for any proposed Commercial Wind Project, which includes all properties within one mile of any proposed sited turbine.

### **Section 819-1.9 Unique Requirements for Commercial Energy Production/Conversion System (CEPCS) Requiring Water or Liquid Surface Storage in Ponds or Holding Tanks**

All projects requiring creation of ponds or liquid storage sites shall have protective containment devices or berms constructed to protect the neighboring properties. Such devices and berms shall be constructed to meet New York State Department of Environmental Conservation (NYSDEC) minimum standards. The Project Manager shall present the design construction documents and drawings and provide evidence they will meet NYSDEC regulations.

### **Section 819-1.10 Unique Requirements for Solar Commercial Energy Production/Conversion Systems**

In addition to the requirements of Sections 819-1.5 through 819-1.7 of this law, a Commercial Solar Energy Production/Conversion system must meet the following requirements:

- A. Minimum lot sizes are 5 acres for any system;
- B. Any solar panel display shall not reflect sunlight off property at other buildings or pastures. When necessary, plantings will be necessary near property lines to protect adjacent land owners in such cases;
- C. In an occasion where another use is proposed (ex. factory, office building, etc.) and solar energy is roof mounted to provide energy to the building(s), the maximum height restrictions on buildings is exempt for the added solar collector panels provided they do not extend more than 15 feet above the roof and do not cover more than 75% of the roof area;
- D. If power is connected to the electric utility grid, a Certification of Acceptance and conformance to requirements must be obtained from the utility prior to energizing the connection.

Because they dramatically increase impervious coverage, habitat and farmland loss, and aesthetic impacts, large-scale, principal-use systems often must adhere to more rigorous development standards. Such requirements usually address system siting issues; maximum system height; minimum setbacks from adjacent lot lines or structures; minimum lot size; screening methods; system operation and maintenance; safety precautions; utility notification and interconnection

agreements; leasing and easement information; compliance with relevant state and federal requirements, such as Federal Aviation Administration (FAA) regulations; required environmental and economic studies; financial surety; and abandonment, decommissioning, and site restoration.

### **Section 819-1.11 Unique Requirements for Installation of Geothermal Commercial Energy Production/Conversion Systems**

- A. It shall be unlawful to install a new geothermal well or modify an existing geothermal well without a Site Plan review by the Planning Board.
- B. Prior to constructing a new geothermal well or modifying an existing geothermal well, the property owner shall file all appropriate applications with the Town of Arcade Planning Board and pay all applicable fees.
- C. The application to construct or alter a geothermal well must be filed on behalf of the current owner or equitable owner.
- D. The Site Plan must demonstrate that the geothermal installation meets all zoning set back and height distances for the zoning district it is located in. In the event the owner wishes to enclose the installation in a building, the building itself must also meet such requirements. In addition, the building shall be designed to be in character with other buildings in the zoning district and colored similarly to other structures found in the Town, basically in neutral colored paint or siding.
- E. If geothermal well construction is not completed within 3 years of the Site Plan approval date, the approval to construct shall expire.
- F. All geothermal well applications must be completed and include the following information:
  - 1. Applicant name and signature, address, and telephone number.
  - 2. Site address, subdivision name, and lot number.
  - 3. Driller name, (State licensing agency) number, and telephone number.
  - 4. Tax parcel number.
  - 5. Description of construction.
  - 6. Plot plan to include:
    - a. Property lines, lot dimensions, slope direction, adjacent streets, and reference to North;
    - b. Marked distances from the proposed geothermal well and final building to any existing and proposed water supplies, buildings, driveways, parking areas, two (2) non-parallel property lines, retention areas, surface waters, chemical/fuel storage areas and any other feature that requires an isolation distance as defined in this ordinance.
- G. Standing Column Well (SCW) Regulations
  - 1. Standing column wells should be dug to potable water well standards.

2. Isolation distances should be used.
3. Design and installation of SCW systems - The standing column well geothermal system, including heat pump exchanger, piping, and all other related systems shall be installed by a geothermal well installation contractor who is certified in the proper installation methods as specified by the manufacturer.

#### H. System Types

Open Loop systems are prohibited. Only Close Loop systems or Standing Column well systems are allowed. Separate supply and reinjection wells are prohibited.

#### I. Location of Geothermal System

Minimum isolation (setback) distance from potential sources of pollution: Wells and boreholes regulated by this ordinance shall be located using the minimum isolation (setback) distances to existing or potential sources of pollution listed in Table 1.

**Table 1**

| <b>Setback From</b>                                                                                    | <b>Borehole and Geothermal Supply and Geothermal Return Well (feet)</b>    |
|--------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------|
| Delineated wetlands, flood plains, lakes, ponds, or other surface waters                               | 10-25 feet                                                                 |
| Storm drains, retention basins, stabilization ponds, or storm water management facilities              | at least 10 feet                                                           |
| Preparation area or storage area of hazardous spray materials, fertilizers of chemicals, or salt piles | 300 feet<br>100-150 feet (if borehole is cased and grouted inside and out) |
| Gravity sewer lines and drains carrying domestic sewage or industrial waste                            | 5-15 feet or according to easement                                         |
| Existing water and forced sewer buried utilities and/or utility trenches                               | at least 15 feet or outside easement                                       |
| Septic tanks, aerobic tanks, or holding tanks                                                          | at least 25 feet                                                           |
| Subsurface sewage disposal systems, elevated sand mounds, or other sewage disposal fields              | 25-50 feet                                                                 |
| Sewage seepage pits and cesspools                                                                      | at least 25 feet                                                           |
| Farm silos, barnyards, privies, and fuel tanks                                                         | at least 25 feet                                                           |
| Spray irrigation sites, sewage sludge, and septage disposal sites                                      | at least 25 feet                                                           |
| Dedicated public right-of-way and property line                                                        | at least 10 feet                                                           |
|                                                                                                        | at least 10 feet                                                           |
| Identified NPL Site (Superfund) plume area                                                             | at least 300 feet                                                          |
| Any other source or potential source of pollution                                                      |                                                                            |

### **Section 819-1.12 Other Forms of Commercial Energy Production/Conversion Systems**

Other forms of Energy Systems beyond Solar, Wind and Geothermal: These include, but are not limited to, natural gas wells, oil wells, biomass/biodiesel, bio digestion (including manure pits) and waste disposal/energy recovery and generation systems and other similar systems.

These types of systems will be permitted only after meeting all requirements of Sections 819-1.5 and 819-1.6 of this law and any appropriate New York State Department of Environmental Conservation rules and regulations. The owner of the project is required to research and present all such regulation to the Lead Agency during the planning process at his expense.

### **Section 819-1.13 Future New Technology Commercial Energy Production/Conversion Systems**

3. It is anticipated that as technology is developed, new types of systems may be developed that would be appropriate for use in commercial settings. This may make it necessary to amend this law to define and add regulations for such systems. However, until such new regulations are developed, commercial owners may apply for a variance if they propose using novel new types of technology systems to be considered as appropriate commercial use.
4. Those approving the variance should be guided by the technology being of such scope or scale that it readily applies to the nature of commercial applications using the KW (Kilowatt) levels shown in this Section 819.

### **Section 819-1.14 Continuing Liability of Applicant**

No transfer or assignment of ownership or control of the premises or improvements which are the subject of the application and the Energy Production/Conversion System (CEPCS) which are the subject of the application shall eliminate or release the applicant from liability under these zoning regulations or shall any other party be so released by such transfers of assignment from any liability under this said Local Law.

### **Section 819-1.15 Notification**

All residents within a one-mile (1) radius of any potential sited system shall be sent a registered letter by the energy vendor explaining the scope of the energy Project. The resident must be allowed a sixty-day (60) window after receipt of the letter to comment in writing any concerns on the project to the town Board before any energy system construction begins. The comments should become public record.

### **Section 819-1.16 Enforcement**

Enforcement shall be done by the Town Zoning Enforcement Officer.

### **Section 819-1.17 Penalties**

Any person, firm or corporation that shall establish, place, construct, enlarge or erect any Commercial/Industrial and Energy Production/Conversion System (CEPCS) in violation of the provisions of this Zoning Law or shall otherwise violate any of the provisions of this Law shall be subject to:

- A. Such penalties as may otherwise be provided by applicable Local Laws, ordinances, rules, regulations of the Town for violations; and

- B. Injunctive relief in favor of the Town to cease any and all such actions which conflict with the Law and, if necessary, to remove any construction that may have taken place in violation of this Law;

### **Section 819-1.18 Severability**

In the event that any word, phrase or part of this Local Law shall be declared unconstitutional, the same shall be severed and separated from the remainder of this Local Law and shall not affect the remainder of said Local Law which shall remain in full force and effect

### **Section 819-1.19 Effective Dates**

This Local Zoning Law shall take effect immediately upon filing in the Office of the New York State Secretary of State in accordance with Section 27 of the Municipal Home Rule Law.

Local Law #2 of 2016

Adopted October 10, 2016

Filed

Amended ? \_\_\_\_\_

### **Section 820 – ACCESSORY BUILDINGS AND STRUCTURES**

#### **1. Detached Accessory Buildings and Structures**

Detached accessory buildings and structures, i.e., those not attached to the principal building, may be erected anywhere on the parcel provided that the detached accessory building meets the minimum setback requirements for accessory structures set forth in the Dimensional Requirements Table attached at the end of this Local Law. A detached accessory structure is permitted to be constructed in front of the front building line of the principal structure if the accessory structure meets the front setback requirements for principal structure.

#### **2. Attached Accessory Buildings and Structures**

When an accessory building or structure is attached to the principal building, it shall comply in all respects with the requirements of this Local Law applicable to the principal building. To be considered an attached accessory structure, at least 25% of the area of a wall of the accessory building shall be in common with and an integral part of the principal building. Amended Feb. 11, 2019 Filed Feb. 22, 2019



## **Section 821 – TELECOMMUNICATION FACILITY**

1. A telecommunications Facility is any commercial equipment used in connection with the provision of wireless communication services, including cellular telephone service, personal communications services, radio and television broadcast services and private radio communications services, which are required by the Federal Communications Act of 1996 and other Federal Laws. A Telecommunication Facility shall include antenna(s), principal and accessory telecommunications equipment and supporting masts, monopoles and structures, buildings and appurtenances servicing same.
2. A Telecommunication Facility is permitted in the AG (agricultural) district ONLY, and a Special Use Permit must be granted by the Town/Village of Arcade Planning Board pursuant to Article 900. The Town/Village of Arcade Planning Board shall have the right to waive any provision of this section for facilities whose total height above ground does not exceed thirty-five (35) feet.
3. An application fee of \$1,500.00 per tower will be assessed with a \$500.00 fee for a co-applicant.
4. Applicant or co-application will conform to applicable State and Federal Environmental Laws and that the parties will warrant their compliance and also any compliance with the FCC Rules and Regulations. Also, it shall be the right of the Town/Village of Arcade Planning Board to receive proof that these environmental rules and regulations, and FCC rules and regulations, have been complied with.
5. A minimum of \$1,000,000/\$3,000,000 liability insurance is required and a minimum of \$250,000 property damage insurance.
6. No Special Use Permit or renewal thereof or modification of the conditions of a current Special Use Permit relating to a Telecommunication Facility shall be authorized by the Town/Village of Arcade Planning Board unless it finds that such Telecommunication Facility:
  - a) Is necessary to meet current or expected demands for services supported by the telecommunication facility for the applicant's network;
  - b) Conforms with all applicable regulations promulgated by the Federal Communications Commission;
  - c) Is designed and constructed in a manner which minimizes its visual impact to the extent practical;
  - d) Complies with all other requirements of this ordinance;
  - e) Is the most appropriate site within the technically feasible area for the location of the

Telecommunication Facility.

7. The shared use of existing Telecommunication Facilities or other structure shall be preferred to the construction of new such facilities. Any application for a Special Use Permit or renewal thereof or modification of the conditions of a current Special Use Permit shall include proof that reasonable efforts have been made to co-locate with an existing Telecommunication Facility or upon an existing structure. The application shall include an adequate inventory report specifying existing facility site and structure of height exceeding seventy-five (75) percent of the height of the proposed tower within a one (1) mile radius from the proposed site if this application is for cellular telephone or personal communications use, or a five (5) mile radius for other services. The inventory report shall contain an evaluation of opportunities for shared use as an alternative to the proposed location.

The applicant must demonstrate that the proposed Telecommunication Facility cannot be accommodated on existing facility sites in the inventory due to one (1) or more of the following reasons:

- a) The planned equipment would exceed the structural capacity of existing and approved telecommunication facilities or other structures, considering existing and planned use for those facilities;
  - b) The planned equipment would cause radio interference with other existing or planned equipment, which cannot be reasonably prevented;
  - c) Existing or approved telecommunication facilities or other structures do not have space on which proposed equipment can be placed so it can function effectively and reasonably;
  - d) The property owner or owner of the existing tower, etc. or other structure refuses to allow such co-location.
8. Each proposed Telecommunication Facility shall meet the following design requirements:
    - a) The facility shall be separated from residential dwellings, schools and designated Historical Areas by the distance of one thousand (1000) feet. The Town/Village of Arcade Planning Board may modify this condition if the facility is attached to an existing structure or for other satisfactory reasons;
    - b) The facility shall have the least possible practical visual effect on the environment as determined by the Town/Village of Arcade Planning Board and shall not be more than three hundred and fifty (350) feet above ground level. Towers, antenna(s) and masts shall have a low intensity strobe light unless otherwise required by the Federal Aviation Administration or other federal, state or local authority. Towers shall have a galvanized finish or shall be painted gray above the surrounding the tree line and gray

or green below the tree line. The Town/Village of Arcade Planning Board may impose reasonable conditions designed to lesson any adverse aesthetic impact;

- c) The facility shall be provided with vegetative and landscape screening of the base area as stipulated by the Town/Village of Arcade Planning Board ;
  - d) The facility shall include a fall zone surrounding any support towers, which fall zone must have a radius of the least equal to the height of such support tower and any antenna(s) attached thereto. The entire fall zone may not include public roads and must be located on property either owned or leased by the applicant for which the applicant has obtained an easement, may not contain any structure other than those associated with the Telecommunications Facilities, except as further allowed in this paragraph, and may not be located within the setback area established by this ordinance. If the facility is attached to an existing structure, fall zone requirements may be modified by specific permission of the Town/Village of Arcade Planning Board;
  - e) Towers and auxiliary structures shall be surrounded by a fence or wall at least six (6) feet in height of a reasonable design approved by the Town/Village of Arcade Planning Board, but with limited visual impact. Barbed wire is not specifically permitted..
  - f) There shall be no permanent climbing pegs within fifteen (15) feet of the ground on any tower.
9. Any application for a Special Use Permit or renewal thereof or modification of the conditions of a current Special Use Permit relating to a Telecommunication Facility shall include:
- a) A safety analysis shall be made of the electromagnetic environment surrounding the proposed site. The safety shall be prepared by a qualified electromagnetic engineering specialist or health professional qualified to produce such analysis. The safety analysis must demonstrate that the general public electromagnetic radiation exposure does not exceed the standards set by Federal Regulations;
  - b) A completed Visual Environmental Assessment Form (Visual EAF) and landscape plan, with particular attention given to the visibility of the facility from key viewpoint identified in the Visual EAF, existing tree lines and proposed elevations.

The Town/Village of Arcade Planning Board, upon its review, may request additional visual and aesthetic information as it deems appropriate on a case by case basis. Such additional information may include, among other things, line-of-site drawing, and/or visual simulations. The visual impact analysis shall be prepared by landscape architect registered in the State of New York, The Town, at the expense of the applicant, may employ consulting assistance to review the findings and conclusions of the visual impact analysis;

- c) A repost, prepared by a New York State licensed professional engineer, which, in the case of a tower describes its height and design, including a cross section if the structure; demonstrates the tower's compliance with applicable structural standards; and describes the tower's capacity, including the number and type of antennas it can accommodate. In the case of an antenna(s) mounted on an existing structure, the report shall indicate the existing structure's suitability to accept the antenna, and proposed method of affixing the antenna(s) to the structure. Complete details of all fixtures and couplings and the point of attachment shall be indicated on a design plan;
  - d) The applicant at the time of obtaining a Zoning Permit must provide a financial bond for removal of the Telecommunication Facility with the Town of Arcade as assigned, in a amount approved by the Town Board, but not less than fifty thousand dollars (\$50,000.00);
  - e) Applicant must submit a letter of intent stating whether the applicant intends to lease excess space on the facility to other potential users at reasonable rental rates and on reasonable terms. Applicant shall cooperate with the Town/Village of Arcade Planning Board by providing the services without cost, for emergency services such as but not limited to 911, police, fire and ambulance. The letter shall require the facility owner and successors in interest to do the following:
    - 1) Respond in a timely, comprehensive manner to the request for information;
    - 2) Negotiate in good faith for shared use by third parties;
    - 3) Allowed share use if an applicant agrees in writing to pay resalable rental charges or other consideration and to pay the costs of adapting the facility or existing users' equipment to accommodate a shared user without causing uneconomically correctable electromagnetic interference or causing electromagnetic radiation in excess of levels set by Federal Regulation and can otherwise agree on reasonable business terms and conditions for shared use of the facility;
    - 4) Respond to inquiries for shared use with the information required herein.
10. All Telecommunication Facilities in the Town of Arcade shall fulfill the requirements of this section. The Town Zoning Officer is empowered to enforce these regulations.
- a) The sufficiency of the facility removal bond shall be confirmed at least every five (5) years by an analysis of the cost of removal and property restoration performed by the New York State licensed professional engineer. The results of such analysis shall be communicated to the Town Board. If the bond amount in force is insufficient to cover the cost of removal of the tower, etc. it shall be immediately increased to cover such amount.

- b) The facility shall be inspected minimally every second year for structural integrity by a New York State licensed professional engineer, and a copy of the inspection report shall be submitted to the Town Zoning Office and the Town Board.
- c) Any work to augment or repair the facility shall comply with all applicable code requirements and a zoning permit shall be obtained to conduct such work when required by the code.
- d) The safety analysis shall be updated minimally every second year to demonstrate that the Telecommunication Facilities continue to comply with the Federal Regulations for public exposure to electromagnetic radiation. The safety analysis update shall be prepared by the applicant's expert and shall be submitted to the Town Zoning Officer. Any specific conditions set forth in the granting of the Special Use Permit relative to the safety and operation of the facility shall be individually addressed.
- e) Any additional antennas, reception or transmission dishes, or other similar received or transmitting devices proposed or attachment to an existing facility shall require review in accordance with this section. The intent of the requirement is to ensure the structural integrity, visual aesthetics, and land use compatibility of communications tower upon which antennas, dishes, or similar receiving devices installed with not adversely affect the structural integrity of the facility. A visual impact analysis shall be included as part of the application for approval to install one (1) or more additional communications devices to an existing facility.
- f) The use of any portion of the facility for signs or advertising purposed, including company name, banner, streamers, etc. is prohibited.
- g) No outside storage of vehicles, materials, or waste shall be allowed, except for limited periods when the facility is undergoing additions, repairs or renovation.
- h) The facility and it approaches shall be maintained in good order and repair at all times according to Town code requirements.
- i) Severability Clause – If any section(s), subsection(s), clause(s), phrase(s) or portion(s) of this Article is/are for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion(s) shall be deemed a separate, distinct and independent provision and such holding shall not affect the validity of the remaining portions hereof.

11. A Telecommunication Facility is considered abandoned when not used for two (2) years, and must be dismantled.

Local Law #1 of 1998  
 Adopted: March 9, 1998  
 Filed: March 16, 1998

## **Section 822 – Manure Storage Facilities for Farm Operations**

- A. Manure storage facilities, as defined herein, shall not be located closer than 200 feet of any lot-line. All manure storage facilities regardless of location shall comply with the following:
  - 1. All manure storage facilities shall be designed in accordance with design standards and regulations promulgated by the United States Department of Agriculture, Natural Resources Conservation Service Standards (NRCS), New York State Department of Environmental Conservation (NYS DEC) for consolidated animal feedlot operations (CAFO);
  - 2. All dimensional and lot-line setback requirements that are contained within the Bulk & Area Dimensional Tables, Section 1600, shall be met unless located within a fully enclosed building.

## **ARTICLE 900 – SPECIAL USE PERMITS**

Section 901 – GENERAL PROVISIONS - The Special Permit uses for which conformance to additional standards is required shall be deemed to be permitted uses in their respective districts, if they satisfy the “special” requirements and standards set forth in this Article, as well as all the other regular requirements of this Local Law. All Special Permit uses are hereby declared to possess characteristics of such a unique and special form that each specific use shall be considered as an individual case.

Section 902 – REQUIRED PLAN - A Plan for the proposed development of a site for a Special Use shall be submitted with an application for a Special Use Permit, and such a plan shall show the location of all buildings, lots, parking areas, traffic access and circulation drives, open spaces, landscaping, and any other pertinent information that the Town/Village of Arcade Planning Board deems necessary for review.

No Special Use Permit shall be granted for any use permitted by Special Use unless/and until plans and specifications proposed by or certified by a licensed engineer or architect has been submitted to and approved by the Officer or Board responsible for issuing Special Use Permits.

Section 903 – STANDARDS - The location and size of the Special Use; the nature and intensity of the operations involved; and the size and the location of the site with respect to the existing or future streets giving access to it shall be in harmony with the orderly development of the Zoning District.

**Section 904 – CONDITIONS** - In the granting of a Special Use, the Town/Village of Arcade Planning Board may attach such conditions and safeguards as it deems appropriate under this Local Law.

**Section 905 – EXPIRATION** - A Special Use shall be deemed to authorize only one particular use, and the Planning Board may require, as a condition of the issuance of any Special Permit, that it shall be periodically renewed. The Special Use is revocable for violation of the terms under which it was granted. The Permit shall expire if the use shall cease for more than six (6) months for any reason. As an alternative to periodic renewal, said the Town/Village of Arcade Planning Board may issue a Temporary Special Use Permit subject to adequate guarantees that the use covered will be terminated at the end of the period specified, or such extension thereof as may be granted by said the Town/Village of Arcade Planning Board, provided that any such renewal or extensions shall be subject to the same procedure as specified herein for the original issuance of the Special Use Permit involved, and shall be in conformity with aforesaid general and special standards.

Section 906 – EXISTING VIOLATIONS - No Permit shall be issued for Special Use Permit for a property where there is an existing violation of this Local Law. (See Article 1000 – Non-Conforming Uses and Structures.)

## **ARTICLE 1000 – NON-CONFORMING USES AND STRUCTURES**

**Section 1001 – CONTINUATION** – The lawful use of any building or land existing at the time of the enactment of this Local Law may be continued, although such use does not conform with the provisions of this Local Law.

**Section 1002 – UNSAFE STRUCTURES** – Any structure or portion thereof (containing a non-conforming use) declared unsafe by a proper authority must be restored to a safe condition.

**Section 1003 – ALTERATIONS OF A NON-CONFORMING BUILDING** – A non-conforming BUILDING may not be constructed or structurally altered during its life to an extent in excess of a cost of fifty percent (50%) of the market value of the building, unless said building is changed to comply with all provisions of this Local Law.

**Section 1004 – EXTENSION OF A NON-CONFORMING USE** – A non-conforming USE shall not be expanded and must remain within the structure or on the lot where it existed at the time of the adoption of this Local Law. (The extension of a lawful use to any portion of a non-conforming building that existed prior to the enactment of this Local Law shall not be deemed an extension of a non-conforming use.)

**Section 1005 – CONSTRUCTION APPROVED PRIOR TO LOCAL LAW** – Nothing herein contained shall require any change in plan, construction or designated use of a building for which a Building Permit has been issued, and the construction of which shall have been diligently pursued within three (3) months of the date of such Permit.

**Section 1006 – RESTORATION** – No non-conforming building damaged by fire (or other causes) to the extent of more than fifty percent (50%) of its market value shall be repaired or rebuilt, unless in conformity with the bulk and area regulations of this Local Law, except that the front yard setback can be the average of surrounding structures. The building can be rebuilt for the use it contained prior to the damage by fire (or other causes), if a Building Permit is obtained from the Zoning Officer within six (6) months of the destruction by fire or other calamity.

**Section 1007 – ABANDONMENT** – Whenever a non-conforming use has been discontinued for a period of one (1) year, such use shall not thereafter be reestablished; and, any future use shall be in conformity with the provisions of this Local Law.

**Section 1008 – CHANGES** – Once changed to a conforming use or a conforming building, no building or use of land shall be permitted to revert to a non-conforming use or a non-conforming building.

**Section 1009 – DISPLACEMENT** – No non-conforming use shall be extended to displace a conforming use.



**Section 1010 – DISTRICT CHANGED** – Whenever the boundaries of a district or zone shall be changed so as to transfer an area from one district or zone to another district or zone of a Different classification, the foregoing provisions (of Article 900) shall apply to any new or pre-existing non-conforming uses therein.

## **ARTICLE 1100 – ADMINISTRATION**

### **Section 1101\_- Zoning Enforcement Officer**

- (1) **Designation.** The provisions of this chapter shall be administered and enforced by the Zoning Enforcement Officer of the Town of Arcade appointed by the Town Board.
- (2) **Duties.**
  - (a) The Zoning Enforcement Officer shall make periodic inspections of any construction to ensure that the provisions of this chapter are being complied with.
  - (b) The Zoning Enforcement Officer shall keep a record of all approvals or rejections he may make pursuant to this chapter and such other records as may be required.
- (3) **Authority.** The Zoning Enforcement Officer is hereby empowered to inspect any building, other structure or tract of land and to order, in writing, the remedying of any condition found to exist therein or thereat in violation of any provision of this chapter. After any such order has been served, no work shall proceed on any building, other structure or tract of land covered by such order except to comply with such order. The Zoning Enforcement Officer may cause the appearance in Justice Court of an alleged violator by filing a complaint with the appropriate court or police agency.

**Section 1102 – ZONING COMPLIANCE** - No development or improvement permitted by this chapter, including accessory and temporary uses, may be established or changed, no structure shall be erected, constructed, reconstructed, altered, razed or removed and no building shall be used, occupied, or altered with respect to its use after the effective date of this chapter until a zoning permit has been secured from the Zoning Enforcement Officer. Nothing herein shall relieve any applicant of the additional responsibility of seeking any permit required by any applicable statute, ordinance, or regulation in compliance with all of the terms of this chapter. Such applications shall be made in triplicate on forms designated by the Town.

**Section 1103 – BUILDING PERMIT** - No building or structure shall be erected, extended or structurally altered until a building permit therefore has been issued by the County Building Department. All applications for such permits shall be in accordance with the State Uniform Fire Prevention and Building Code and/or any local codes and with all pertinent County health laws and regulations.

**Section 1104 – CERTIFICATE OF OCCUPANCY** - No land shall be occupied or used and no building hereafter erected, altered or extended shall be used or changed in use until a certificate of occupancy shall have been issued by the Zoning Enforcement Officer, stating that the building or proposed use thereof complies with the provisions of this chapter.

**Section 1105 – FEES** – Any fees required to be paid, shall be established by Resolution by the Town Board.

## **ARTICLE 1200 – ZONING BOARD OF APPEALS**

**Section 1201 – CREATION, APPOINTMENT, ORGANIZATION** A Zoning Board of Appeals (ZBA) is hereby created. Said Board shall consist of five members as approved by resolution of the Town Board. Members of the ZBA shall serve staggered terms of five years with one term expiring each year. Members may be reappointed for an unlimited number of terms. Vacancies are filled for unexpired terms only.

- (1) The ZBA shall prepare its own operating bylaws which shall be accepted by resolution of the Town Board. It shall elect its own Chairperson from its members. A Chairperson for the meeting shall be selected for any meeting when the Chairperson is not in attendance. ZBA members may be removed from office for failure to attend four consecutive meetings or four meetings in a calendar year; members may also be removed for any other good cause which the Town Board finds as it relates to performance of duties.
- (2) The office of the Zoning Enforcement Officer shall be designated as an extension of the office of the Town Clerk for the purpose of preparation, filing, and preservation of the orders and determinations of the ZBA which shall be considered matters of public record

### **Section 1202 - PERMITTED ACTION BY ZONING BOARD OF APPEALS.**

- (1) **Interpretations, Requirements, Decisions and Determinations.** The Zoning Board of Appeals may reverse or affirm, wholly or partly, or may modify the order, requirement, decision, interpretation or determination appealed from and shall make such order, requirement, decision, interpretation or determination as in its opinion ought to have been made in the matter by the administrative official charged with the enforcement of this chapter and to that end shall have all the powers of the administrative official from whose order, requirement, or decision the appeal is taken.
- (2) **Use Variances.**
  - (a) The Zoning Board of Appeals, on appeal from the decision or determination of the administrative official charged with the enforcement of this chapter, shall have the power to grant Use Variances authorizing a use of the land which otherwise would not be allowed or would be prohibited by the terms of this chapter.
  - (b) No such Use Variance shall be granted by the Zoning Board of Appeals without a showing by the applicant that applicable zoning regulations and restrictions have caused unnecessary hardship. In order to prove such unnecessary hardship the applicant shall demonstrate to the Zoning Board of Appeals that:
    - [1] Under applicable zoning regulations the applicant is deprived of all economic use or benefit from the property in question, which deprivation must be established by competent financial evidence;

- [2] The alleged hardship relating to the property in question is unique and does not apply to a substantial portion of the district or neighborhood;
  - [3] The requested Use Variance, if granted, will not alter the essential character of the neighborhood; and
  - [4] The alleged hardship has not been self-created.
- (c) The Zoning Board of Appeals, in the granting of Use Variances, shall grant the minimum variance that it shall deem necessary and adequate to address the unnecessary hardship proven by the applicant and at the same time preserve and protect the character of the neighborhood and the health, safety and welfare of the community.

**(3) Area Variances.**

- (a) The Zoning Board of Appeals shall have the power, upon an appeal from a decision or determination of an administrative official charged with the enforcement of this chapter, to grant Area Variances from the area or dimensional requirements of this chapter.
- (b) In making its determination, the Zoning Board of Appeals shall take into consideration the benefit to the applicant if the variance is granted, as weighed against the detriment to the health, safety and welfare of the neighborhood or community by such grant. In making such determination the Board shall also consider whether:
- [1] An undesirable change will be produced in the character of the neighborhood or a detriment to nearby properties will be created by the granting of the Area Variance;
  - [2] The benefit sought by the applicant can be achieved by some method, feasible for the applicant to pursue, other than an Area Variance;
  - [3] The requested Area Variance is substantial;
  - [4] The proposed Area Variance will have an adverse effect or impact on the physical or environmental conditions in the neighborhood or district; and
  - [5] The alleged difficulty was self-created, which consideration shall be relevant to the decision of the Zoning Board of Appeals but shall not necessarily preclude the granting of the Area Variance.
- (c) The Zoning Board of Appeals, in the granting of Area Variances, shall grant the minimum variance that it shall deem necessary and adequate and at the same time preserve and protect the character of the neighborhood and the health, safety and welfare of the community.

- (4) Imposition of Conditions.** The Zoning Board of Appeals shall, in the granting of both Use Variances and Area Variances, have the authority to impose such reasonable

conditions and restrictions as are directly related to and incidental to the proposed use of

the property or the period of time such variance shall be in effect. Such conditions shall be consistent with the spirit and intent of this chapter and shall be imposed for the purpose of minimizing any adverse impact such variance may have on the neighborhood community.

**Section 1203 – FEES** – Any applications for an Amendment, Variance or Special Use Permit filed by, or on behalf of the owner or owners of the property affected, shall be accompanied by an appropriate fee (in accordance with the current fee schedule).

## **ARTICLE 1300 – PLANNING BOARD**

The Town Board shall appoint a Planning Board consisting of five (5) members as prescribed by Section 271 of the Town Law.

**Section 1301 – DUTIES** – The Planning Board for the Town of Arcade shall have the following duties:

1. To investigate, study, hold hearings upon and submit reports on all appeals and matters referred to it by the Zoning Board of Appeals, Zoning Officer and/or Town Board.
2. To review Special Use Permits and temporary Special Use Permits for any of the uses for which this Local Law requires the obtaining of such Permits from the Town Board.
3. To submit reports within thirty (30) days after reference to it, of any appeal or other matter, unless the time shall be extended by the Zoning Officer or agency making the reference.
4. To hold monthly meetings when necessary on a regularly prescribed date and time, and at such other times as the Chairman of the Planning Board may deem necessary. All meetings of the Planning Board shall be open to the public. The secretary of the Planning Board shall keep minutes of all meetings.
5. An annual review shall be made of all Variances granted, and a written report made to the Town Board recommending any changes in the Local Law.
6. To prepare and change the Comprehensive Master Plan and Map for the development of the entire area of the Town of Arcade.
7. To review, recommend and approve (prior to the issuance of a Building Permit or Occupancy Permit) site plans for mobile home parks, commercial, industrial, or multi-family buildings for uses. Such site plans shall be submitted through the Zoning Officer to the Planning Board at least ten (10) days prior to its next scheduled meeting, and shall consist of the following:
  - a. A survey drawn to scale, prepared by an engineer or surveyor (registered by the State of New York), showing the exact size, shape and dimensions of the lot to be built upon;
  - b. The exact size and location on the lot of all existing buildings and structures;

- c. The exact size and location on the lot of the structure or building proposed to be erected, moved, repaired or altered;
- d. All adjacent streets or alleys with traffic flow patterns;
- e. The proposed parking facilities, including the size, arrangement and number of parking stalls and placement of lighting standards;
- f. The movement of all vehicles and ingress and egress drives for all off-street parking and loading areas, to insure the prevention of blockage of vehicles entering and leaving the site;
- g. Preliminary architectural and engineering sketches showing plan levels, elevations, landscape plan, and any other necessary information related to water run-off control, slope, contours, type of building, etc.
- h. Areas to be utilized for storage of materials and type of architectural screen to be used;
- i. Such other information, as may be required by the Planning Board, to determine their recommendation or decision.

## **ARTICLE 1400 – VIOLATION AND PENALTIES**

**Section 1401 – VIOLATIONS** – Whenever a violation of this Local Law occurs, any person may file a complaint in regard thereto. All such complaints must be in writing, and shall be filed with the Zoning Officer, who shall properly record such complaint and immediately investigate.

### **Section 1402 – PROCEDURE FOR ABATEMENT OF VIOLATIONS:**

1. COMPLAINTS OF VIOLATION: Whenever a violation of this Local Law occurs, any person may file a complaint in regard thereto. All such complaints must be in writing, and shall be filed with the Zoning Officer, who shall properly record such complaint and immediately investigate.
2. **PROCEDURE FOR ABATEMENT OF VIOLATIONS**
  - a. In case any building or structure is erected, constructed, altered, repaired, converted or maintained; or, any building, structure or land is used in violation of this Local Law, notification of the violation will be issued, in writing, by the Zoning Officer; and, compliance with the Local Law must be met within the specified period of time.
  - b. After the specified number of days the Town Board, or with their approval, the Zoning Officer or any other proper person, authority or official, may commence an action to enforce this Local Law.
3. PENALTIES: A violation of this Local Law is an offense punishable by a fine not exceeding \$350.00 or imprisonment for a period not to exceed six (6) months, or both for a conviction of a first offense; for conviction of a second offense, both of which were committed within a period of five (5) years, punishable by a fine not less than \$350.00, nor more than \$700.00, or imprisonment for a period not to exceed six (6) months, or both; and, upon conviction for a third or subsequent offense, all of which were committed within a period of five (5) years, punishable by a fine not less than \$700.00 nor more than \$1,000.00, or imprisonment for a period not to exceed six (6) months, or both. Each week's continued violation shall constitute a separate additional violation.
4. The provisions of this Article shall not limit the available procedures for enforcement and remedies provided for under the Town Law of the State of New York, or any other law.



## **ARTICLE 1500 – AMENDMENTS**

**Section 1501 – TOWN BOARD MAY AMEND** – The Town Board may, from time to time, on its own motion or on petition, or on recommendation of the Planning Board, amend, supplement or repeal the regulations and provisions of this Local Law, after public notice and hearings as provided by the Town Law.

**Section 1502 – REVIEW BY PLANNING BOARD** – Every such proposed amendment or change, whether initiated by the Town Board or by petition, shall be referred to the Planning Board for report thereon. Referral to the Planning Board shall be made thirty (30) days before the public hearing hereinafter provided for. If the Planning Board shall fail to submit such report, it shall be deemed that a Planning Board has approved the proposed amendment or change.

**Section 1503 – PUBLIC NOTICE AND HEARING** – The Town Board, by resolution adopted at a stated meeting, shall fix the time and place of a public hearing on the proposed amendments, and shall cause notice to be given as follows:

1. By publishing a Notice at least ten (10) days in advance of such hearing in the official newspaper of the Town. Such Notice shall state the general nature of the proposed amendment in such reasonable detail as will give adequate notice of its contents; and, shall name the place(s) where copies of the proposed amendment may be examined.
  - a. A written notice of any proposed change or amendment affecting property within five hundred feet (500) of the boundary of any Village, Town or County, shall be given to the Clerk of such municipality at least ten (10) days prior to the date of such hearing.
2. Public Hearing: The hearing shall be held at the stated time and place by the Town Board, and shall include within its proceedings:
  - a. The proposed change, amendment or supplement, either in complete or summary form.
  - b. An opportunity for all interested persons to be heard in a manner prescribed by the Town Board.

**Section 1504 – MANDATORY REFERRAL** – In accordance with the laws of New York State, all proposed Zoning regulations, and all Special Permits, exceptions, variances or amendments thereto, which would change the district classification of the regulations applying to real property lying within a distance of five hundred (500) feet from the boundary of any City, Village or Town, or from the boundary of any County or State Park or other recreation area, or from the right-of-way of any stream or drainage channel owned by the County or for which the County has established channel lines, or from the boundary of any County or State owned land on which a public building or institution is situated, shall be referred to the Wyoming County Planning Board for review and comment prior to their adoption by the proper legislative

authority. (General Municipal Law, Section 239 (m). Nothing herein contained shall be deemed to supersede any provisions of Article 16 of the Town Law, Zoning and Planning with regard to procedures for amendments.

## **ARTICLE 1600 – CONFLICTS, VALIDITY, REPEALER, EFFECT**

**Section 1601 – CONFLICTS** – In their interpretation and application, the provisions of this Local Law shall be held to be minimum requirements adopted for the promotion of the public health, morals, safety or the general welfare. Whenever the requirements of this Local Law are at variance with the requirements of any other lawfully adopted rules, regulations or local laws, the most restrictive or that imposing the higher standards shall govern.

**Section 1602 – VALIDITY** – If any part or provision of this Local Law or the application thereof to any person or circumstance by adjudged invalid by any Court competent jurisdiction, such judgment shall be confined in its operation to the part, provision or application directly involved in the controversy in which such judgment shall have been rendered and shall not affect or impair the validity of the remainder of this Article or the application thereof to other persons or circumstances and the Town Board hereby declares that it would have enacted this Article or the remainder thereof had the validity of such provision or application thereof been apparent.

**Section 1603 – REPEALER** - Any previously adopted Zoning Local Law of the Town of Arcade, together with all changes and amendments thereto, is hereby repealed and declared to be of no effect.

**Section 1604 – EFFECT** – This Local Law shall take effect on the filing thereof with the Department of State of the State of New York and said date of filing and effective date shall hereafter be inserted in the spaces provided.

### **Section 1605 – CITATION**

**CITE AS:** Zoning Local Law of the Town of Arcade, Local Law No. 4 of the year 1983, as amended by Local Law No. 1 of 1990.

## **ARTICLE 1700 – BULK AND AREA DIMENSIONAL TABLES**

**All dimensional and lot-line setback requirements and specifications for all Districts hereby noted within the Town of Arcade Zoning Law are contained within the Bulk and Area Dimensional Tables within this Section.**

**Insert tables here.....**

## **Local Law No.1 of the year 2007**

A Local Law Rescinding Local Law of 1990 and All Amendments Subsequent Thereto and Further All Versions of the Zoning Law Enacted Prior to 1990 and Further Adopting the Zoning Local Law of the Town of Arcade, New York Revised in February, 2007.

Be it enacted by the Town Board of the Town of Arcade, hereby rescinding the Zoning Local Law of 1990 and all amendments subsequent thereto and further rescinding all versions of the Zoning Local Law and Zoning Map enacted prior to 1990 and supplanting it with this local law.

Amended: Section 807 – Lighting Standards for Site Plans

Local Law 1-2012

Adopted: May 14, 2012

Filed: May 22, 2012

Amended: Section 817 – Residential and Operating Farm Energy Systems

Local Law 1 – 2016

Adopted: Oct. 10, 2016

Filed: Oct. 21, 2016

Added: Section 819 – Regulation of Commercial and Industrial Energy Production/Conversion Systems (CEPCS)

Local Law 2 of 2016

Adopted: October 21, 2016

Filed: Filed October 21, 2016

Amended: Section 819 – Regulation of Commercial and Industrial Energy Production/Conversion Systems (CEPCS)

Adopted: February 11, 2019

Filed: February 22, 2019

## **Local Law No. 2 of the Year 2019**

A Local Law Rescinding Local Law No. 1 of 2007 and further adopting the Zoning Local Law of the Town of Arcade, New York Revised in November 2019.

Be it enacted by the Town Board of the Town of Arcade, hereby rescinding the Zoning Local Law of 2007 and further rescinding all versions of the Zoning Local Law and Zoning Map enacted prior to 2007 and supplanting it with this local law.

Local Law 2 – 2019

Adopted: November 12, 2019

Filed: November 15, 2019

## **Local Law No. 1 of the Year 2020**

A Local Law revising Local Law #2 of 2019 Section 821 Telecommunication Facility and adding Article 900 Special Use Permits—sections 901, 902, 903, 904, 905, and 906.

Adopted: December 14, 2020

Filed: January 5, 2021

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|                                                                                                                                |                                                                                                                                                                                                                                                                                         | Minimum Setback Requirements (feet) |                  |           |       |                    |      |      |                                                     |      |    |                           |      |                             |                        |
|--------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|------------------|-----------|-------|--------------------|------|------|-----------------------------------------------------|------|----|---------------------------|------|-----------------------------|------------------------|
| Adopted:<br>Zoning District                                                                                                    | Permitted Principal Uses                                                                                                                                                                                                                                                                | Special Use Permit Required         | Minimum Lot Size |           |       | Principal Building |      |      | Accessory Buildings<br>Garages/Carport, Residential |      |    | Other Accessory Buildings |      | Maximum Bldg. Height (feet) | Maximum Bldg. Coverage |
|                                                                                                                                |                                                                                                                                                                                                                                                                                         |                                     | Acres            | Lot Width |       | Front              | Rear | Side | Rear                                                | Side |    | Rear                      | Side |                             |                        |
| AG                                                                                                                             | Single-family detached residences (excluding mobile homes and mobile home parks) or two-family residences                                                                                                                                                                               |                                     | 2                | 200       |       | 40(a)              | 50   | 35   | 20                                                  | 20   |    | 20                        | 20   | 35                          | 15%                    |
|                                                                                                                                | Seasonal dwelling                                                                                                                                                                                                                                                                       |                                     | 2                | 200       |       | 40(a)              | 50   | 35   | 20                                                  | 20   |    | 20                        | 20   | 35                          | 15%                    |
|                                                                                                                                | Single-family farm dwelling                                                                                                                                                                                                                                                             |                                     | 5                | 200       |       | 40(a)              | 50   | 35   | 20                                                  | 20   |    | 20                        | 20   | 35                          | 15%                    |
|                                                                                                                                | Farm buildings and other farm structures(b)                                                                                                                                                                                                                                             |                                     | 10               | 300       |       | 140                | 50   | 50   |                                                     |      |    | 50                        | 50   | 50                          | 15%                    |
|                                                                                                                                | Worker Housing (dedicated to the farm it serves on the same lot)                                                                                                                                                                                                                        | X                                   | 10               | 300       |       | 40(a)              | 50   | 35   | 20                                                  | 20   |    | 20                        | 20   | 35                          | 15%                    |
|                                                                                                                                | Game farms, fish hatcheries and fishing reserves                                                                                                                                                                                                                                        |                                     | 10               | 300       |       | 100                | 50   | 50   |                                                     |      |    | 50                        | 50   | 50                          | 40%                    |
|                                                                                                                                | Nurseries, orchards, greenhouse, vineyards                                                                                                                                                                                                                                              |                                     | 10               | 300       |       | 100                | 50   | 50   |                                                     |      |    | 50                        | 50   | 50                          | 40%                    |
|                                                                                                                                | Farm Market                                                                                                                                                                                                                                                                             |                                     | 3                | 200       |       | 50(a)              | 50   | 50   |                                                     |      |    | 20                        | 20   | 35                          | 15%                    |
|                                                                                                                                | Farm & Garden Supplies/Farm Equipment Sales & Supplies                                                                                                                                                                                                                                  |                                     | 3                | 300       |       | 50(a)              | 30   | 30   |                                                     |      |    | 20                        | 20   | 35                          | 40%                    |
|                                                                                                                                | Outdoor recreational uses, including tennis courts, parks, individual camp sites, picnic groves, golf courses, (but excluding archery courses, rifle ranges, trap and skeet facilities, hunting reserves and uses with similar safety hazards) swimming, fishing and boating facilities |                                     | 3                | 200       |       | 50(a)              | 50   | 50   |                                                     |      |    | 50                        | 50   | 35                          | 50%                    |
| Public uses (excluding storage of road materials, road equipment and garages, and incinerators)                                |                                                                                                                                                                                                                                                                                         | 2                                   | 150              |           | 50(a) | 30                 | 30   |      |                                                     |      | 20 | 20                        | 35   | 15%                         |                        |
| Semi-Public uses                                                                                                               | X                                                                                                                                                                                                                                                                                       | 2                                   | 150              |           | 50(a) | 30                 | 30   |      |                                                     |      | 20 | 20                        | 35   | 15%                         |                        |
| Doublewide Manufactured Home (HUD approved) additional documentation required. (See Section 818 Manufactured Home Regulations) |                                                                                                                                                                                                                                                                                         | 2                                   | 200              |           | 40(a) | 50                 | 35   |      |                                                     |      | 20 | 20                        | 35   | 15%                         |                        |
| Essential services                                                                                                             |                                                                                                                                                                                                                                                                                         | 2                                   | 200              |           | 40(a) | 50                 | 35   |      |                                                     |      | 50 | 50                        | 35   | 40%                         |                        |
| Cemeteries                                                                                                                     |                                                                                                                                                                                                                                                                                         | 10                                  | 300              |           | 50(a) | 50                 | 50   |      |                                                     |      | 20 | 20                        | 35   | 15%                         |                        |
| Airstrips and airports (d)                                                                                                     |                                                                                                                                                                                                                                                                                         | X                                   | 10               | 300       |       | 100(a)             | 100  | 100  |                                                     |      |    | 50                        | 50   | 50                          | 15%                    |



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| Minimum Setback Requirements (feet)                   |                                                                                                                                                         |                             |                  |           |                                               |          |          |      |      |                                            |      |                           |                             |                  |     |    |
|-------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|------------------|-----------|-----------------------------------------------|----------|----------|------|------|--------------------------------------------|------|---------------------------|-----------------------------|------------------|-----|----|
| Adopted:<br>Zoning District                           | Permitted Principal Uses (e)                                                                                                                            | Special Use Permit Required | Minimum Lot Size |           | Principal Building                            |          |          |      |      | Detached Garages/Carport, Residential Uses |      | Other Accessory Buildings | Maximum Bldg. Height (feet) | Maximum Coverage |     |    |
|                                                       |                                                                                                                                                         |                             | Square'          | Lot Width | Front (d)                                     | Rear (d) | Side (b) | Rear | Side | Rear                                       | Side |                           |                             |                  |     |    |
|                                                       |                                                                                                                                                         |                             |                  |           |                                               |          |          |      |      |                                            |      | 25000                     | 200                         | 50(a)            | 30  | 30 |
| HC Highway Commercial (Located on State Highway Only) | Agricultural implement sales and service                                                                                                                |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Antique and art shops                                                                                                                                   |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Automobile sales and related sales or service                                                                                                           |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Baker, confectionery and ice cream shops, including the baking and processing of food products when prepared for retail use on premises only            |                             |                  |           |                                               |          |          |      |      |                                            |      |                           |                             |                  |     |    |
|                                                       | Banks and financial institutions                                                                                                                        |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Beverage stores including the sale of beer and liquor                                                                                                   |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Building materials, retail sales                                                                                                                        |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Catalog store                                                                                                                                           |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Club, lodge or meeting hall                                                                                                                             |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Department or variety stores                                                                                                                            |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Drug stores                                                                                                                                             |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Eating and drinking establishments                                                                                                                      |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Existing single-family residences and customary accessory structures                                                                                    |                             |                  |           |                                               |          |          |      |      |                                            |      |                           |                             |                  |     |    |
|                                                       | Feed and seed stores                                                                                                                                    |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Florists shops                                                                                                                                          |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Food stores and food lockers                                                                                                                            |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Furniture and appliance sales and service, but not including assembly or manufacture                                                                    |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Gift and novelty stores                                                                                                                                 |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Hardware, paint, glass and wallpaper stores                                                                                                             |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Home Occupation                                                                                                                                         | X                           |                  |           | Subject to the provisions of Section 202-2.44 |          |          |      |      |                                            |      |                           |                             |                  |     |    |
|                                                       | Hotels, motels and camping parks                                                                                                                        |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |
|                                                       | Indoor and outdoor recreation, including bowling alleys, pool halls, dance halls, amusement centers, amusement parks, miniature golf and driving ranges |                             | 25000            | 200       | 50(a)                                         | 30       | 30       |      |      |                                            |      | 20                        | 20                          | 40               | 45% |    |

|          |                 | Special Use Permit Required | Minimum Setback Requirements (feet)                                                                                                                |                  |           |                    |          |          |          |                                            |      |                           |      |                             |                        |    |     |
|----------|-----------------|-----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-----------|--------------------|----------|----------|----------|--------------------------------------------|------|---------------------------|------|-----------------------------|------------------------|----|-----|
| Adopted: | Zoning District |                             | Permitted Principal Uses (e)                                                                                                                       | Minimum Lot Size |           | Principal Building |          |          |          | Detached Garages/Carport, Residential Uses |      | Other Accessory Buildings |      | Maximum Bldg. Height (feet) | Maximum Bldg. Coverage |    |     |
|          |                 |                             |                                                                                                                                                    |                  |           |                    |          |          |          |                                            |      |                           |      |                             |                        |    |     |
|          |                 |                             |                                                                                                                                                    | Square'          | Lot Width | Front (d)          | Rear (d) | Side (c) | Side (b) | Rear                                       | Side | Rear                      | Side | Rear                        | Side                   |    |     |
|          |                 |                             |                                                                                                                                                    |                  |           |                    |          |          |          |                                            |      |                           |      |                             |                        |    |     |
|          |                 |                             | Laundries, laundrettes, cleaning and pressing establishments                                                                                       | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Libraries, museums, galleries                                                                                                                      | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Mobile home and trailer sales and service                                                                                                          | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Monument sales                                                                                                                                     | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Mortuaries and funeral parlors                                                                                                                     | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Motor vehicle service station in accordance with Section 802                                                                                       |                  |           |                    |          |          |          |                                            |      |                           |      |                             |                        |    |     |
|          |                 |                             | Newsstand                                                                                                                                          | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Nurseries, greenhouses, garden supplies                                                                                                            | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Offices                                                                                                                                            | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Off-street parking                                                                                                                                 | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Pet stores                                                                                                                                         | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Personal service                                                                                                                                   | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Photography studios                                                                                                                                | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Plumbing, heating and roofing supply retail sales                                                                                                  | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Public uses (excluding the storage of road material, road equipment and garages, incinerators and landfills of any type)                           | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Repair services of household items                                                                                                                 | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Rental stores                                                                                                                                      | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Rooming and boarding houses                                                                                                                        | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Schools or places of instruction for music, dancing, reading, languages, elocution and similar objects                                             |                  |           |                    |          |          |          |                                            |      |                           |      |                             |                        |    |     |
|          |                 |                             | Theaters                                                                                                                                           | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |
|          |                 |                             | Retail sales and service establishments not more objectionable by reason of noise, fumes, vibration, or lights than any permitted use listed above |                  |           |                    |          |          |          |                                            |      |                           |      |                             |                        |    |     |
|          |                 |                             |                                                                                                                                                    | 25000            | 200       | 50(a)              |          | 30       |          |                                            |      |                           |      | 20                          | 20                     | 40 | 45% |



| Minimum Setback Requirements (feet) |                                                                                                                                                                                                                                                                                                                                |                             |                                          |           |                    |      |          |                                            |      |                           |    |                             |                        |  |
|-------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|------------------------------------------|-----------|--------------------|------|----------|--------------------------------------------|------|---------------------------|----|-----------------------------|------------------------|--|
| Adopted:<br>Zoning District         | Permitted Principal Uses (c)                                                                                                                                                                                                                                                                                                   | Special Use Permit Required | Minimum Lot Size                         |           | Principal Building |      |          | Detached Garages/Carport, Residential Uses |      | Other Accessory Buildings |    | Maximum Bldg. Height (feet) | Maximum Bldg. Coverage |  |
|                                     |                                                                                                                                                                                                                                                                                                                                |                             | Square'                                  | Lot Width | Front              | Rear | Side (c) | Rear                                       | Side |                           |    |                             |                        |  |
|                                     |                                                                                                                                                                                                                                                                                                                                |                             |                                          |           |                    |      |          |                                            |      |                           |    |                             |                        |  |
|                                     | Automobile painting, upholstering motor and body work                                                                                                                                                                                                                                                                          |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Bottle works                                                                                                                                                                                                                                                                                                                   |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Building materials sales yard                                                                                                                                                                                                                                                                                                  |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Building contractor shops                                                                                                                                                                                                                                                                                                      |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Carpenter and cabinet maker                                                                                                                                                                                                                                                                                                    |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
| LI District                         | Electronic and small parts assembly and/or manufacture                                                                                                                                                                                                                                                                         |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Laboratories and research facilities                                                                                                                                                                                                                                                                                           |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Locksmith                                                                                                                                                                                                                                                                                                                      |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Machine shops                                                                                                                                                                                                                                                                                                                  |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Manufacture, compounding, processing or treatment of such products as: bakery goods, confectioneries, cosmetics, dairy products, drugs, ice, perfumes, pharmaceuticals, toiletries and food products (except the following: fish, sauerkraut, pickles, vinegar, yeast and the rendering of oils and fats)                      |                             |                                          |           |                    |      |          |                                            |      |                           |    |                             |                        |  |
|                                     | Manufacture, fabrication, compounding, assembling, treatment, processing of articles of merchandise from the following previously prepared materials: cellophane, ceramics, cloth, film, fiber, glass, leather, paper and paper board, plastic, precious stones, shell, straw, textiles, yarn, paint, metal, concrete and wood |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Metal smiths                                                                                                                                                                                                                                                                                                                   |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Public uses                                                                                                                                                                                                                                                                                                                    |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |
|                                     | Telecommunication Facility                                                                                                                                                                                                                                                                                                     | X                           | Subject to the provisions of Section 821 |           |                    |      |          |                                            |      |                           |    |                             |                        |  |
|                                     | Residential & Working Farm Energy System                                                                                                                                                                                                                                                                                       | X                           | Subject to the provisions of Section 817 |           |                    |      |          |                                            |      |                           |    |                             |                        |  |
|                                     | Repair shop                                                                                                                                                                                                                                                                                                                    |                             | 43560                                    | 200       | 60(a)              | 25   | 25       |                                            |      | 20                        | 20 | 40                          | 50%                    |  |







|                  |                                                                                                                                             | Special Use Permit Required                            | Minimum Setback Requirements (feet) |           |                    |      |          |                                            |      |                           |      |    |  | Maximum Bldg. Height (feet) | Maximum Bldg. Coverage |
|------------------|---------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------|-------------------------------------|-----------|--------------------|------|----------|--------------------------------------------|------|---------------------------|------|----|--|-----------------------------|------------------------|
| Adopted:         | Permitted Principal Uses (d), (e)                                                                                                           |                                                        | Minimum Lot Size                    |           | Principal Building |      |          | Detached Garages/Carport, Residential Uses |      | Other Accessory Buildings |      |    |  |                             |                        |
|                  |                                                                                                                                             |                                                        | Square'                             | Lot Width | Front              | Rear | Side (c) | Rear                                       | Side | Rear                      | Side |    |  |                             |                        |
|                  |                                                                                                                                             |                                                        |                                     |           |                    |      |          |                                            |      |                           |      |    |  |                             |                        |
| Zoning District  |                                                                                                                                             |                                                        |                                     |           |                    |      |          |                                            |      |                           |      |    |  |                             |                        |
|                  | Agricultural implement sales and service                                                                                                    |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Antique shop                                                                                                                                |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Automobile sales and service                                                                                                                |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Automobile painting, upholstering, motor and body work                                                                                      |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
| LI / HC District | Baker, confectionery and ice cream shop, including the baking and processing of food products when prepared for retail use on premises only |                                                        |                                     |           |                    |      |          |                                            |      |                           |      |    |  |                             |                        |
|                  | Banks and financial institutions                                                                                                            |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Bottling works                                                                                                                              |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Building contractor shop                                                                                                                    |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Building materials, retail sales                                                                                                            |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Building material sales yard                                                                                                                |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Carpenter and cabinet maker                                                                                                                 |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Car wash                                                                                                                                    |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Catalog store                                                                                                                               |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Club, lodge or meeting hall                                                                                                                 |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Department or variety store                                                                                                                 |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Distribution Center                                                                                                                         |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Drug store                                                                                                                                  |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Eating and drinking establishment                                                                                                           |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  |                                                                                                                                             | Electronic and small parts assembly and/or manufacture |                                     | 43560     | 200                | 60   | 50       | 25                                         |      |                           |      |    |  |                             |                        |
|                  | Essential services                                                                                                                          |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Feed and seed store                                                                                                                         |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Florist shop                                                                                                                                |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |
|                  | Food store and food lockers                                                                                                                 |                                                        | 43560                               | 200       | 60                 | 50   | 25       |                                            |      |                           | 20   | 20 |  | 40                          | 50%                    |

| Minimum Setback Requirements (feet) |                                                                                                                                                                                                                                                                                                          |                             |                  |           |                    |      |          |                                            |      |      |                           |    |                             |                        |
|-------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|------------------|-----------|--------------------|------|----------|--------------------------------------------|------|------|---------------------------|----|-----------------------------|------------------------|
| Adopted:<br>Zoning District         | Permitted Principal Uses (d), (e)                                                                                                                                                                                                                                                                        | Special Use Permit Required | Minimum Lot Size |           | Principal Building |      |          | Detached Garages/Carport, Residential Uses |      |      | Other Accessory Buildings |    | Maximum Bldg. Height (feet) | Maximum Bldg. Coverage |
|                                     |                                                                                                                                                                                                                                                                                                          |                             | Square'          | Lot Width | Front              | Rear | Side (c) | Rear                                       | Side | Rear | Side                      |    |                             |                        |
|                                     |                                                                                                                                                                                                                                                                                                          |                             |                  |           |                    |      |          |                                            |      |      |                           |    |                             |                        |
|                                     | Furniture and appliance sale and service (including assembly and/or manufacture)                                                                                                                                                                                                                         |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Gift and novelty store                                                                                                                                                                                                                                                                                   |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Hardware, paint, glass and wallpaper store                                                                                                                                                                                                                                                               |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Hotel, motel and camping park                                                                                                                                                                                                                                                                            |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Indoor and outdoor recreation, including bowling alley, pool hall, dance hall, amusement park, miniature golf and/or driving range                                                                                                                                                                       |                             |                  |           |                    |      |          |                                            |      |      |                           |    |                             |                        |
|                                     | Lawn or garden equipment sale and service                                                                                                                                                                                                                                                                |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Laboratory and/or research facilities                                                                                                                                                                                                                                                                    |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Laundries, laundrettes, cleaning and pressing establishment                                                                                                                                                                                                                                              |                             |                  |           |                    |      |          |                                            |      |      |                           |    |                             |                        |
|                                     | Libraries, museums, art galleries                                                                                                                                                                                                                                                                        |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Locksmith                                                                                                                                                                                                                                                                                                |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Machine shop                                                                                                                                                                                                                                                                                             |                             |                  |           |                    |      |          |                                            |      |      |                           |    |                             |                        |
|                                     | Manufacture, compounding, processing or treatment of such products as bakery goods, confectioneries, cosmetics, dairy products, drugs, ice, perfumes, pharmaceuticals, toiletries and food products (except the following: fish, sauerkraut, pickles, vinegar, yeast and the rendering of oils and fats) |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Manufacture, fabrication, compounding, assembling, treatment of previously prepared material: cellophane, ceramics, cloth, film, fiber, straw, textiles, yarn, paint, metal, concrete and wood                                                                                                           |                             |                  |           |                    |      |          |                                            |      |      |                           |    |                             |                        |
|                                     | Metal smith                                                                                                                                                                                                                                                                                              |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Mini-storage units                                                                                                                                                                                                                                                                                       |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |
|                                     | Mobile home and trailer sales and service                                                                                                                                                                                                                                                                |                             | 43560            | 200       | 60                 | 50   | 25       |                                            |      |      | 20                        | 20 | 40                          | 50%                    |

|                 |                                                                                                     | Special Use Permit Required | Minimum Setback Requirements (feet) |           |                                          |      |          |      |                                            |      |                           |      |      |    | Maximum Bldg. Height (feet) | Maximum Bldg. Coverage |  |
|-----------------|-----------------------------------------------------------------------------------------------------|-----------------------------|-------------------------------------|-----------|------------------------------------------|------|----------|------|--------------------------------------------|------|---------------------------|------|------|----|-----------------------------|------------------------|--|
| Adopted:        | Permitted Principal Uses (d), (e)                                                                   |                             | Minimum Lot Size                    |           | Principal Building                       |      |          |      | Detached Garages/Carport, Residential Uses |      | Other Accessory Buildings |      |      |    |                             |                        |  |
|                 |                                                                                                     |                             | Square'                             | Lot Width | Front                                    | Rear | Side (c) | Rear | Side                                       | Rear | Side                      |      |      |    |                             |                        |  |
|                 |                                                                                                     |                             |                                     |           |                                          |      |          |      |                                            |      |                           |      |      |    |                             |                        |  |
| Zoning District |                                                                                                     |                             | Square'                             | Lot Width | Front                                    | Rear | Side (c) | Rear | Side                                       | Rear | Side                      | Rear | Side |    |                             |                        |  |
|                 | Monument sales                                                                                      |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Mortuary and funeral parlor                                                                         |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Motor vehicle service station (b)                                                                   |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Newsstand                                                                                           |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Nurseries, greenhouse, garden supply                                                                |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Offices                                                                                             |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Off-street parking                                                                                  |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Pet store                                                                                           |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Personal service                                                                                    |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Photography studio                                                                                  |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Public uses                                                                                         |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Telecommunication Facility                                                                          | X                           |                                     |           | Subject to the provisions of Section 821 |      |          |      |                                            |      |                           |      |      |    |                             |                        |  |
|                 | Residential & Working Farm Energy System                                                            | X                           |                                     |           | Subject to the provisions of Section 817 |      |          |      |                                            |      |                           |      |      |    |                             |                        |  |
|                 | Planned unit light industrial development                                                           |                             |                                     |           | Subject to the provisions of Section 506 |      |          |      |                                            |      |                           |      |      |    |                             |                        |  |
|                 | Plumbing, heating and roofing supply retail sales                                                   |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Railroad station                                                                                    |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Recreation vehicle sales and/or service                                                             |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Repair service of household items                                                                   |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Repair shop                                                                                         |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Residential – Single Family detached residence                                                      |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Retail store                                                                                        |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | School or place of instruction for music, dance, reading, languages, elocution and similar subjects |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Storage of materials, supplies and equipment                                                        |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Theater, walk-in and drive-in                                                                       |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Trucking terminal                                                                                   |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Warehouse                                                                                           |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |
|                 | Wholesale business                                                                                  |                             | 43560                               | 200       | 60                                       | 50   | 25       |      |                                            |      |                           | 20   | 20   | 40 | 50%                         |                        |  |

